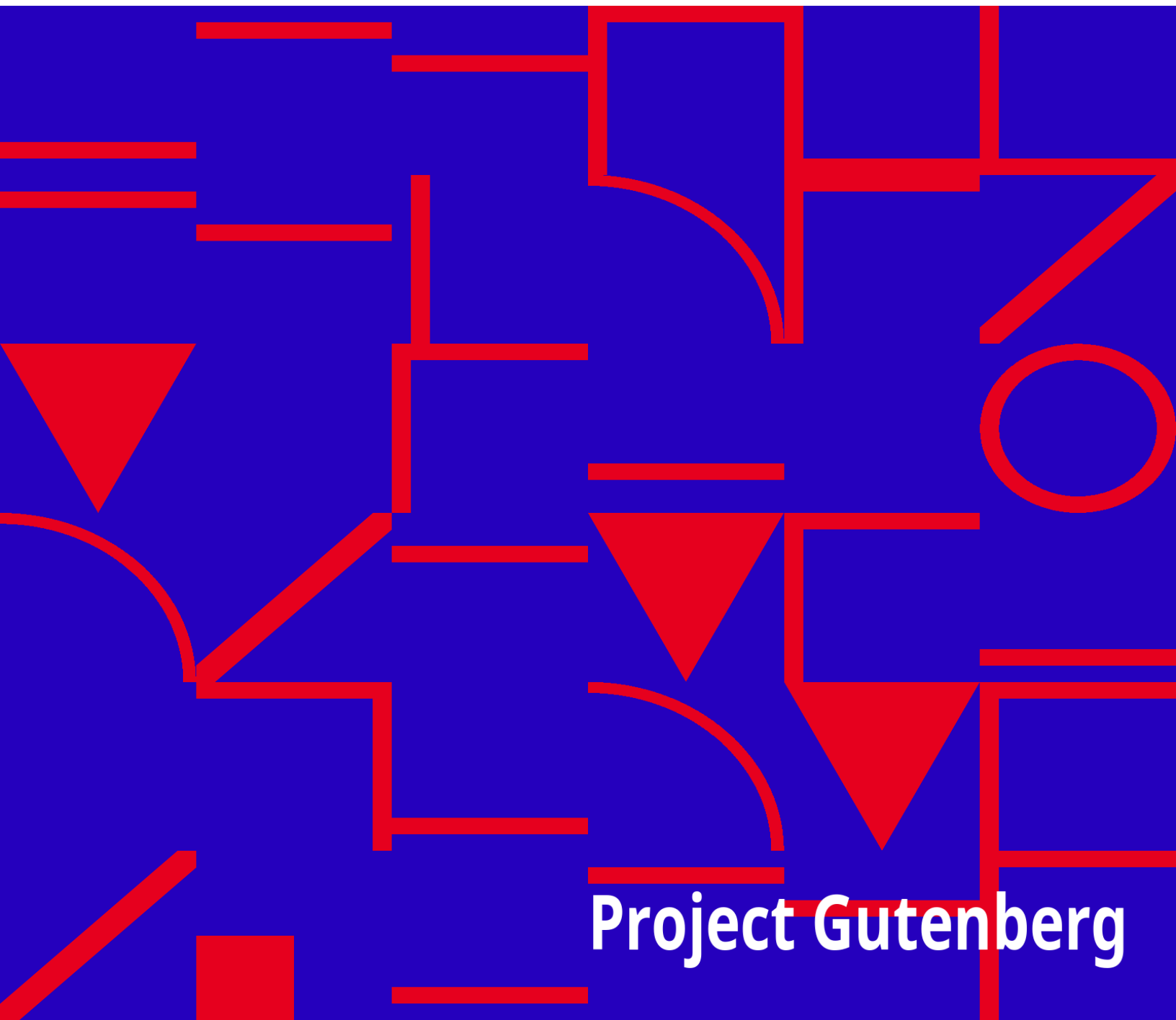


Recollections of Windsor Prison;

of Vermont John Reynolds

The background of the lower half of the image is a solid blue field. Overlaid on this field is a complex, abstract pattern of thick red lines and shapes. These include various geometric forms such as squares, rectangles, triangles, circles, and arcs, some of which are interconnected to form a larger, more intricate structure. The pattern is dense and covers most of the lower half of the image.

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RECOLLECTIONS OF WINDSOR PRISON; ***

**RECOLLECTIONS
OF
WINDSOR PRISON;**

CONTAINING
Sketches of its History and Discipline;

WITH
APPROPRIATE STRICTURES,

AND
MORAL AND RELIGIOUS REFLECTIONS.

BY JOHN REYNOLDS.

Third Edition.

BOSTON:
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PREFACE.

"Lest men suspect your tale untrue,
Keep *probability* in view."

In following this suggestion of the poet, I have been compelled to "*extenuate*," and I have had no temptation to "set down aught in malice." The world of gloomy horrors through which my memory has been roving for the materials of this volume, cannot receive a deepening shade from either reality or fiction; and my conscientious and prudential object has been, to take the *brightest* truths which my subjects have required, and let the *darker* ones remain untold. For the correctness of the facts which I have recorded, as to all essential points, I hold myself responsible; and as to my strictures and reasonings, I am willing they should pass for just what they are worth.

In sending these Recollections abroad, I am governed by principles which are equally remote from the considerations of either hope or fear. All my hopes, from my fellow men, are gone out in the cold and gloomy damps of despair; and having long endured their *deepest* scorn, I have nothing more to fear from *them*. My sole object is to plead the cause of suffering humanity, and drag iniquity from her dark retreats out into the view of mankind. I have also aimed to rend the mask from spiritual wickedness; and rouse the energies of benevolence in favor of the wretched. My cause is a good one—would to God it could find an abler advocate!

In noticing the opinions of others, I have been unrestrained, but candid; and in touching the *conduct* of some, I have endeavored to render to each his due—praise, to whom praise, and censure, to whom censure—and I am willing to step into the same scale myself.

I am well aware that this book will create me enemies, and put the tongue of slander in motion; but none of these things move me. The bird that is wounded will flutter. On the other hand, I expect to obtain some *friends* by this work; but this has been no inducement with me to publish it. Finally, I can assure both friends and foes, that, if any good should result from this volume to the cause of benevolence in any way, I may take my pen again. At any rate, I shall have the satisfaction of having done my duty, and performed my vow; and this satisfaction is of more value to me than any other reward which may result from my labors.

THE AUTHOR.

Boston, April, 1834.

GEHENNA IN MINIATURE. ORIGIN OF PRISONS.

Egypt is said to have been the cradle of letters; and happy had it been for her history, if she had never cradled any thing worse. There are the first and oldest pyramids, the sphynxes, and the labyrinths; and there was erected the first prison of which history has taken notice. A cruel and heartless people, they deserve the infamy of corrupting the principles of penal justice, and of transforming their prisons into theatres of the most fiend-like barbarity, and unhallowed revenge.

With the same spirit which led the scholar to pry into the hieroglyphic mysteries of this land of wonders, has the genius of her prison discipline been copied by the nations of the earth, till the whole world is filled with these terrestrial hells. But as this sketch leads me rather to the contemplation of *Penitentiaries* than prisons in general, I shall turn my thoughts to them in *particular*.

ORIGIN AND DESIGN OF PENITENTIARIES, WITH A VIEW OF THEIR IMPERFECTIONS.

These lurid and doleful mansions, owe their existence to the sinfulness and depravity of man; and they are designed, by a mild and salutary process, to reform the sons of guilt and crime. Long experience had demonstrated, that sanguinary measures produced no *good* effect on the sufferers, but rather made them *worse*. Humanity, too, recoiled from the cruelty of such inflictions as the lash, and the brand; and as the effect of such severity was no argument for its continuance, humane legislators devised the *Penitentiary* system, by which criminals are confined to labor, and *should* be allowed full opportunities of reflecting on their conduct, and

of reforming their lives. And as the design is to have them treated with kindness, and allowed all the means of moral and religious instruction and improvement, that man can furnish, the benevolent hope of the community is, that their sufferings, thus tempered with mercy and humanity, will be salutary and reforming in its effects. Mercy and benevolence were the inspiring angels of this system, and could it ever be brought practically to bear on offending man, it would produce a salutary reform in his heart and life.

But the great difficulty with which this system has to contend, is, the absolute impossibility of finding proper persons to carry it into effect. The life and soul of it is unmingled mercy, and men, qualified by gentleness of temper and benevolence of heart, to administer its laws, are not to be found on earth. Man, in his ruined and fallen nature, is a savage, and the milk of human tenderness was never drawn from the breast of a tiger. To give a full practical demonstration of the tendency and effects of the Penitentiary discipline, as it exists in the speculations of the philanthropist, *God* must become the *director*, and *angels* the ministering spirits of its administration. Such a system, in the faultlessness of perfection, is now in practical operation on the entire community of fallen and impenitent spirits; and the success of the past demonstrates the rationality of the expectation of universal success. On this the mind rests with perfect pleasure, and is relieved by it from the painfulness of witnessing the inefficiency of human means, to reform the votaries of guilt.

There can be no moral truth more fully demonstrated than this, that nothing but *goodness* can beget goodness. Material substances communicate their own properties to each other, and moral qualities impregnate, with their own nature, the objects on which they exert an influence.—Hence the baleful influence of tyranny on the human mind. Hence the contagion of vice. And hence the reason of the truth, that "we love God because he first loved us."

Where, in all history, can an instance be found of a single reformation from guilt, by any other than gentle and clement means? The blaze of retributive vengeance may awe the propensities to crime into inaction; but it cannot uproot them. The *terrors* of the Lord may make men afraid, but it is

the *goodness* of God that leads to reformation. This is the secret of the Lord, which is with them that fear him. This is the golden key which opens the cause of that success, which has, *visibly*, in so many cases, marked the progress of the gospel of the *grace* of God; and which is, in all others, attaining the same happy result, by a process so *silent* and *slow*, as to evade the careless observation of the unreflecting multitude. This is the philosophy of the divine administration, and it is one of those simple sciences which the pride of man is reluctant to learn; but which the humility of Christ will dispose him to receive, and by which his nature is to be renewed and adorned.

A ray of this science darkened by the dusky medium through which it passed, shot from the throne of blended goodness and intelligence, and crossed the mind of that philanthropist who conceived the ideal theory of an effective Penitentiary discipline, in the hands of man. A gleam of sacred light seemed to spread over the anticipated results of the embryo experiment, as he resolved it in his enthusiastic mind; but it was like the gleam of the north, which shoots on the eye, and is immediately lost in its vivid expansion. It is a vain and idle theory; splendid, indeed, but impracticable; lovely, but visionary; and can never go into perfect operation till the occasion for it shall have ceased. In all but intelligent and sympathizing hands, this system of benevolence must necessarily be perverted; and as "man's inhumanity to man makes countless thousands mourn," the same uncomely traits of character will continue, till the Spirit of God shall have humanized mankind, and obviated the necessity of corrective discipline.

Another obstacle, not only to the exhibition of a *perfect* Penitentiary, but to so good a one as *might* exist, even in the present state of human depravity, is, the well known fact, that *merciful* men cannot be obtained to enforce its discipline; none but the true sons of an uncompromising and iron-hearted severity, will consent to perform for any considerable time, the unenviable task of inflicting pain on a fellow creature. Hence this duty is too frequently assigned, from necessity, to those who find in it the highest enjoyment of which their dreadful natures are capable. There are numbers of very bright exceptions to this remark, and I shall notice them with pleasure when I come to treat of the character of the keepers. Could such

men as may be found on earth—those brighter fragments of ruined humanity, which are frequently to be met with,—be placed at the head and in the offices of our Penitentiaries, and could they be removed at that very hour when the too frequent perception of suffering begins to corrupt and deaden their moral feelings, many of the evils which now grow out of the perversion of those means of good, might be obviated, even if no salutary results could be produced. And this I am confident is an improvement in those places for which the demand is impressive and thrilling.

Another reason why prisons do not effect more good, or prevent more evil, is, the design of them is lost sight of. Instead of an altar to God, the keepers erect one to Mammon; and among the sacrifices at this altar are found the health, peace, and life of the convicts. Here, surely, reform is called for in a voice as sacred as it is loud and awful. Remove that altar; subsidize no longer the blood of souls in the interdicted worship of an idol; but allow the subjects of penal bondage time and opportunity for reflection; for reading the Holy Bible; for prayer; for public and social worship;—and furnish them with all the means and facilities of moral and religious improvement which intelligent piety can suggest.

ORIGIN, CONSTRUCTION, GOVERNMENT, AND GENERAL HISTORY OF WINDSOR PRISON.

The foundation of this prison was laid in 1809. It is built of stone throughout, has three stories, and thirty-five rooms or cells, with strong and massy iron doors. The cells on the ground are small, with small *apertures* or windows; those in the second story are generally larger, but with similar apertures; and those in the upper story are all larger, and have grated windows, much larger than those in the other stories. In this story are two rooms which are used as hospitals. The furniture of the rooms are straw beds, with convenient and comfortable clothing, small seats and a few books. The ground story is for the prisoners when they first enter the prison. After some time, if they conduct in a satisfactory manner, they are moved to the second story; from which, in due time, if they merit the favor, they are permitted to ascend to the third. If any of the prisoners, in the second and third stories, transgress the laws, they are put down *one* story as a part of their punishment.



Some of the small cells in the first and second stories are used as *solitary* cells for the punishment of offenders. The apertures of these are closed, so that they are as dark as midnight. While the offender is in these, he has only one blanket to sleep on, in the coldest weather in the winter, and in the summer, nothing but the stone floor. His only sustenance is a piece of bread once a day, weighing from four to six ounces. Some prisoners have been confined in these places more than thirty days, though the usual time varies from six to twelve. Many have frozen their feet there, and in many a constitution, the seeds of decay and death have there been planted.

The furniture of the hospitals is of a piece with that of the other parts of the prison, and only *one* degree more comfortable. The beds are straw; the clothes are clean; the food various, according to the complaints of the sick, but never rises to the claims of humanity. In the winter, the patients are blessed with a stove, and are kept comfortably warm. This is the *dying* place, but some are denied the comfort of even this, and die before they can get admittance. According to the laws of the prison, however, this is the only place in which medicine must be given, and the appointed department for all that are sick. But laws are only ropes of sand. The laws of the prison are merciful, but neither the rains of spring, the dews of morning, nor the sunbeams of heaven, can either soften or fertilize a rock.

It was the original design that the whole prison should be kept warm, and large stoves were provided for this purpose; but it was found impossible to do this by the means used, and after a few years, the coldest part of the winter found not a spark of fire in any of the halls. Much is suffered on account of the cold; but it is a place of punishment, and this is the kind and feeling argument with which the keepers meet the entreaties of the shivering prisoners. Many a time have I made large balls by scraping the frost with my hand from the stone sides of my cell; and thousands of times have my hands been so chilled, that I had to tax my ingenuity to turn over the pages of my bible.

Adjoining the prison is a large brick house, for the use of the keepers and guard. At some distance in the rear, is a large brick shop, in which the prisoners are employed during the day, at their labor, which was at first making nails and other smith work, but has since been changed to

manufacturing cotton cloth, gingham, plaids, &c. This shop is kept warm and clean.

Another brick building between the shop and prison was erected for store rooms, lumber rooms, &c., and for a chapel. This part of it was very convenient, and spoke much for the pious feelings of the individuals who erected it. It was used, however, only a few years for the worship of God, when "a new king arose who knew not Joseph," and the voice of the preacher and the utterance of prayer departed from this temple, and the buyers and sellers, and money changers occupied the place of the priest, and polluted the sacred altar. It was painful to tread on these sacred ruins, and to hear the clack of looms where the soul had hung with transport on the sacred sounds of instruction, and been melted with the holy ardors of devotional feeling. "By what spirit," I often asked, "was this ruin made? Was it the spirit of piety?"—No! The genius of this change came not from Jordan's waves, nor from Zion's holy hill; the hand that smote this altar of religion and extinguished the last cheering light of the contrite soul was nerved by the same spirit that led the guilty rabble to smite the condemned Redeemer, and place on his innocent head a crown of thorns.

Another brick building east of this, used as an office for the master weaver, and a carpenter's shop, &c. is all that had been erected previously to the building of the new prison for solitary confinement, in 1830. Around all these is a wall about sixteen feet high, and three feet thick at the base, which completes the Establishment.

The government of the prison was, at first, vested in a Board of Visitors, who appointed the subordinate officers, made the By-Laws of the Institution, and made report of their doings to the Legislature every year. The officers of their appointment were the head keeper and three or more assistant keepers—five guard—a master weaver—a physician—a chaplain—and a contractor. One of the Visitors attended at the prison one day in every week to give directions about the work, and to see that the By-Laws were obeyed and enforced.

After some years this form of the government was changed, and the duty of the Board of Visitors committed to one man, denominated the Superintendent. Another change soon after gave the appointment of a

Warden to the Legislature, and the appointment of the inferior officers to him, leaving the Superintendent to act only as *contractor*. After eight years the office of Warden was destroyed by the Legislature, and all authority recommitted to the Superintendent.

These changes in the government did not effect, in any degree, the *spirit* by which the prison was governed; and while each form had its peculiarities and excellencies, they all had their defects. The principal defects were the investing of the Visitors and Wardens, and Superintendents with the power to appoint *physicians* and *chaplains*. These are high and important offices, and ought not to be answerable to any power but supreme. The physician, depending on the pleasure of a petty officer for his appointment, is too often the mere *tool* of that officer, to the injury of his moral principles, and at the expense of the health and life of too many of the prisoners. Whereas if the physician held his office from the Legislature, he would have power to *open* and *shut*, which he has not now; and both health and life, which are now lost, might be preserved.

The *Chaplain*, also, should hold his office from the highest source in the state. In such a place, his is the most important office, and he ought to have authority to do all things pertaining to it, without any reference to the pleasure of a man who, perhaps, despises both him and his office, and believes in no God higher than himself. The gospel ought to be fully taught and explained, and exemplified by the Chaplain; and he ought to be elevated, in his authority, above the control of those who can now say to him—"Come at such a moment, or not at all."

Another reason why the Legislature ought to appoint the Chaplain is, that then, *sectarian policy* would not have so much influence. The Legislature is composed of members of all churches, and they would, as they do their own chaplain, appoint without any reference to *sect*; and then one man living in Windsor, could not consult the finances of his own *party*, in appointing a clergyman for the prison.

The By-Laws of the prison have never been very materially altered, since they were first composed. A copy of them is laid before the Legislature every year, and being sanctioned by that body, they become, virtually, the laws of the state for that Institution. They are wisely adapted to the

circumstances of the prison, and are as merciful as they are wise; but they are disregarded, and never adverted to but when they direct the infliction of punishment on the prisoners. They are trampled under foot by every keeper and guard, from the highest to the lowest. They are read once in every month to the prisoners, but those parts which relate to the conduct of the officers, are wisely omitted in reading, lest the prisoners should know when *they* err, and be able to convict them from the law. I do not say this from conjecture, I know it; for the hand that is writing this word, copied them every year, and I also read to the prisoners the parts directed to be read; and I have often heard the keeper say, that the prisoners ought *not* to know what laws relate to the officers. I shall have occasion, in the course of these sketches, to quote largely from these By-Laws, and what has been written here will suffice for my present purpose.

The prisoners go to their work at sunrise, and retire at sunset. They have a task, and for what they do over it, they receive a compensation. Their food is coarse, but good and wholesome. They wear party-colored clothes, half green and half scarlet, and are kept clean. They are not allowed to converse together while at work, nor can they leave their employment and go into the yard, or any part of the shop without permission of the keeper. When they are out of the shops they are under the care of the guard on the wall, and they are not suffered to ramble, but must do their errand and return into the shop.

They can see their friends, when they call, in the presence of a keeper, and write and receive letters, if they contain nothing objected to by the Warden or head officer. They have such books as they purchase for themselves, and once they had a social library, which would have been more useful, if many very improper books had not been in it. Why these were admitted, the guardians of the morals of the place must answer. No newspapers were allowed to be introduced, not even *religious* ones; but tracts and religious pamphlets were not objected to.

There is always a keeper in every shop while the prisoners are at work, and he is armed with a sword. A guard is placed on the wall during the day, armed with a gun, loaded with a ball and buck shot; and at night there is one in the entrance of the prison to prevent escapes.

Such is the general history of the prison up to 1830, when a new prison, on the plan of solitary confinement, was erected. This contains about one hundred and seventy small cells, in which the prisoners are confined separately during the night. No radical alteration, I apprehend, has been made in the government of the place, in any other respect. The design of this change was, to prevent the prisoners from corrupting each other's minds by social intercourse. The principle laid down by the votaries of this plan, is, that vice is contagious, and wicked men become worse by association. The more abandoned, it is said, will draw down others to their own degree of guilt, if permitted to associate together, and thus baffle all the efforts of piety and virtue for their reformation. Hence the presumptive necessity for a prison on a new construction, and hence the prison for solitary confinement in Windsor. I *hope* it will be so managed as to prove a less curse to humanity than the old one, though it is like hoping *against* hope. In respect to its *reforming* effect, I shall say more in another article; but I will remark here, that reformation is a *moral* work, and depends not on the *shape* of the person's *room*. It is a work of *mercy*, and nothing but mercy can *effect* it. Man is a social being, and the laws of his nature are violated by dooming him to solitude. The genius of crime dwells in the dark places of retirement, and always communes with its followers *alone*. Social life, on the contrary, is the garden of every virtue, in which nothing but flowers are permitted to flourish, and nothing but good fruit permitted to ripen when properly cultivated.

SOLITARY CONFINEMENT.

I ought to touch this subject with a delicate hand. Many giants of speculation have been this way, and they have laid down principles from which I am compelled to dissent. I am well aware of the charm of greatness, and of the danger of appearing singular with those on whom the mantle of popular veneration has been seen to fall; and I feel that in the strictures which I am commencing, I shall gain no applause from those who are kindly delivered from labor of thinking for themselves. This weighs, however, but little with me. A being who has visited the moon knows more about it than astronomers have ever taught. A man who has burned his finger knows more of the effect of fire on flesh, than the most eloquent lecturer who has had no experience. Confident, then, that my own experience may be safely trusted, I shall follow it cheerfully, whether it lead me *in* the path which speculation has trodden, or *across* it. BACON lays it down as a principle in philosophy, that man is ignorant of every thing antecedent to observation, and that experience is at the bottom of all our knowledge. To this principle I bow in submission, and take it for granted that what I have experienced I know.

Sustained then by my own personal experience and observation, I say *fearlessly*, that the solitary confinement plan, is an unwise, unfeeling, and ruinous innovation upon the Penitentiary discipline. Every body knows that it adds to the terror of such places; evinces a cruel recklessness of the feelings and personal comfort of the prisoner; and has the effect to convince him that the government is not his friend. This destroys his confidence in its mercy, and creates in him a disposition for revenge, which will eternally baffle all efforts for his reformation. He may, indeed, be awed with the gloomy horrors of the law, but cannot, by *such* means, be regenerated into a love of virtue. No; before you can do any thing towards reforming a sinner, you must convince him of your real friendship for him, which can be done

only by *being* friendly; and it is *not* being friendly to inflict pain without a benevolent motive. The construction of ordinary prisons is full cruel enough to fill the soul with terror; no *friend* would build even such a place as Windsor prison *was*, for one he loved, and no human being could suppose that love and friendship for the human race, had any thing to do in forming its plan. Should an angel from some happy world, in his flight near our earth, pause and contemplate the old prison at Windsor, he would hasten back and inform his companions that he had seen a *hell*. That place was designed or ignorantly constructed, as a fit house in which Revenge might feed in luxury on the tears of distress, and dance to the groans of despair. Every prisoner could read the spirit of the place in the massy walls—the iron grates and doors—and the noonday twilight of the cells; and the impression on every mind was, that the spirits of the infernal world had been erecting a very appropriate Temple for their chief. This is neither fiction, fancy, nor poetry, but solemn literal truth. The deathly chill which it threw on my spirits when I entered it, makes me shudder to this hour. But the *new* prison caps the climax of relentless invention, and sets description at defiance. Now, I say, that no prisoner can suppose by any reach of rational candor, that the builders of this *new* prison, were his friends; and hence all efforts, purporting to spring from a tender regard for his good, will be appreciated accordingly.

But it may be said, that the contagious nature of vice rendered it necessary to separate the prisoners into small solitary cells, to prevent their social intercourse, and its supposed consequence, their reciprocal progression in vice. To this I reply, and I will appeal to the facts in the case in support of my position, that the practical effect of such a separation goes to prove, that it is only a refinement of cruelty. The more completely you put one man into the power of another, the more perfectly do you create a tyrant, and prostrate a sufferer. Solitary cells and *flogging*, go hand in hand. Thus, the more certainly is the sufferer convinced that the authority is his enemy, and the more certainly is his reformation rendered impossible. The evils of solitary cells are far greater than the evils they were designed to remedy. I appeal to the experiment. I have only one more observation to make on this head, and I make it with a design to have it remembered. It is this—*Benevolence* will *appear* benevolence, and nothing *but* apparent

benevolence will turn a sinner from the error of his ways, and lead him to purify his heart.

GENERAL CHARACTER OF THE OFFICERS.

The unanimous opinion of all ages and countries has been, that prison keepers are *tyrants*. Regarding the prisons of earth and the prison of gehenna, in the same light, the directors and servants of both have been considered as drinking at the same fountain, and as possessing the same traits of moral character. This opinion, however, like many others which have obtained in the world, is not universally true, for there are prison keepers who possess every moral excellence, and who are more like angels of mercy, than fiends of darkness. But it is to be lamented that these exceptions are rare, and that it is too generally true, for the honor of humanity, that the term *gaoler* is synonymous with *despot*.

From this general truth, a very humbling inference necessarily follows. We cannot resist the conclusion to which it leads the reflecting mind, that cruelty is a radical element in the moral nature of fallen man, and never fails to develop itself when circumstances permit. Human nature is, in its fallen and unregenerate condition, only a cluster of shapeless and uncomely fragments, and presents every where the same bold and darkened *outlines* of depravity; and to adventitious circumstances is to be principally attributed the small complexional difference in the *filling up* of the picture. Like the mouldering, moss-grown ruins of some temple, which was once the wonder of the world, man is only the wreck of what he was when his heart was the throne of Deity, and his soul the image of his glorious Creator. *Then*, holiness was his element, but *now* sin. *Then*, angels sought, but *now* they shun his society. *Then*, like a field warmed by the sun, moistened by the rain, and fully prepared by the tiller's hand, he brought forth fruit unto God; but *now* he exhibits the sterility of a desert, in respect to what is good, but the fruitfulness of a garden in respect to evil. *Then*, mercy and gentleness were the seraph principles of his conduct, but *now* he is the cruel and savage playmate of the tiger.

This, I am aware, is a very repulsive truth, and one to which the pride of man will not readily subscribe. It is, notwithstanding, a truth, stereotyped on every page of his moral history; and it applies equally to the little Satan of a family and to the tyrant of a world. The seeds are in every breast, and they never fail to germinate under auspicious circumstances. Invest man with *authority*, and you commission a *despot*; and nothing but the restraining principles of the gospel, will prevent him from becoming a curse to those who are in his hands. The history of Hazael fully confirms the truth of this remark. He was sent to Elisha the prophet to inquire whether Benhadad the king of Syria would recover from a disease with which he was afflicted. As soon as he came into the presence of the prophet, Elisha fastened his eyes steadfastly on his countenance and wept. The astonished Syrian inquired the cause of his weeping. "I weep," said the man of God, "because I know the evil that thou wilt do unto the children of Israel; their strong holds wilt thou set on fire, and their young men wilt thou slay with the sword; and wilt dash their children, and rip up their women with child." Indignant at the imputation of such monstrous cruelty to him, Hazael replied, "Is thy servant a dog that he should do this great thing!" "But," said the prophet, "the Lord hath shewed me that thou shalt be king over Syria." While he was only an inferior officer, Hazael's soul shuddered at the bare mention of those cruelties which in a more elevated rank he was going to commit; but when informed that he was to become the king of Syria, the unhallowed principles of his nature began to quicken into exercise. The first act of his life after this was the murder of his master, and the language of the prophet is the history of his future life.

This is by no means a solitary exemplification of the truth which I have asserted. Nero, when he ascended the throne, is said to have been a merciful man; and when he was called upon to sign a death warrant, he is said to have expressed his regret that he had learned to write. Such was Nero once, but what was his character afterwards? His history is written in the blood of his murdered mother, and of Seneca his tutor; and in the tears, and cries, and broiling flesh of a thousand martyrs. Here is a fair specimen of the effect of unbridled authority on the nature of man; and while it holds up a hydra monster to the execration of all mankind, it says to all of us, in language of the most thrilling import, "Let him that thinketh he standeth take heed lest he fall."

Having made these general observations on the nature of man, and the influence of circumstances upon him, I shall enter upon the subject of this sketch.

Perhaps no prison on earth ever had better keepers than the one in Windsor. Though many of these have been as bad as humanity under such circumstances could possibly become, and though much of their conduct cannot be contemplated without the deepest horror of soul, the number of such monsters has been comparatively small. The frequent changes which take place in the officers, and the shortness of their residence there, are very fortunate circumstances, not at all favorable to the production of perfect tyrants. The longer a keeper stays there, the more cruel and heartless he becomes. This is a truth which experience has taught to every observing prisoner. Hence it is equally true that prisons grow worse as they grow older. They all had their origin in a merciful design, but by the authority with which the officers are clothed, they become little empires, and gradually sink down into the gloom of unalleviated despotism.

There are but few of the keepers who continue there over one or two years, some not so long, and but now and then one who stays five or six years. These are invariably the most hardened, and having the most power, they give tone to the conduct of the others and gradually induce them towards their own degree of severity. Influenced by them, many a young keeper and guard have been led to stain their souls with deeds of cruelty, which they could not think of afterwards without horror. The truth of the case is this—there are a few of the officers who have fully reached that dark eminence of perfect inhumanity, which is ascribed to a fallen spirit; and from this unenviable distinction there is a gradual softening down to the common level of human character.

These, according to their authority and moral temperament, exert a malignant influence on the administration of the prison, and on the peace and comfort of the prisoners. Generally taken from the very humblest employments, illiterate, and destitute of a proper acquaintance with mankind, and invested with an authority little less than absolute, extending virtually to the life or death of their subjects, they are intoxicated with their power, and seek every possible occasion to display it. To speak civilly to a

prisoner is considered beneath their dignity; and their cup of joy is full only when they can say—"I have sent the rascal to the solitary cell." Armed with a sword, and placed over one of the shops, they ape the monarch and claim the homage of a god.

The same spirit accompanies the stripling when he ascends the wall to act the *soldier* in his turn. Though serving for a stipend of eight dollars a month, and doomed by a decree which he is unable to violate, to the lowest walks in society, he fancies now that he is somebody, and makes all who are under his shadow feel the full weight of his self-importance. Over one entire quarter of an acre of this world, strongly walled in, he holds divided empire with his brother on the other side; he imagines that his bench is a throne, his gun a sceptre, and the limit of his dominions the everlasting hills. It is not easy to treat this subject with seriousness, and yet it is too solemn to be trifled with. See him pacing his post like a private in the army. Be careful how you smile, for he has the instrument of *death* in his hand, and he it was who took the life of *Fane*.^[1]

But these servants of the prison are not only inhuman and vain, there is no *meanness* to which they will not stoop; and they delight in all those little vexations with which they can perplex the prisoners. They are employed in making little rules and regulations for the prisoners, when they are in the yard, and these are so numerous, that no one can remember them, and so contradictory, that to obey *one*, at least *half a dozen* must be violated. Their common language to their subjects is—"Go here!—go there!—do this!—do that!—shut your head!—mind your business!—what are you doing!—out of the vault!—you shall go to the solitary for that!"

Nor is such mean and cruel conduct peculiar to the *subordinate* powers, they often are found *in*, and are copied *from*, the *highest*. I have seen those who occupied the chief seats in the synagogue, try every expedient to vex the prisoners into a war of words, and having accomplished their object, punish them for those very words which they provoked them to utter. I have heard them insult the prostrate objects of their power with words which I should blush to write. I have known them authorize vexatious regulations which the heart of Verres could not have enforced. I have seen one of these gather a number of prisoners around him, and though he had a *wife* and

daughters, lead and give spirit to a conversation, which would have imprinted a blush on the cheek of impurity itself.

This conduct is the more conspicuous from the fact, that the laws of the prison require every officer, and the head one especially, to have an especial reference, in all things, to the *good* and *moral* reformation of the prisoners. This also renders their conduct the more *criminal*; and to this as one of the principal causes must be referred the hardening effect of state-prison discipline upon its subjects.—*They* know the laws by which the keepers are bound; *they* know that the community and the government of the state require them to be merciful, and to treat the convicts as if they considered them human beings; and when they see these officers so outrageously sinful against the most solemn obligations, and the most sacred and obligatory laws, and yet as cruel to *them* for trifling and shadowy offences, as if they themselves were immaculate, they cannot help despising them in their hearts, and kindling with a flame which sets reformation at defiance. And it is not too much to say, that many a prisoner has been hardened in crime by the example of those very men who were commissioned to reform him. If I had the power, and desired to have the angel Gabriel become a devil, I would send him to Windsor prison for three years.

But I should do violence to my own feelings, and injustice to this part of my subject, were I not to give a very different character to *some* who have held offices in this Institution. As there are a few who have reached the climax of depravity, so there are some who have exhibited characters which do honor to human nature. Like stars in the dark, they were the angel spirits of that "house of wo and pain." They were warmed with the pure glow of benevolent and christian feeling; and if all the keepers had manifested the same temper and sympathy for the suffering, many a mountain of grief would have been rolled from their bleeding breasts—many a refractory spirit would have been charmed into obedience—many a hard heart would have been softened into tenderness—many a guilty soul would have been washed into purity—many a mother's heart would have been gladdened with the return of a prodigal child—and many a wife would have been blessed with a husband reclaimed. To these, I owed much of my comfort while I was a prisoner. I remember them with gratitude, and I am sure that they will have the blessing of the merciful.

From the account already given, it would readily be inferred, that the officers of the prison are not professors of religion. This inference would not be true unless a few exceptions should be made. I recollect only four, however, among the inferior officers, to whom the inference would not fully apply. In respect to these it is right to say, that they exhibited as much of the spirit of their profession, as could be intelligently expected from any in their situation. The same remark is true of the head ones, many of whom had been baptized. Christians, as well as others, are influenced by *circumstances*, and authority is the *worst* circumstance in which any *christian* can be placed. A small historic sketch will fully illustrate the influence of power, even on *sanctified* humanity. One of the prisoners was a restorationist. A friend of his, a very respectable clergyman of that faith, sent him a book in defence of the doctrine of future retribution, against the writings of Rev. W. Balfour. He had received many similar books from the same source, but *this* was objected to, and kept from him full six weeks, but not returned to the sender, nor any information given either way. At length a keeper informed him that there was a letter for him in the house, from Rev. S. C. Loveland, and a book entitled "Hudson's Reply," which the officer at the head of affairs refused to let him have. This keeper was a man of too noble a soul to be cramped by the unfeeling regulations of a religious exclusive, and he gave the prisoner an opportunity to read them and then return them to him. After this he found means of obtaining them on the express condition, that he would not lend them to any of his fellow prisoners. This same man, at another time, refused to let a prisoner have a book on the subject of religion, which was written and sent to him by his father.

This officer must have had a very conscientious regard for the moral and religious good of the prisoners; but how he could exclude *religious* books from them, and yet permit them to purchase and read the *lowest, dirtiest* and most *infamous* books that ever corrupted *either sex*, or disgraced the literature of any age or country, he can tell as truly as I can conjecture. This is not a solitary instance of religious inconsistency in the officers; I could mention more, but my limits will not permit. It shews what mankind are—a selfish, exclusive, unfeeling, and despotic community. Every view which we can take of man, as he comes into contact with circumstances, goes to confirm the maxim, that if he has *power* he will *use* it. From the same

volume we learn the impolicy of creating *spiritual* superiors. Christians are brethren. Among them is no allowable pre-eminence. They are to call no man on earth either *master*, or *father*. This is the command of Christ himself, and from the authority with which it is clothed, is obvious the greatness of the crime of disobeying it. Hence the fact that a spiritual despotism is the worst that can exist. Look to Rome; look to England; look into the cells of the Inquisition. May the Lord never, in his anger, curse these United States with a church establishment. *Political* tyranny is horrid enough, but from *spiritual* tyranny, good God deliver us!

There was once an important officer in the prison who was a *Deist*. He despised all religion, and even insulted and abused the Chaplain. Frequently did he keep some of the prisoners employed in chopping wood on the Sabbath; and when spoken to about this profanation of the Christian's sacred day, his reply was—"Monday is a good day, Tuesday is a good day, Sunday is a good day, I see *no difference* in them." There was not a single good thing in this man's official conduct. He despised almost every thing that is called good. The prisoners he regarded as an inferior race of animals, and rebuked the Chaplain for calling them "*brethren*." He was too bad even for *that* office, and as he purchased an ox for the prisoners to eat, which had *died of disease in the heat of summer*, the Superintendent gave him a very sudden and peremptory discharge. "I give you," said he, "till to-morrow morning to clear out, and take away your things." This was good tidings of great joy to all, and the prison rung with Jubilee.

I knew *another* high officer in the prison, who was also a Deist; but *he* was a most excellent man, and by a kind and fatherly administration, he endeared himself to every prisoner. His conduct would have done honor to the highest professions of Christianity. He adorned many of the doctrines of the gospel. He was not only an *honest* man, he was also a *benevolent* one. In all things he was influenced by *principle*, and did as he would be done by; and he did more to bless the prisoners with the preaching of the gospel, than many who prided themselves on their Christianity.

Among many of the inferior officers of the prison, who made no profession of religion, there was but one sentiment in respect to those prisoners who professed to be Christians, and this was, that they were all

hypocrites.—They dealt out to them a very superior share of their contempt, and always ridiculed their professions. If one of them was particular in reading the Scriptures, *that* was made the subject of light remark; and if in prayer one of them spoke so as to be heard, he was impudently ordered to stop. And once, in particular, a keeper told one of the serious convicts, that he would act a more wise part, if he would say nothing about his religion, but leave off praying and be like the other prisoners. Another prisoner was put in the solitary cell for reading his bible in the shop, where many a one had been allowed to read books, undisturbed, with which no virtuous *female* would pollute her fingers. The common vulgar cant, with which the keepers used to assail the piety of the prisoners, was as follows,—“They want to get *out* I guess—they are *coming* the *religious* lock—they are going to *pray* themselves out—they are mighty *pious* just now, pity they had not thought of this *before*.” Such remarks as these were as frequent as the mention of the prisoner’s piety, or the sight of one who was known to read his bible and pray; and not only the servants, but their *masters* often joined in such unmanly and inhuman sarcasms. “The tender mercies of the wicked are cruel.”

GENERAL CHARACTER AND HABITS OF THE PRISONERS.

This view presents human nature in its most degraded state, and in its darkest complexion. Here is man *doubly fallen*; here are the fragments of moral ruin in their most *hideous array*. A field, once green with inspiring promise, but now withering under a second blight. A splendid and glorious creation in baleful ruin. An ocean, once pure as a dew drop and smooth as a sea of glass, but now torn by conflicting waves, and casting up mire and dirt. The view is too painful! My heart sickens within me!

But it affords some relief to the mind, in dwelling on this gloomy prospect, to find here and there a ruin less ruined than others—a lonely column not *fallen*; a prostrate pillar not covered with *moss* nor buried in the *earth*. The soul of man is not susceptible of *utter* ruin. Immortal, it cannot *die*; the inspiration of the Almighty, and glorious once in his own image, it may grow *dim*, but not utterly *dark*; it may *sink*, but will *rise* again; it may *wander*, but will not be finally *lost*. My remarks on this subject, therefore, will be designed to shew, that there are, in this mass of dark, polluted, and fallen mind, some redeeming traits remaining *unruined*; something to admire and commend—something to imitate and love. In doing this, I shall relate some of the many historic incidents, which will prove the existence, and illustrate the nature of those moral and intellectual principles, which have hitherto survived that annihilating process to which they have been exposed.

The first incidents which I shall relate, will show that the prisoners have *sympathy* for, and take pleasure in *relieving the distressed*.

A female who had a husband in the prison, came with her two children, three hundred miles to see him. By the time she arrived, she had spent all

her money, and had suffered on the road. As soon as this was known, the prisoners made up a purse of fourteen dollars, and gave it to her, besides giving her cloth to dress both of her children.

Another time a father and mother came there to see their son, and being destitute, a purse of eight dollars was made up for them.

Another occasion for the charity of the prisoners was as follows:—The sentences of two of the prisoners had expired, but not having the money to pay the cost of their prosecution, they were not permitted by the keeper to leave the prison. When this was known, the sum required was immediately made up and given to them, and they were discharged.

By another train of incidents, it will appear, that they are pleased with religious worship, and love to hear the preaching of the gospel.

They always attend when there is preaching, and listen with a degree of interest and earnestness, which no preacher has failed to notice.

When, after years of earnest application, they obtained leave to form a choir of singers for religious purposes, they furnished their own books and instruments, not being able to get them of the keepers.

On another occasion, a company of them bought a lot of tracts for gratuitous distribution in the prison.

As an expression of their sense of the importance of preaching, and of the faithfulness of their Chaplain, they gave him money to purchase him a coat.

At another time, they contributed about twenty dollars to a society which had been formed to send the gospel to prisons.

A cluster of promiscuous incidents which I am now going to group together, will demonstrate the existence of *other* excellent qualities.

Husbands and children are particularly careful to keep their earnings, and at convenient times, send them to their parents and families. Others are diligent at work, that they may have the means of making a decent

appearance when they get their liberty. Some apply themselves to books, and a few have made astonishing progress in the sciences. I knew one who made himself master of Euclid's Elements, Ferguson's Astronomy, Stuart's Intellectual and Paley's Moral Philosophy. Another made himself acquainted with most of the branches in a liberal education. And many others became very good common scholars. Not a few of them are chaste and moral in their conversation, and civil and exemplary in all their conduct. And that they are not so lost to the virtues of our nature, as some who are in different circumstances, is evident from the fact, that they are proverbially, an *industrious* community.

I dwell with pleasure on these virtues, which still smile and diffuse their fragrance in the midst of surrounding desolation; and some of them are found in every breast of that unhappy multitude. The fact is, there are a great many principles of moral excellence, which go to the formation of a *perfect character*; and it is *never* that *all* of these can be found destroyed, or uprooted, in any one individual. That monster over whose breast has been hung the pall of every virtue, never *was* and never *can* be found. Some seed, some root, some germ, remains to repair the desolation, and to smile in perfect growth and endless beauty, where ruin has been the deepest. Hence the hope of reformation. Hence the strongest argument to attempt it, both in ourselves and others. The pulse of spiritual or moral health is still beating in all those guilty souls, and proper attention would soon restore them to its blissful enjoyment.

On the other hand, they exhibit many of the very *worst* passions and principles of fallen nature, in their *worst* and most *appalling* light. Against this charge nothing can be said in their vindication. My only object in introducing this sketch, is, to show, that though many of the virtues of the upright heart have been destroyed from theirs, *all* of them have not. There are some good and excellent qualities remaining in every one of them; and I wish to turn the thoughts and efforts of our Benevolent Societies to their improvement. This is an inviting field for them to labor in, and they could not labor here in vain. Christ came from heaven to save *prisoners*, and the servants of Christ ought to be willing to follow his example and visit prisons too. He might have kept better company in heaven, or gone on an

embassy to less guilty worlds, but he came to us, to sinners, to prisoners, to save us from sin, and free us from chains.

CRIMES AND PUNISHMENTS.

In a state prison, almost every action of the prisoners, not particularly mentioned in the By-Laws, is either a crime or not, according to the whim that happens to be in the breast of the keeper at the time it is done. Hence there are many actions punished, and sometimes very severely, which were not known to have been improper at the time they were committed, but which, by a very common *post facto* process, became crimes *afterwards*. Any thing which a prisoner does or neglects to do, is, if the guard or keeper who notices it, has any spite to gratify, dressed up in a criminal suit and made a pretext for punishment. To smile or look sober, to speak or keep silence, to walk or sit still, is alike criminal when convenience requires.

It is, also, a rule of conduct with the keepers, to punish *all* for the crime of *one*. Instances of this are very common. I will mention some of them.

There was a little upstart dandy among the prisoners, who on one occasion, had his hair cut by order of his keeper a little shorter than his vanity desired. Displeased with this, he immediately had all his hair cut down to one quarter of an inch; and on account of this criminal vanity and resentment in him, every head in the prison was scissored down to a quarter of an inch for more than two years.

To make his displeasure fall with full force on one of the prisoners, the Warden once took every book out of the work shops and ordered that no prisoner should rest from his work two minutes at a time, from morning till night.

Because some of the prisoners have pretended that they were sick when they were not, every sick man is neglected.

Another fact in relation to crimes is, that some of the keepers have given their countenance and aid to the prisoners in the commission of them, and shared with them the profits of their wickedness. It is well known that some of the keepers have assisted the prisoners to get materials into the cells for weaving suspenders; and when woven, they have sold them and divided the money. Fine keepers! Fit men to reform the guilty! Assist the prisoners to steal, and divide the plunder!

But when we come to those crimes which are specified in the By-Laws, the most frequent grow out of the following sources:—

1. *Defects in the work.* For the smallest defect here, the prisoner is often made to feel severely. What is so small that none but a malignant eye would notice it, some variation in the shade, something that could not have been avoided, is too often carried on to the books as a great crime, for which only ten days in the solitary cell can atone.

2. *Not keeping a proper distance in walking.* The laws require the prisoners to keep six feet apart in going to and returning from their cells and meals. This requires no small share of practical *trigonometry*, and if a prisoner should not be pretty good to learn, before he can possibly keep in the right spot, the guard will have an opportunity to give him a number of *solitary* lectures. Many a man, who thought he was exactly right, not knowing so well as the more learned guard, has been sent into punishment, and made to feel how sad a thing it is, not to understand the six feet *trigonometry*.

3. *Insolence* is another crime. This is committed very frequently, as an *accent* or *emphasis* is sufficient for this purpose. The keepers and guard are very tenacious of their dignity, and what the governor of the state would consider respectful language, if addressed to him, they consider *insolence*. If one should turn over the pages of the *black book*, he would find this crime written to the sorrow of many a prisoner.

4. *Not performing the task.* This crime is generally found against learners, who have not had time to become masters of their work. This, however, is no excuse, the task is fixed and must be done. Nor is it of any avail that the

materials have been poor, the complaint is,—*the work is not done*, and nothing but the *grave* can hide from, or avert the penalty.

5. *Speaking together without liberty*. Many are punished for this crime, and very justly in many instances no doubt, but not in all. If a prisoner is seen to move his lips this crime is written against him, and suffer he *must*.

6. The other crimes might be ranged under the heads of "*wasting the materials*"—"attempting to escape"—"*resisting the authority*," &c., all of which are frequently found in the books against the prisoners; and I know not that any criminal of these stamps has had much reason to complain, that his sufferings have been too severe.

This is the proper place to state the absolute authority of the keepers and guard over the destinies of the convicts. If one is *reported*, he *must* be punished, and that too without a *hearing*, and often without knowing the crime alleged against him. If he should ask the officer what his crime is, the answer would be, "*you know what it is*." After he finds out the crime, and desires to be released from punishment, the one who reported him must be consulted; and after *he* is willing, the sufferer must avow that he is guilty, and promise to reform, before he can get out. Innocent or guilty, it makes no difference, he must say—"I am guilty," or he will plead in vain to be released; and many a one has *lied by compulsion*, in order to get rid of further suffering. This was his only alternative, he must spot his soul with falsehood, or die a martyr to truth.

The punishments are of different kinds; the most common is that of confinement in the solitary cell. This is cruel and dreadful. The want of food reduces the strength and takes away the flesh, so that when the sufferer comes out, his face is often pale as death, his frame only a skeleton, and he unable to walk without reeling. He has only a small piece of bread once in twenty-four hours, with a pail of water; and no bed but the rock. In the winter he has a blanket, but such is the degree of cold to which he is exposed, that he has to keep walking and stamping *night and day*, to keep from freezing to death. And having no proper nourishment to sustain him, he becomes, under the joint influence of cold, fatigue, and hunger, a miracle of suffering, over which Satan himself might weep. Day after day, and night after night, he drags along his heavy and burdensome existence, friendless

and unpitied, the sport of his unfeeling keepers, and the victim of an *eternity* of torment. I know what this suffering is, for I have experienced it. Seven days and seven nights, in the dead of winter, I hung on the frozen mountain of this misery, and died a thousand deaths. Every day was an eternity, and every night forever and ever; and all this I endured because I incautiously smiled once in my life, when I happened to feel less gloomy than usual. But *my* suffering was nothing compared with others. Some spend twelve, some twenty, and some over thirty days there. My heart chills at the thought! If God is not more merciful than man, what will become of us?

Another kind of punishment is *the block and chain*. This is a log of wood, weighing from thirty to sixty pounds, to which a long chain is fastened, the other end of which is fastened around the sufferer's ankle. This he carries with him wherever he goes, and performs, with it, his daily task. This is not much used, it being *less severe* than the solitary cell. Some have carried these for several weeks, and even months.

The *iron jacket* is another form of punishment, inflicted only once in a great while. This is a frame of iron which confines the arms *down*, and *back*, and prevents the person from lying down with any comfort. This is generally accompanied with one of the other kinds of punishment, as it is not considered much inconvenience alone.

Connected with these several kinds of punishment is the putting the convict down from one of the upper stories if he is up there. The whole administration of the prison is clothed with terror, and there is no end to its vengeance. The first *form* of suffering is only the first *lash*, and each *additional* form comes in regular succession. This is the second lash. The third is this—the number of times that the prisoner has been in punishment, is always brought up when an application is made for a pardon. The Reporter of characters takes a full share of gratification in adverting to these, when a certificate of the conduct is given. I cannot mention this man's conduct without indignation. I hope he will find room for repentance, and obtain pardon from his God for his many vexatious acts in relation to the prisoners. I know of no man in whose breast so little humanity prevails. Every prisoner will carry to judgment a charge against him. One drop of

human sympathy never flowed in his veins. A mountain of ice has frozen around his heart. His acts of inhumanity would fill volumes, and it would require years to record them. I pity him from my soul, and though I have felt more than once, the weight of his *mercy*, I freely pardon him. If he should ever look on this page, I hope he will remember how unjustly he abused me, because he had the *power*, and I could not *help* myself. I wish also that he would think of Plumley, and the three times convicted sufferer of WOODSTOCK GREEN.

Besides those already mentioned, it may not be out of place to touch on a few of what may be called *extra judicial* inflictions, or those which are felt by the prisoners without the usual process of a "report in writing." These are—not sending their letters, nor admitting those sent to them—adding a yard to the task of a man, who did not feel like doing more than was *required* of him, and making him use the finest and most difficult materials—imposing the *worst* work, and allowing only the *poorest* tools. These, and many other vexatious practices, are as common as the return of day and night; so that the prison at Windsor is one of those gloomy and dreadful places, which image to the mind that house of woe and pain, where are weeping and wailing, and gnashing of teeth; where the worm dieth not and the fire is not quenched; and into which the wicked will be turned, and all the nations that forget God.

That the reader may have a full view of this subject, I shall give in the next chapter a multitude of cases, which will fully illustrate this very important and affecting part of my sketches.

SAMUEL E. GODFREY.

The case of Samuel E. Godfrey is one of deep and thrilling interest to every feeling heart. It is one of those numerous cases which stain the records of humanity, in which the guilt of a criminal is extenuated by the circumstances of its existence, and lost in the intensity of his sufferings. The fertile regions of Fancy cannot produce a theme more fruitful in incidents, and more painful in its melancholy details. It presents to our minds two principal sufferers, one pure and stainless as the mountain snow—a forlorn and destitute female; religion warming her crimeless heart, and virtue

sparkling in her tearful eyes, she deserted not, in the hour of his afflictions, the companion of her better days, but hung, like an angel of mercy, on the bosom of his grief, and shared in every pang of his soul. The other claims not our sympathies as for an innocent sufferer, for crime had been on his hands, and guilt had made its stains on his heart. I do him no injustice by this statement; but I should stain my own conscience were I not to add, that he was a criminal by aggravation, and that had others acted more in accordance with the dictates of either religion or moral honesty, he would not have reddened his hands with the blood of his fellow-man, nor ended his days on a gallows.

In rescuing the history of this unfortunate sufferer from the grave of oblivion, I have but one motive, and this is, to do good. It contains volumes of instruction, and much of this is needed at the present day. Societies are formed and forming, with a view to improve the condition of suffering criminals by such a change in the discipline of prisons, as may conduce to their reformation; and these societies have a right to such information, as may enable them to act intelligently and efficiently. I also desire by this piece of history, to hold up the yet unpunished authors of the most unearthly sufferings, to the indignant scorn and righteous reprobation of all mankind. It is too often the case that the crimes of men in authority are sanctified by the duties of their office, and they screened from the arm of the law and the force of public contempt, by the necessity of the case. But the time has come to vindicate the sacred purity of public stations from this charge, by taking the robe from every unworthy incumbent, and inculcating the sentiment, both by precept and by practice, that there is no sanctuary for crime, and no justification for guilt.

With the history of Godfrey previous to the unhappy event which conducted him to the scaffold, I have nothing to do. At this time he was confined in the prison on a sentence of three years for a petty crime committed in Burlington near the close of the war. He had served about half of this term, and his conduct had been such as to justify an expectation of pardon, an application for which was pending before the executive, when the gloomy event transpired which sealed his dreadful doom. His wife, one of the most amiable of women, had gone to lay his petition before the Governor and Council, and plead the cause of her husband. Hope was

beginning to play around the darkness of his cell, and the anticipations of liberty were beginning to inspire his breast. His arms were almost thrown out to embrace the companion of his bosom and the friends of his heart. In the ear of fancy he heard the voice of his keeper saying—"GODFREY, YOU ARE FREE!" At this moment, by a sudden turn in the scale of his destiny, all the future was darkened, and the taper of life began to grow dim with despair. Driven to desperation by the unjust and cruel treatment of a petty officer of the prison, he committed the fatal deed, which gave rise to that train of sufferings, and developed those traits of unfeeling cruelty in his persecutors, which I am going to describe; and which terminated his mortal existence on the gallows.

His employment was weaving; a given number of yards each day was his task. At the time under consideration, he took what he had woven and handed it over to his keeper, and as usual, he was found to have done his task, and performed as much labor as was required of any of the prisoners, and to have done his work well. While he was conversing with the keeper on the subject of his labor he remarked that he had done more than he meant to.—This gave offence, and he immediately corrected the expression, and gave, as what he designed to say, that he had wove more than he *thought* he had. But this did not give satisfaction; and the master weaver coming up at the time, a consultation was held with him by the keeper, which resulted in a complaint against Godfrey to the Warden, for "insolence." This complaint was made by the advice of the master weaver, who wrote it with his own hand, as he acknowledges in his testimony before the court. "I advised Mr. Rodgers to report him, and wrote the report." These are his own words, and as a reason for his conduct, he further says; "I had understood that there was a combination among the prisoners not to weave over a certain quantity."

Such was the crime alleged in the complaint, which I desire to have noticed very particularly. It was not that he had not performed his full task. It was not that his work was not *well* done. But it was that he said—"I have done more than I meant to," which he immediately softened by saying—"I mean I have done more than I thought I had." And when I shall have informed you what the consequence of such a complaint was, what the punishment it procured, you will be able to appreciate the character of those

who entered the complaint, and the greatness of the provocation it gave to the unhappy victim to commit the assault which followed.

The laws of the prison were very severe. When any one was reported to the Warden for any crime, he was, without any hearing, committed to a solitary cell, as dark as a tomb, and confined there on bread and water for a number of days, seldom less than a week, at the pleasure of the keepers. The cell is stone; the prisoner is allowed no bed or blanket, and only four ounces of bread a day; and before he can be released from this grave of the living, he must humble himself, plead guilty, whether he is or not, acknowledge the justice of his sufferings, and promise to do better for the time to come. To such suffering and ignominy was Godfrey doomed for that shadow of a crime, and who can wonder at the rashness and desperation to which he was driven.

Soon after the complaint was sent to the Warden the prisoners were called to dinner, and Godfrey with the rest. After the tables were dismissed, as Godfrey was going out of the dining room, the Warden, who was present, ordered him to stop. Knowing by this that he was reported, and the thought of the punishment to which he had been so unjustly and unfeelingly devoted, crossing his mind, he became enraged, and resolved to be avenged on his persecutor before he submitted to the authority of the Warden.

Fired with this rash determination, he entered the shop, took a leg of one of the loom seats, which he cut away with a knife that he had taken for this purpose from a shoe-bench; and with the knife and club, he went into an affray with Rodgers the keeper, who had complained of him. He struck at him a few times, but without effect, his club catching in some yarn which was hung overhead. Seeing the affray, Mr. Hewlet, the Warden, went to the assistance of Rodgers, which brought Godfrey between them. Armed with sharp and heavy swords, they began to play upon their victim, and soon the floor began to drink the blood which, with those instruments of death, they had drawn from his mangled head. So unmercifully did they cut and bruise him that one of the prisoners laid hold of Mr. Hewlet, and begged of him for God's sake not to commit murder. It was during this struggle that Mr. Hewlet received a stab in his side, but from what hand no one could say positively, though no one doubts it was done by Godfrey. That it was done,

however, without malice, and that he had no recollection of the act afterwards, ought not to be questioned after his dying testimony. The first that was seen of the knife was when it was lying on the floor in the blood. Faint with the blows he had endured, and from the loss of blood, Godfrey sunk down from the unequal conflict on the sill of a loom. Mr. Hewlet putting his hand up to his side, said he was wounded, and was led into the house, and the affray ended.

Mr. Hewlet had been afflicted with the consumption for years, and no one who knew him thought he would live long; and he was evidently sensible himself that his end was nigh. He would frequently complain of pains in his breast, on which he would often lay his hand and say, "I am all gone." In this state of health, the wound he received in his side inflaming, he lingered about six weeks and expired. From a post mortem examination, it was found that the knife had entered in the direction, and near the left lobe of the liver; and as that was entirely consumed, it was the opinion of the surgeons, that the knife had entered it, and produced an inflammation which was the cause of his death. It was the unanimous opinion of the surgeons that Mr. Hewlet's death was caused by the wound.

Godfrey was taken from the scene of the affray, and lodged in the place of punishment, and no attention of any kind was paid to the wounds in his head. No doubt many would have rejoiced if he had died, and nothing but the utmost care on his part prevented his wounds inflaming, and leading to a fatal result. He used to keep his head bound up with a piece of cotton cloth, and constantly wet with urine, the only medicine he could obtain; and by this means he preserved his life to endure more indignity and suffering, and die under the hand of the executioner.

As soon as Mr. Hewlet died, complaint was entered to the Grand Jury against Godfrey and an indictment for murder found against him. Immediately after this was done, the keepers and guard began to torment him with the most unfeeling allusions to his anticipated death. They insulted his sufferings—told him that they should soon see him on the gallows—and exulted above measure when they could kindle his worst feelings, and draw from him an angry expression. This was the theme of their cruel tongues continually, and I here affirm, without fear of contradiction, that greater

outrage was never practiced on the feelings of a criminal by a mean and unprincipled mob, than Godfrey endured from those who had been placed over him as guards, and who were under a solemn oath to treat all the prisoners with kindness and humanity.

Nor was this feeling and disposition to torment a degraded sufferer, confined to the petty servants of the prison; it marked the conduct of all, and even the highest officers of the Institution seemed to take an infernal satisfaction in creating terrors to harass his mind. At one time they would dwell on the *certainty* that he would be *hung*, and at another inform him that his gallows should be erected over the large gate of the prison-yard, and so high that all the prisoners and all the village might see him. Surrounded by such fiends incarnate, he groaned away his dreadful hours till the time arrived for his trial.

There were many individuals who felt an interest in the issue of this trial, and who had serious doubts as to his being guilty of murder. Among these were Messrs. Hutchinson and Marsh, who volunteered their services as his counsel. They defended him with a zeal and eloquence which did them honor. But the die was cast against him, and he was condemned to suffer as a murderer. It was the opinion of some that he would be found guilty of only manslaughter, and then his sentence would be imprisonment for a great number of years or for life. This was mentioned to him, as a source of comfort, by his friends, but he always spoke of returning to the prison with the utmost horror. "No," said he, "not the prison, but the gallows,—if I cannot have liberty, give me death,—I would rather die than go back to prison for six months."

It is said that adversity is woman's hour—that female loveliness shines brightest in the dark. I have no doubt that this is always the case; in the present instance I know it was. Godfrey had a wife, and the best man on earth never deserved a better one. With a fortitude that affliction could not for a moment weaken, she hung around his sorrows, and flew with angel swiftness to relieve his burdened soul. She went to the governor and obtained a short reprieve for her condemned husband; and his counsel interposed and obtained for him another trial.

He was now remanded to the prison to wait a year before the court was to meet and give him a re-hearing. I have no doubt that he would have chosen death rather than this, had not the seraph tenderness of his wife thrown a charm around his being.

During this year he experienced the same vexations that had attended him before his trial. And the tiger hearts of his keepers even improved on their former cruelty, and created in his mind the spectre which haunted his midnight hours, and painted before his terrified imagination his lifeless body quivering under the dissecting knife.—They also most basely and falsely threw out to him insinuations against the purity of his wife. And as if impatient for his blood, they contrived to shed some of it before hand, as a kind of first fruits to their unholy thirst for vengeance. This was done by provoking him into a rage, and then falling upon him with a sharp sword and forcing the edge of it by repeated blows against his hand, with which he aimed to defend himself, and of which he then lost the use.

At length the year rolled away, and he was placed again at the bar of his country, to answer to a charge which involved his life. The same noble spirits continued his counsel; but the verdict was given against him, and sentence of death was again pronounced. Unwilling to abandon him yet, his counsel obtained for him another hearing, at another court which was to sit in one year from that time, and till then he was obliged to return to the bosom of his tormentors.

During this year he found one friend in Mr. Adams, his keeper. This man had the milk of human kindness in his breast, and he treated his prisoner in such a manner as to obtain his warmest gratitude, and deserve the respect of all mankind. During this year, few incidents transpired worthy of notice. Godfrey had a good room, and was allowed a few tools with which he manufactured some toys, the sale of which gave him the means of supplying himself with such little articles of comfort as his situation required. This was the last year of his life. At the session of the court he was again convicted, and the sentence of death was soon after executed upon him.

Previous to his execution he dictated a brief history of his life, and his dying speech, which were printed and read with great avidity. In his dying

speech, he makes a solemn and earnest request, that his remains may be permitted to rest in peace, and not be disturbed by those "human vultures," who were anxious to do to his body what they could not do to his soul. He had no fear of death, but he shuddered at the thought of being dissected by the doctors. But those who had no feelings of compassion for him while he was living, disregarded his dying request, and his bones were afterwards found bleaching in the storms of heaven, on a lonely spot where they had been thrown to avoid detection.

His wife was with him during his last hours. He evinced no dread in view of death, but with a composure almost super-human, he watched the approach of the dreadful hour which was to release him from earth, and as he firmly believed, introduce him to the joys of heaven. He was treated very kindly by his humane keeper, of whom he speaks in the highest terms in his last words. He received the different clergymen with respect and affection, as they called to see him, and was fully prepared, in his own mind, to leave the world. The morning of the fatal day witnessed his parting with his wife, till they shall meet in heaven. She entered his room—closely folded in each other's arms, they seated themselves on the side of his bed, their tears mingling as they fell, and neither of them able to speak a word. Their eyes were rivetted on each other, and the expression of their looks might have pierced a heart of marble. Lost in the dreadful reality of his doom, they were insensible of the passing minutes, till the rattling of the keys awoke them from their awful reverie, and signified that the last moment had come, and that they must part. She tore away from his clasping embrace—sighs were her only sounds, and her tears fell on the cold stone floor of his prison as she with slow—reluctant—and hesitating step, passed away from the object of her tenderest love. His eyes followed her till she was far out of the room and out of his sight. Then wiping his eyes, he said to his companions—"It is all over—you will see no more tears from me. This is what I have long dreaded; it is now past, and I shall die like a man."

He attended to the religious services with much propriety. After he arrived on the gallows, he informed the concourse of people around him that he had prepared his Farewell Speech which was in print, and that they might obtain and read it. When the chaplain made the last prayer, he knelt on the scaffold. After this, taking leave of his attendants, and casting a calm

look on the throng by which he was surrounded, then on the near and more distant hills, and lastly on the clear blue heavens, he told the officer that he was ready.—The cap was then drawn—the scaffold was dropped—and his sufferings were ended.

In view of this melancholy history, the mind will naturally inquire, what good reason had Rodgers and F*** for entering that complaint which led to such direful results? what had Godfrey done? Is it a crime deserving of punishment for a man to say, "I have done more than I meant to," when he had done his full task, and done it well? especially after he explained by saying, "I have wove more than I thought I had"? Is this a crime? Was it right to treat a prisoner, who had always behaved well, in such a manner as this? What excuse is there for those who reported him? Let me, in concluding this sketch, hold up to the notice of all men,—saints and sinners, bond and free, the man who, in his testimony on the trial, said,—"I advised Mr. Rodgers to report him, and wrote the report. I had understood that there was a combination among the prisoners, not to weave over a certain quantity."

ROWLEY.

This was an old man of near eighty. He had been worth a great fortune, and was then in possession of property to the amount of about twenty thousand dollars. In the prison he found no indulgence for age, no compassion for the sick, no pity for the suffering, and he was scarcely in it before he was put in punishment. There was at that time a guard named French, who had been a soldier at Burlington, and who said that he had been employed by Rowley, when he was not on army duty, to cut corn stalks, and that he had cheated him out of his pay. This he reported to the prisoners and keepers; and now he thought he should have a good opportunity to be revenged. Accordingly he kept him in the solitary cell, and wearing a block and chain, most of the time. The old man could not look, speak, or walk, but French would report him; and so well was it understood that he was suffering for this old grudge, that when any one saw him going to the cell, the remark was immediately made—"Rowley is paying French for the stalks."

The punishment thus begun, was carried on during the five years of his sentence. He was the common mark for every little stripling, who wished to get into the graces of his superiors, by doing some deed of cruelty; and I presume he was in punishment three years out of the five to which he was sentenced. No allowance was made for his years—his want of sight—or his infirmities; he was in the power of man, an unsocial crabbed old creature it is true, but *still* a human being, and entitled to the *common mercy* of a state prison. But the "*stalks*" were always green on the memory of his keepers, and they could not endure to see him out of the cell. He lived, however, in spite of them, to see the end of his sentence and to return to his family, where he soon after died.

Much as French and others are to be blamed for their conduct towards this man, the *burden* of condemnation rests on those, who were bound by the oath of their office, to protect the prisoners from "cruelty and inhumanity" in the guard. Ought such personal feelings to be indulged towards a prostrate victim? Can that man be worthy of any office, who can stoop to such criminal meanness? I am told that French has since become a christian, and I sincerely hope he has; for I am well persuaded that it will require many years time, and many a bitter tear, to purify his conscience from the iniquity of the "*corn stalks*."

COLLIER.

This man entered the prison under the influence of a cold which he had taken in gaol. He was in the bloom of youth, and as bright as young men in general. Not feeling well, he did not always do so much work as was required of him, and consequently soon began to feel that he was in a prison. The iron storm of punishment began to beat upon him, and he was so affected by it, that he lost the use of his limbs in a great measure, of his speech for some time, and finally of his reason. The treatment he received would make the records of the inquisition blush. Starvation, chains, and the cold cell were the only mercies he experienced. At a certain time when he was unable to speak, as he was sitting in the cook-room, the Warden entered, and declared that he would make him speak or kill him. To effect this, he took him by the hair of his head, and dragged him round the room, pulling and jerking him with all his might, and crying all the time, "speak or

I'll kill you!"—Reader, have you ever read Howard's Prisons of Europe? It was in *Europe* that *he* found so much misery and cruelty; but this is in *America*. Yet here, see that Warden of a prison, dragging a prisoner by the hair of his head, and declaring his intention to kill him if he did not speak. Inhuman man! where is your heart, if you have any? Will God suffer you to go unpunished for thus trampling on His authority, and abusing your fellow man?

After exhausting all his strength, the Warden gave up, without either making him speak, or killing him. Every prisoner's heart burned within him, when he saw what this poor unfortunate man was suffering, and what might become his own doom. I wonder that every one of them did not spring forward, and rescue the sufferer from the wicked hands of that heartless tyrant. I wonder that the earth which bore up the lion-hearted despot, did not open and destroy him. But this is not the end of Collier's sufferings from the same man.

Reduced by disease, and unable to be in the yard, the doctor ordered him to be put into the hospital, and properly attended to. While he was there, the Warden went up to see him. Unkind visit! for he took with him a horsewhip, and before he left him, he used it with lusty arm about his naked back, until he was quite exhausted, and till demons might have trembled at the superior depravity and heartlessness of man. This visit was repeated *once*, and perhaps twice, and the same medicine administered.

Such was the conduct of the Warden, of whom the laws of the prison say, that "with the powers entrusted to him it cannot be necessary for him to *strike* his prisoners; much less can it answer any *good* purpose for him to give his command in a threatening tone, or accompanied with oaths; but he shall give his commands with *kindness* and dignity, and enforce them with promptitude and firmness."—"He shall never strike a prisoner except in self-defence, or in defence of those assisting him in the discharge of his duty." With this part of the laws of the prison before us, no comment on the acts of the Warden, in the cases cited above, is necessary.

After wading through seas of affliction—after losing his reason—after he had outlived the ability of his destroyers to torment him further, he went home to his mother, a fair specimen of the Warden's mercy.—His ruined

form is before me—I see his vacant look—I hear his unmeaning words—my soul sickens—my nerve trembles—I can neither think nor write.

PERRY.

This man had led a very wicked life, and as the fruit of his sins, a very unpleasant disease kept frequently reminding him that the pleasures of sin are a lasting bitter.—With this complaint he was often confined to his room. At length it was conjectured that he was not so sick as he pretended, and a resolution was formed that he should go into the shop and do his work like the other prisoners. To this, however, he objected, declaring that he was sick, and not able to be in the shop. But when the king commands, he must be obeyed; and so a course of preparations was made to make Perry well and get him out to work.

In the first place, a long board was provided, with straps to fasten it on his back, by lashing the sides around his arms, and neck, and body. This being properly adjusted, a rope was fastened round under his arms, and he was drawn up by it as if under a gallows, so as to just permit his toes to touch the ground. This was done in the yard, before all the prisoners, and keepers, and spectators from without; and it was repeated every day for as much as a week. After he had hung there a suitable time, he was let down, and being unable to stand, he would fall directly to the ground. Then the keepers would throw whole buckets of water on him, drawn cold from the cistern. Often would they dash these directly in his face. After this, they would hang him up again, so that the medicine of the rope, the board, and the bucket, had a fair opportunity to exert their sanative properties. The patient lived through it, and so did St. John live through the boiling oil, but the strength of human nature is no excuse for those who delight in cruelty. The man who maliciously gives me poison is a murderer, though my constitution is proof against it; and the fact that Perry outlived this process, is no evidence that he was not sick.

I have not the least sympathy for this man on account of what he suffered from his disease. I am glad that providence has appended to the impure gratification of sensual desires, some dreadful recoil of suffering; that when the loveliness of virtue cannot charm, the deformity and wretchedness of

vice may appeal. But I have copied this sketch from my memorandum, to shew how men in office can descend to what would degrade a savage. If Perry was as bad as sin itself, no one had any right to torture him. I have copied it also as a specimen of what *many* sick men have had to endure.

ROBBINS.

There was among the keepers a man who cherished some feelings, which accorded very illy with his christian profession. In his very countenance there was a something which indicated the peculiar quality of his soul. Resentment, jealousy, cruelty, and suspicion, like so many infernal spirits, kennelled in his eyes, and growled through his snarling voice. This human shape had,—unfortunately for her—a wife who was a weaver; and he brought some yarn into the prison to have it warped for her. Robbins was at this time the warper, and the unlucky task of warping for this lady, fell to him. He performed the duty assigned him with his usual correctness, and the warp was sent out to Mrs. —, to be woven.

In beaming it on her loom, she broke and tangled the warp to such a degree, that she could not weave it; and then said that it was spoiled in warping. This was enough for her husband; he had long had a spite against Robbins, and now he had a fine opportunity to glut his pious vengeance. Accordingly he wrote a complaint to the Warden, covering the whole warp which his wife had spoiled, and many other crimes, which were not of any consequence alone, but which added to the great one of the warp, made it look quite black. This report, drawing an appendix of consequential *et ceteras*, as long as the pen with which they were written, was sent to the proper officer, and Robbins was doomed to lie fourteen days and nights in a solitary cell, and live on four ounces of bread for each twenty-four hours. What makes this treatment of a helpless prisoner the more abominable is, that Robbins was always known to do his work in the best manner possible. No comment is necessary; and I leave that gentleman's conscience tangled in that warp, till he makes restitution to abused humanity.

P. FANE.

Every line in the sketch that I am now going to transcribe from my original record, ought to be written in letters of blood. It presents a complication of crimes as foul as human wickedness can perpetrate, and a society of criminals whose breath would pollute the atmosphere of Paradise. I shall be very particular in noticing every important circumstance in this case, and in suppressing those feelings of indignation, which at this distance of time and place, kindle in my breast, when the gushing blood and dying image of the victim rise up before my mind.

Fane was an Irish youth of about twenty, and had no relatives, acquaintances, or friends in this country. For some petty crime he was sent to the prison for three years. He was of a sprightly but harmless turn of mind, and he did not at all times keep a prudent check upon his vivacity; which was the cause of his suffering now and then the lashes of that authority, which, always frowning itself, could not endure the sight of a smile. But the greatest difficulty was, he could not perform so much labor as was required of him, and what he *did* perform was not always so good as was expected by his rulers. Why it should be thought a crime for a man not to learn a trade, so as to do a full day's work at it, in the brief space of three months, I am unable to say; and why any one should expect from a learner the perfection of a master, is equally strange. But none of these considerations entered into the purposes of his superiors, and he was consequently in perpetual punishment, either in the solitary cell, or in carrying round the yard and shop a large block of wood chained to his ankle.

In one or the other of these states of suffering, Fane spent much of the short time of life allotted to him after he entered the prison. About the time of his bloody catastrophe, he was associated with Plumley and two brothers by the name of Higgins, who were quite as much under the frown of authority as himself; and at this time they were all in chains, but compelled to do their daily task on the loom. Spending their nights in the same room, and being equally rash and reckless, they formed a resolution to attempt an escape by forcing their way, by means of some planks and a ladder, over the wall. This was to be done early in the morning, as soon as they were let out of the room. A more foolish plan could not have been laid, for, with the means they used, no one could have made his way over the high walls of

the prison. Such, however, was their plan, and each one having his particular part assigned him, they were determined to try to effect their escape.

To this rash act, the injustice and inhumanity of their sufferings, no doubt prompted them; and it is a truth which will one day be made manifest, that most of the enormities committed by prisoners, have sprung from the same source. Should prisoners be treated with proper tenderness, instead of being tortured as they are, *thirty* reformatations would take place where *one* does not now. I speak this from observation and experience; and I am constrained to add, that many of the keepers are as far from amiable and virtuous principles, and from morality of conduct, as the prisoners. I allude not to the keepers as a *body*, for I am happy to know that there are some of them, who are, in every sense of the terms, *benevolent, upright and gentlemanly*. These condemn the conduct of the others as severely as I *can*, and they ought to be respected as redeeming spirits amidst the fallen and depraved ones with whom they are under the necessity of associating. Their number, however, is comparatively small, and they do not generally stay long.

Before Fane and his party could make their rash attempt, they were under the necessity of delivering themselves from their chains, which was an easy task. While they were doing this in their room, the night before the time fixed upon to escape, they made some noise with their file, which drew some of the keepers to the window of their room to listen. By this means they learned the whole plan—heard them talk it over—knew it was to be the next morning as soon as the doors were opened—knew all the steps in contemplation—knew that they had freed themselves from their chains, and were in perfect readiness for the morning. All this was known to the authority of the prison the night before, as I was often told by several of the keepers, and particularly by the deputy keeper, with whom I conversed freely and fully on the subject.

And here I should like to submit the question, whether, with this knowledge in his possession, the Warden acted right in letting these four men out of their room? Ought he not to have kept them in till the other prisoners had got to their work, and then told them that their plan was known, and that it was too late to make the attempt? Had he done this, he

would have been commended, and one of the most unhappy events would have been prevented. If it is a true principle of law, that he, who not only does not *prevent*, but virtually affords facilities for the commission of a *crime*, is in some degree guilty of that crime, then I will leave the Warden of the prison to answer for the death of Fane.

In the morning, they were let out, and they went forward like madmen to their fatal project. A lad of about seventeen was on the wall as guard. Prepared for the event, he watched them as they advanced with their plank, and placed it against the wall, but made no attempt to fire. The first that went up were the Higginses and Plumley; Fane was in another part of the yard after a small ladder, which he broke in removing it from its place. Finding that the ladder was broken, and that their other means were insufficient, they retired from the wall, abandoned the attempt, and went behind the chapel. No shot was discharged at either of *them*; but when Fane, who had not yet been at the wall, ran up that way, before he got within three rods of it, the guard levelled his musket at his head, as deliberately as if he were going to shoot at game, and dropped him lifeless on the ground. The ball passed through his temple, and a buck shot through his cheek; the blood gushed out of his head in a large stream, and ran down on the ground nearly a rod.

It has always appeared strange to me, that the guard did not fire on one of the others, but reserved his death-shot for Fane. He was asked this question once, and also why he fired *at all*, and his answer was, that Fane was throwing stones at him, one of which, he said, hit him on the cheek. This however, was not true: I saw Fane from the time he came out of his room till he fell dead, and I saw him throw nothing. Indeed he *could not* have thrown any thing, for as he lay in death, he had firmly clenched in one hand, the chain which he had cut from his leg, and in the other, the knife which he had used as a saw in cutting it. These I saw in his hands the minute he fell, and I know that, with them, he could not have thrown a stone or any thing else.

But if Fane's throwing a stone at him was crime enough to deserve death, why did he not deal out the same punishment to Higgins? He had the same provocation from him that he pretended to have had from Fane, for Higgins

threw a club at him, after he had shot his friend, which, if it had hit him, would have killed him; but he sent no shot at *him*. The fact is, Fane was an Irishman, and there was no friend to look after him, but the others had relatives near; and *if it was determined that one of them should be killed to impress a dread on the rest*, Fane was the *pre-determined* victim. I do not say that such was the case, but if it was not, I should like to know why they were let out of the room, when their plot was so well known? and, also, why Fane, who was the least outrageous of the four, should have been shot, and no attempt made on any of the others?

After he had committed this bloody crime, the guard began to be alarmed, and thought of going off. That his conscience thundered, I have no doubt; and that the sentiment of guilt which pierced his soul, should array the gallows before him, was what might have been expected. He was, however, consoled by his superiors, and the coroner's verdict, that Fane came to his death in consequence of the guard's doing his duty, calmed him completely, in respect to his *legal* apprehensions.

I have no disposition to censure the verdict of the jury of inquest; they no doubt acted conscientiously. Still, I doubt very much whether it was the *duty* of the guard to *kill* Patrick Fane. If it *was*, on what account? Was there any danger of his escaping? No; this was not pretended. Was the guard in any danger of personal violence? No. The story of stones being thrown at him is destitute of all proof but the guard's own assertion, and is confuted by a hundred eye witnesses. What, then, rendered it his duty to kill his prisoner? It was *not* his duty; neither the law nor the facts in the case made it so; and a justification of that deathly act, can be found in no established principle of jurisprudence, or of moral conduct. If he had fired towards him merely to *alarm* him, or if he had wounded him slightly in his legs, he might have been excused; but to deal in death at once, and that without any just cause, is a crime for which we shall seek in vain for either excuse or extenuation.

I do not, however, mean to deal too severely with this young and inexperienced guard; he was under authority, and he had orders to obey. But I mean to exhort those who gave him such orders to settle the case with their consciences, that they may die in peace. He has suffered much since

that fatal morning, and for many years his countenance denoted that all was not peace within. I pity him, and most sincerely do I hope, that no other promising young man will ever listen to the voice of the aged, and do that which will bring the blood of a fellow being on his soul.

After the alarm was over, Plumley and the Higginses were committed to the solitary cells, and Fane was left weltering in his blood till afternoon, in full view of all the prisoners, and of the hundreds of citizens who came in to see him.

About this time, preparations began to be made to bury him. A principal officer in the place told the carpenter to make a box of rough boards not regarding the shape at all. "Don't," said he, "make a coffin, but a *box*, and bury him in his clothes, just as he is." The carpenter, however, took it upon himself to make a coffin, and to make a very good one.

During the afternoon, a very remarkable alteration was made in the funeral preparations. Instead of burying him in his clothes, as was directed, he was dragged on the ground like a dead dog, round to the other side of the chapel, and there stripped, laid on a board, and washed all over with brine; his head cleaned, and his hair combed, and then wrapped up in a clean sheet. This was paying his remains a degree of respect which was never paid to a prisoner before, and the inquiry was very naturally made—"What does it mean?" Some thought that the hearts of the keepers began to relent, and that this was a sign of a troubled conscience. Others thought *differently*, but it remained for time to explain the mystery.

The burying place is in the yard of the prison, and close by the building in which the prisoners sleep. There Fane was buried in the neat and clean style described above. Those who buried him, thought that his body *might* be taken up and given to the doctors for dissection, and to be *certain*, they marked the grave in such a way that it could not be disturbed without their knowing it.

The next morning the grave was examined, but no alteration had taken place; but the second morning, the grave was found to have been opened, and the news went through the prison like a flash of lightning. "What! is it not enough to murder him, must his body be disturbed and given to the

doctors?" was the indignant and wrathful expression of every tongue. The whole prison was in a blaze, and the united demand of the prisoners for an explanation was not trifled with. At noon the principal officers came into the dining room, when all the prisoners were assembled for dinner, and each of them made a speech, touching the subject of the violated grave; and it is due to them both, to give the reader their speeches unaltered, that he may judge of their guilt or innocence from their own words.

The Warden said, that a suspicion appeared to exist, that Fane's body had been taken away, but he thought without foundation. The grave did not appear to him to have been touched. At any rate, if the body was gone, *he* knew nothing of it, and he did not think that any of the keepers or guard did. He could not see how it could be dug up, and the prisoners not hear it, as the grave was so near them. But if that *could* be done, he thought it could have been taken out of the yard but by one of two ways, and if it went through either of these, the noise of the great gates must have been heard. His opinion was, that his body was still in the grave; but if it had been taken away, *he* knew nothing about it, and he did not think that any of the rest of the keepers did.

This was the poorest speech I ever heard that man make, and his appearance told too plainly to be misunderstood, that from some cause or other, his mind was troubled. I do not mean to say that he removed the body himself, but when you hear the other speech, you will know that the prisoners had reason to suspect something.

The Superintendent said: "I clear nobody. That grave has been disturbed, and the body has evidently been removed. I did not once dream of such a thing; if I had had the least suspicion of it, I would have placed a guard there. It was his sacred bed till the morning of the resurrection, and no one had any right to disturb him. I don't know what to think, but I know that there is guilt somewhere, and, as the Superintendent of the prison, I will spend five hundred dollars but that I will find something about it."

This satisfied the prisoners of the innocence of the Superintendent, but not of the Warden. They retired to work fully convinced that the Warden knew about the removal of the body, and that conviction has not been worn off, but confirmed by after reflection. The reasons for supposing that the

Warden was knowing to the disinterment of Fane's body, I shall now state, leaving the reader to judge of their force.

1. The Warden had a son at that time studying in the medical college at Hanover, only fourteen miles distant from the prison.

2. He ordered the body to be washed in brine, and laid out in a clean sheet, a mark of respect not granted to other prisoners.

3. The body *was* taken away, and it could not have been removed without the knowledge of the guard, who was on duty that night; for he passed directly by the grave every hour and a half all night, and sat so near it at all the other times, that he could hear a nut shell fall on it. It was then impossible for the body to be taken away without his knowledge; it could not have been stolen away by any one in the short time of an hour and a half, nor could the grave have been opened and closed without giving alarm.

And it was equally impossible for *one* of the guard to know this, and be accessory to it, without letting others into the secret, for one was on duty only an hour and a half, when he was relieved by another.

Nor could *all* the guard have combined in this without the knowledge of the deputy keeper, for the keys were all in his care. Nor would any of the keepers or guard have dared to commit such an act, without the Warden's instructions. Without his knowledge this could not.

4. The Warden's *guilty* appearance; his effort to make it appear that the grave had not been touched; and if it had been, that *he* and all the *keepers* and *guard* were innocent.

5. The fact that nothing was ever done by him to find the body—no reward offered by him—no stir of any kind—but the business was hushed up, and the prisoners not allowed to speak of it to their friends, or mention it in any of their letters.

6. It became after a few years an undisputed report, that the Warden permitted the body to be removed for the benefit of his son; and the manner

of the removal, and the persons engaged in it, were the subjects of frequent conversation.

Such are the reasons for believing that the Warden was the principal agent in the removal of the body. It is not my office to render verdict on the evidence adduced, but I may be permitted to say that *if* he was guilty, he was not fit for his office. The crime, according to the laws of that state, is severely punished; and aggravated as it was, if *he* was guilty, imprisonment for life would not have been too great a penalty. He was an officer of high trust, and he could not have been guilty of that crime without connecting it with perjury and burglary. And if to these be added the crime of being accessory to his death I would ask what can be wanting to cap the climax of his iniquity?

I do not say that any of these sins belong to him. He *may* be innocent, notwithstanding all these appearances and I could wish that he were. There is darkness around the subject, too much for him if he is not guilty, but not enough if he is. One thing is certain, it will be known at some future day; and if he should finally have to plead guilty before his God, his punishment will not linger then, though he may escape it here. He had taken an oath to enforce the laws, and abide by them himself, and in particular to treat his prisoners tenderly and humanely; and if instead of doing so, he broke them, and became the destroyer of life, and the disturber of the repose of the dead, I envy him not his peace of mind in this world, nor his doom in the next.

The Higginses and Plumley were confined in the solitary cells on bread and water for thirty days, a punishment by many degrees more painful than death. This was the second time that Plumley had endured that punishment, and this laid the foundation for that disease which carried him down a neglected and suffering victim to the grave. The Higginses served their time out and were discharged.

Various reports were circulated about the guard who shot Fane. He left that part of the country in a few years, and went to the West, where, it was reported, he gave himself up to drinking, and became deranged. For the truth of these reports I shall not vouch, though I firmly believe them, and I am well assured that he never can think of PATRICK FANE without remorse.

It escaped my recollection in the proper place, that one of the prisoners was looking out of his cell window near the grave the night that Fane's body was taken, and saw the deputy Warden so distinctly as to be able to describe his dress and appearance, which he did in *his* presence, before all the officers and prisoners. The deputy noticed how particular the description was, and said, with a blushing smile—"He has described me exactly." No doubt he felt the force of his conduct, and conscience evidently was accusing him. This is another evidence that the body was taken by permission of the officers, and with their assistance.

A YOUTH.

From some cause unknown to me, the subject of this sketch had been deranged some time before he was sent to prison, and the effect produced on his mind was still visible in his looks and manners. Naturally, he possessed bright and interesting traits of mind, and a very amiable and engaging temper; but when reason abandoned him, he became sullen, and if crossed in his wishes, was furious and untameable.

Not long after his commitment, the frequent vexations he had to meet with, and the unsympathizing temperament of his keepers, drove him to distraction. In this situation he was a fine object for the relentless severity of those, who should have treated him with the most humane and tender regard. None but the most thoroughly hardened, could have tortured a poor friendless and phrensied mortal, as he was tortured by his guard and keepers.

In the first place, he was punished because he did not perform his appointed labor, which, it was evident, was more than he *could* have accomplished, if he had been in his right mind. This threw him into the most raging phrensy, and inspired the genius of cruelty with new life and energy.

To confine him, an iron jacket was provided, which kept his arms close to his body; and a new invention of iron, heavy and rough, brought his hands together, and confined them across his breast. This needless and inhuman contrivance wore the flesh from his hands and wrists, and kept them

constantly bleeding. Thus bound in iron, worse than fancy paints the victims of Satanic sport in the world of wo, he was confined in a small cell, to groan out his misery in doleful cries, or sit in silent meditation on the *mercy* of man to man.

I cannot think of this ruined lad without growing chill with horror. I hear now his phrensied shrieks! His unearthly murmurings are still falling with deathly emphasis on my soul!—O! my God! of what is the heart of man composed! Days, weeks, and months, he filled that dungeon with vocal misery; and yet no angel mercy drew near him to comfort or to pity; but the tiger looks of heartless man were his only sunshine, and frowns were his only music!

In this work of torture, one of the keepers gave himself an infernal distinction over the rest. Not satisfied with contemplating in this youth, the double ruin of body and mind, with a passion for torture which I hope has returned to the breast of him whom alone it might not disgrace, he used to beat him with his sword and his fist, and allow him only a famishing morsel of food. So unmercifully did he abuse this poor maniac, that he was mistaken by him for the *devil*—if indeed, it was a mistake—and declared to be the terror of his waking, and the odious spectre of his sleeping hours.

DEAN.

Only fourteen years had rolled over this boy's head, when he became a prisoner in Windsor on a sentence of three years. Rude, but not vicious—lively without design—and less experienced than a man of sixty, he was a promising victim for the *irrespective* discipline of that dreary place. He soon took up his abode in the solitary cell, and there, young as he was, he spent much of his time, both in summer and winter. Fifteen days at a time has that little boy been in the cell in the dead of winter, with only one blanket, and a piece of bread not larger than his hand once in a day. All night long have I heard him cry, and plead to be let out, that he might not freeze; but no reply could he get from the keeper but—"Stop your noise—shut your head—learn to keep out—I hope you'll freeze."

To say nothing about the impropriety and unmercifulness of such conduct to *any* prisoner, how does it appear in a man of sufficient years to know better, towards a small boy. Would Lucifer himself have treated even a young *christian* so? Every one knew that Dean was by no means a *bad* boy; he was thoughtless and imprudent, but never did he deserve such cruel treatment. Indeed such punishments as are properly called *cruel*, cannot be *constitutionally* inflicted on *any* one, much less on a boy; nor for any *offence*, much less for a *trifle*. I here hold up to the view of humanity this tortured youth—his ears frozen, his limbs shivering, his fingers numb and red as blood, pinched with hunger, exhausted by exercise to prevent freezing to death, and dying for want of sleep. I hold him up in this predicament, amid the gloom of the solitary cell for some trifling error, at the dark and silent hour of midnight, in the cold months of winter, pleading for his life, and comforted only by this snarling reply of the guard, "Stop your noise." Yes, I hold him up in such circumstances, where I have often heard his piercing cries, and ask the beholders to read in him the *common mercy* of that "*merciful Institution*."

This is a *penitentiary*. It was erected as such. The laws consider it in this light. It is made the duty of the officers to have an especial eye, in all their conduct, to the moral reformation of the prisoners. How inconsistent, then, must such conduct be? Can such cruelty on any person do him any good? Rather would not such treatment have the effect, even on a saint, to make him a sinner? But look at the punishment of this little boy. What he endured would have crushed a giant. No account made of his age and inexperience—no thought of the *kind* and *degree* of correction suited to him—no feelings of compassion; but the steel-hearted man, who ought to have thought of his own children of the same age, met this young unthinking trespasser on some of the *minor* rules of the limbo, like a hungry bear, and threw him into the infernal machinery of his vengeance.

CHAMBERLAIN.

This man was a harmless lunatic. He never offered the least violence to any one, and was as unfit a subject of punishment as is commonly found. He did not, as might have been expected of any one in his situation, attend very closely to his work, and what he *did* do, was not very *well* done. By

this he came under the letter of that common law which makes no allowance for bodily or mental imperfections, and was introduced to the solitary cell. He now found a home, and he soon became perfectly acclimated, and seemed not to care whether he was in the cell or out of it. When it was found that he was contented in that place, he was let out, and doomed to wear a block and chain; and between these two modes of suffering, he was kept in constant vibration. There was no feeling in the hearts of his punishers. What though God had set his mark on him in the ruin of his mind, and thus by his own signet commended him to the sympathy and protection of his fellow-men? What though no being on earth could give him a moment's penal suffering without trampling on all the principles of right, and propriety, and law, and insulting the majesty of Heaven in the abuse of its subjects? They had the *power*, and they gloried in its unfeeling and most outrageous abuse.

As an evidence of the manner in which this poor lunatic was used, I will relate an illustrative circumstance.

He was lying one day on the ground, with his huge block and chain by his side. The keeper went to him and said, "Chamberlain, you must go into the solitary cell." "I must?" said he; "let me see. I have been out—*one—two—three days*—yes, it is time; I have not been out so long before this great while."

I would not dwell on these gloomy sketches—I could not prevail on myself to torture the public mind by the recital of such abusive, inhuman, and infamous acts, did I not hope, by this means, to do something that may ultimately effect a *cure* for these evils. This is to be done *only* by holding up the evils, in all their dimensions and enormity, to the eye of the public; and painful as is the task, I hope God will give me strength to support it, and to go on untiring, till the object is accomplished. These representations of human misery ought to elicit human sympathy, and inspire human effort for their removal. I know the things that I write; I have tasted the wormwood and the gall; and though my heart sickens at the remembrance of these things, still I have put my hand to the plough, and I will not look back.

MRS. BURNHAM.

Among those records of the past which fill the soul of man with the keenest pain, and fix the darkest stain on the pages of human guilt;—on that blood-red sheet that exhibits the mutual rage, persecution, and burning of religious fanatics, I have found an account of a woman who was doomed to the stake in such a situation that in the midst of her sufferings in the flames, she became a *mother*. The book dropped from my hand as I read this dreadful story, and I regretted my relation to a race of beings, capable of such iron-hearted cruelty and infernal guilt. But this was in ENGLAND, and it was some consolation to my sickening heart to reflect that I was an AMERICAN. I felt a sort of national pride, and wrapped myself up in the delusion, in which too many are now slumbering, that such things belong exclusively to the Old World, and will never blacken the history of the New. How foolish are such national prejudices; how absurd and contrary to all experience, to suppose that *local* circumstances will alter the moral nature of man. The lion loses not his ferocity by treading the soil or breathing the air of Massachusetts; and the founder of Providence can testify, that the pious settlers of New England caught the spirit of persecution as they were flying from its faggots and fire. Man is *man*, wherever you find him. By nature a tyrant, and ever glorying in the extension and display of his authority, every human being is either a pope or a Nero, and would become as offensive to God, and as dreadful to the human race as they were, if placed in the same circumstances. With the exception of those who are brought under the influence of the spirit of the gospel, this is universally true; and all the improvements of the arts and sciences and of civilization, are but so many refined inventions in the rebellion of earth against heaven. Christianity makes the only grand and radical difference among men. This brings all who heartily embrace it back to the authority of heaven, while all others are forcing themselves on to the perfection of a character as opposed to God and mutual happiness, as Beelzebub is to the Saviour of the world. I am now going to introduce a sketch which will evince the aptness of Americans in imitating the cruelties of Europe. "England is what Athens was," says Phillips, and too soon, I fear will America rival England in those things which she professes to abhor. With how much reason I apprehend this, the following account, among others, will shew.

Mrs. Burnham had committed a crime as foul as sin could inspire, and I am not going to plead her cause. She ought to have been punished, and that

severely, but not at the *time*, nor in the manner she was. She was married, and at the time of her trial and sentence, it was known that in a short time she would need a *sort* and *degree* of attention, which prisons were never designed to give; but no regard was paid to her situation, and she was sentenced to be confined in the State Prison, to hard labor for a number of years. What a child unborn had done to be doomed to date its birth in a prison, I leave for those to determine, who have read more law than I have.

The place of her abode was a small room, with one small and strongly grated window. From every hall the noise and tumult of the prisoners was forced directly upon her ears; and in the large space from which her room was partitioned off, was placed a guard during every night. Her food was such as the other prisoners had, and her other treatment of the same kind.

In this place she spent her time till a few days before her confinement; when she was taken into the keeper's house till her babe was a few weeks old, and then sent back with it into her room. How she fared while in the house, I know not, as no prisoner visited that apartment at the time, to my knowledge; but the report is not at all in favor of the family residing in the house at the time. How she fared in the prison I need no one to inform me. One of the men who attended her, is gone to the world of spirits, and I hope he has found mercy of his God. Of another that had the care of her I can say, that if they that *show* no mercy *find* none, it is high time for him to agree with his adversary, lest he, in turn, shall find a small room till he shall pay the utmost farthing. The insult which that woman had to suffer—the indignity—the abuse—the oppression, are all recorded in a book that will be opened in the day of Judgment, and if all men shall be judged according to their actions, and receive according to the deeds done in the body, many will regret their conduct towards this afflicted and injured woman.

I might dwell with painful minuteness on this sketch, but from the nature of its details, this is no place for them. The great facts are *enough* for my purpose, and *too much* for the happiness or credit of those who are concerned. The deeply infamous truth on which I wish to fix the mind of the reader, is, the *situation* of the woman when she was sentenced. What the law in such cases may be I know not, but I envy no man a station which compels him to such a deed as must carry horror to every mind that has the

least sense of propriety, humanity, or justice. If the law makes no provision in such cases, then have we attained to a degree of refinement that would disgrace a savage. But if the law *does* provide for such cases, where is that man's fitness for his station who denied this woman all the benefit of that provision, and inflicted on her a lash which made her unborn infant bleed?

Another circumstance to be noticed is, her treatment in the prison. The subject is too delicate to be treated here, with any degree of particularity. Even the most corrupt of the prisoners was often indignant at the low and vulgar insults that were offered to her by those whose only excuse is, that they knew no better.

"Immodest words admit of no defence,
For want of decency is want of sense."

She survived this train of abuse and cruelty, and the Governor and Council to their credit, and to the honor of the state, permitted her to return to her husband and family, as soon as her case could come before them.

I know not with what feelings the public mind will contemplate the fact recorded in this sketch; but I hope, most devoutly, that it will be universally reprobated. I shall carefully observe its effect, and note it down as a sure indication of the tone of American morals and American sentiment. My bosom will expand with national pride, or my cheek redden with national shame, in the same proportion that such conduct is condemned or sanctioned by public opinion. It is no excuse for such conduct that the sufferer had sinned. I well know that she merited the severest punishment; for the soul freezes at the thought of her crime. But to every thing there is a proper season, and it is *not* the proper season to punish a sinning female when a child *unborn* is to be put in peril. As well might the Creator send an unborn infant to hell with its sinful mother.

TREATMENT OF THE SICK, AND BURIAL OF THE DEAD.

While a man is in health, he can endure hardship, and support himself under the pressure of almost any calamity; but when his health fails, he sinks down a nerveless victim, and lies exposed to the mercy of those evils he can no longer resist. It is the sick that, of all the sufferers in this world, most need the pity and compassion of their fellow mortals, and whose neglect and sufferings cry the loudest to heaven. To sickness, all are equally exposed, the high and the low, the virtuous and the vicious, the saint and the sinner; and not to compassionate and relieve them, is a crime which speaks the deep depravity of the heart, and which will by no means pass unpunished. But if the want of sympathy and tender feelings for the sick, is such a crime, what must be said of that man, who can sport with their misery, and take an infernal satisfaction in increasing it?

The sick in Windsor prison are considered as *criminal* in their sickness, and *punished* rather than comforted. It is not often that a prisoner can get into the place appointed for the sick, until his case is hopeless, and not always then, for many die before they can convince the keepers that they are sick. A very convenient excuse for this neglect is, that many have pretended to be sick, and have been treated as such, when they were perfectly well. This I know is true, and such hypocrites cannot be too severely dealt with; but this is no good reason why one who really needs attention, should be neglected. It is, however, another instance of visiting all for the crime of one.

The By-Laws require that "some fit person shall be appointed as a physician, whose duty shall be to visit the prison as often as once in every week, and oftener, if found necessary, to inquire into the health of the prisoners, to give directions relative to the conduct and regimen of the sick, and admit such patients into the hospital as he may judge necessary."

Another regulation in the By-Laws, in respect to the sick, is, that they shall take no medicine in any part of the prison except the hospital, unless they are unable to be removed thither; and the obvious meaning of the Laws is, that no medicine shall be prescribed by any but the physician. It is equally obvious that the physician is to be called upon whenever a serious complaint is made by any of the prisoners. Nor is it less obviously implied, that the sick shall be treated kindly. Such is the Law; let us see the practice.

When complaint of sickness is made by any of the prisoners, the keeper who has the care of the sick is sent for, and if the person is unable to work, he is taken to his room and shut up there to get well. No physician is sent for, except, perhaps, in one case out of fifty; and the patient is allowed no food but a dish of crust coffee and a piece of bread, once in twenty-four hours. This is his diet while he remains sick. When he is first shut up, he has an emetic given him, or a blister applied to his breast. This is almost always done, no matter what the complaint is; and should the physician attend twenty times at the hospital, he can scarcely ever see him. Sometimes the patient is bled, and all this is done by a man who has no *right* to prescribe, and who is as ignorant of all medicine as he is of the feelings of a kind and generous sympathy; and done too in a place where the Law *forbids* the use of medicine. But what are laws to tyrants? If the person has a firm constitution he generally outlives such cruelty, and returns to his work; but if his complaint continues, after much time, he is handed over to the physician, and takes his chance for life or death in the hospital.

I do not mean to reflect, generally, on the conduct of the physicians. With but few *serious*, and a number of *minor* exceptions, their conduct has been alike honorable to themselves and ornamental to their profession. The great difficulty with them, is, they have no *authority* to do any thing; the most they *can* do is to *advise*, in no instance can they *command*; and their advice is followed or not, as best suits the convenience or disposition of their master. If any officer in a prison ought to have supreme authority, it is the physician. Life and death are in his hands, and he ought to have all the power necessary to the full discharge of his professional duty. His prescription should be something more than *advice*, and he should have authority to punish all disobedience to his orders, and all cruelty or inhumanity to the sick. If the physicians of Windsor prison had been

invested with this power, such have been their general reputation for skill and humanity, that many an hour and month of keen distress would have been spared to the prisoners, and more than one life been preserved.

It cannot have escaped the notice of any one who has seen the treatment of the sick, that the keepers consider them no better than dogs, and are determined that they shall have no peace, sick or well. The iron-hearted discipline of the place is enough to rive the stoutest soul, and crush a heart as hard as marble; and in not a single instance has a prisoner escaped from it, if he has been there three or four years, without a ruinous impression that will go with him to his grave. But by a refinement of torture, which would be patented in the Court of the Inquisition, this mountain of uncalled-for oppression is rolled over, with double weight, on the sinking frame, and fainting heart, and trembling soul of the sick and dying. And to cover all this unearthly and inhuman conduct with a mantle, starred with *mercy*, and serene with *kindness*, the By-Laws are sent up every year to the Legislature, breathing the spirit of heaven, and written with tears of heart-bleeding compassion. Heaven-daring hypocrisy! I appeal to the keepers themselves—to the angels who have hovered over the sick—to the ghosts of Ellis and Burnham, whether there is a single drop of human feeling in the treatment of the sick. Away with the By-Laws as evidence against the declarations I have just made. How often has liberty triumphed in the Statutes of an unhappy country, long after tyranny had fettered every hand and every tongue in the empire. How often has piety remained in the letter of the prayer book and liturgy, years and centuries after the *spirit* had gone up to heaven, and the snows of human guilt had extinguished the last spark of the altar.

Not only are the sick neglected and unpitied by the officers and servants of the prison, the *Ministers*, also, neglect them. I have known men lie six months in the hospital, and die, without being visited by a single clergyman, or having even one christian call to pray with them. This speaks but little for the piety of Windsor; but such is the fact. It ought however to be understood, that the clergymen of that town are always willing to attend to any of the duties of their office, as well *in* the prison as *out* of it, when they know that they are wanted. I make but one exception to this remark, and that is only a *partial* one, for Mr. How—d was not *always* what I am

condemning. The great blow, then, must fall ultimately with the greatest weight on the keepers. But still, when the great and the pious men of the village were weeping over the miseries of sin in the far distant Isles of the Pacific, and in the lands of the rising and setting sun, and sending their property in Bibles, Tracts, and Missionaries to "the farthest verge of the green earth;" is it not a little wonderful that they should so have forgotten the "prison house," and the sin-ruined prisoners, famishing for the bread of life, in their own town, and within their own sight, as not to have blessed them with a single visit from their itinerant mercy? Would not a little attention to the wants of the neighborhood have been at least *excused*?

Neglected, however, as they are by Christians, many of the suffering tenants of that gloomy abode, have an arm to lean upon which bears them up, and a sun to shine around them, whose beams create their day. While the earth is disappearing, and their heart-strings are breaking, they can sing —

How sweet my minutes roll,
A mortal paleness on my cheek,
And glory in my soul!

It would gladden the hearts of christians to reflect on the happy deaths that have been witnessed in that place. There, religion appears in all her loveliness. When there is no kind friend to watch the fading cheek and close the sightless eye—when a mantle of everlasting black is falling on all the beauties of earth, and hiding the sun, moon, and stars for ever—when the blood is stopping, a cold and clammy sweat is gathering on the temples, and the heart is sinking down into the stillness of death; then it is that the value of that principle is appreciated, which charms all fears away, and calms the throbbing heart, and lights up in the soul the brightness of eternity. Then, in that immortal ecstasy that nothing but God can inspire, it enables the happy possessor to join with the millions who have gone before him, in this triumphant farewell to this vale of tears:—

On Jordan's stormy banks I stand,
And cast a wishful eye
To Canaan's fair and happy land,
Where my possessions lie,

O the transporting rapt'rous scene,
That rises to my sight;
Sweet fields array'd in living green,
And rivers of delight.

No chilling winds, nor pois'nous breath
Can reach that healthful shore;
Sickness and sorrow, pain and death,
Are felt and fear'd no more.

Fill'd with delight, my raptur'd soul
Can here no longer stay;
Tho' Jordan's waves around me roll,
Fearless I launch away.

After a prisoner dies, his friends can have his body if they wish it. If they do not call for it immediately, it is buried in the prison-yard; but if they should call for it any time afterwards, it would be disinterred and given to them.

The ceremony at the funeral is usually appropriate and solemn. Laid in a decent black coffin, the body is placed where all the prisoners can see the face, as they pass in Indian file by it. A clergyman always attends, makes some remarks, and then prays; after which the corpse is laid in the grave, and his memory is soon lost.

The house of the dead is no place to make a reflection, and the grave of the individual may be thought by many to be the place in which all that pertains to him should be buried. In general, perhaps, this is true, but not always; and I shall, before I leave the buried remains of the prisoners, record some facts which ought not be forgotten.

After their death, very sympathetic letters are written by order of the keeper, or by the keeper himself, to the friends of the deceased, stating how kindly he was treated, and how peacefully he died. I was called upon to write one of these letters, and I have not forgotten what directions were given me by the very man whom the dying prisoner considered his murderer.

During the prisoner's sickness, he frequently writes to his friends; but as his letters are examined by the keeper, and not sent unless approved, he cannot state his real condition and treatment, but must, in order to have his letter sent, at least *imply* that he is treated kindly. Hence many a friend is led to feel grateful to the officers, when perhaps their cruelty has caused the very death they deplore.

The circumstance I am now going to relate, involves the clergyman who attended the funeral of an old prisoner, who had given no signs of repentance, it is true, nor had he been the greatest sinner on earth. The remarks made on the occasion were as follows, verbatim et literatem, for I recorded them in stenography at the time.—"As I was coming down here," said he, "I was thinking of an old slave of a southern planter. Returning home one day, he was told that his master had gone a long journey, from which he would never return. He asked where he had gone, and was told that he had gone to heaven. 'No, no,' said the slave, 'Massa no gone to heaven. When Massa go a journey he talk about it a great while before hand, and make great preparation, but me never hear him say any thing about going to heaven.' I know nothing," said the preacher, "about the man who is going to the grave, but these thoughts came into my mind as I was coming from my house, and they struck me as appropriate to this occasion. Let us pray."

No comment is necessary on such insulting language over the ashes of a fellow mortal. Such a polluted stream denotes the quality of the fountain from which it flowed.

The next chapter will contain a diversity of cases to illustrate the remarks in this.

ELLIS.

This man was afflicted with the consumption. At the time with which this account commences, he was wasted to almost a shadow; the paleness of death was on his countenance—and his voice was feeble and trembling. Though under the care of the physician, and taking medicine every day, he was yet unable to get into the hospital, but was obliged to spend his days either in his cell, where he could obtain but little nourishment, or at his work in the shop. The scene now before me, was in the cook room, a place partly under ground, to which he had retired to rest himself, and find some relief from the pain which was continually shooting through his breast. In this room I saw him, and heard the following conversation between him and the Warden.

Ellis was lying on the brick hearth, with a block of wood for his pillow, when the Warden came in, and his voice was the only indication of life that he manifested. He intreated in the most moving language to be removed to the hospital, and made comfortable what little time he had to live.

Warden. If I thought you were sick, I would take care of you; but nothing ails you. If there does, you have brought it on yourself to get rid of work. I have been imposed on too often by those who pretend to be sick, and I am not to be deceived any more. You are as well as I am, and you shall not be treated as a sick man, till I have evidence that you *are* sick.

Ellis. I submit, sir; though whether you believe me sick or not *now*, time will soon convince you, that I do not counterfeit this appearance. I *am* sick—I cannot live long, and all I desire is, that I may receive proper attention, and be permitted to die in peace.

Warden. You are not sick; when you are, you shall have all necessary attention. I am not to be imposed on any more by those who are too lazy to work, and therefore pretend that they are sick.

Here the conversation ended; the Warden retired, and Ellis continued to enjoy his repose on the brick hearth, and his pillow of wood. Too weak to labour, and denied a place in the hospital, he continued in this condition a few days longer, when forced by the unequivocal indications of

approaching dissolution, he was transported to the proper place for the sick, and laid on a bed just in time to breathe his last.

The death of a prisoner causes no tender feelings in the breasts of some of the keepers, and when this death was announced, the eyes of many were expressive of satisfaction; and Mr. F*** said, with an air of malignant joy, "bad as he thought the place to be, he was not willing to die; he struggled for breath, looked anxiously round, and wanted to live longer."

Soon after his death was known in the yard, the Warden came into the cook-room where I was, but I am unable to paint his confused appearance. He well recollected what had passed in that room only a few days before, when the dying man plead for an easy bed to die on, but was denied. His head hung down, he turned every way to avoid looking those in the face who had heard his savage insults to the poor wretch who plead for mercy; at length he threw himself down on a seat by one of the tables, and said, in a manner which I hope will never be imitated—"Well, Ellis is dead." No one made any reply, and he added; "he has fulfilled his word; he said he would never be any benefit to us, and he never has."

The next day his remains were committed to the grave, where "the prisoners rest together, and hear not the voice of the oppressors." Dr. Torrey, the physician of the prison at this time, was highly displeased at the cruel neglect and unmerciful treatment of Ellis; and when prescribing, a few days after, for another prisoner, he said with emotions that did him honor—"This case must be *attended to*; it must *not* be *neglected* as the *other* was. *Shameful! DISGRACEFUL!*"

Shameful and disgraceful it certainly was to treat a dying man in this way. What man of ordinary feelings would have treated his dog, as the Warden treated Ellis? Is that man fit for any office in a humane Institution who could thus forget his kindred nature, and plant with thorns the death-bed of a brother? And ought there not to be a place for such monsters in human form, where they must drink of the cup which they have filled for others, and experience the pains they have inflicted? THERE IS JUST SUCH A PLACE.—There the rich man lifted up his eyes being in torments. And if those will be doomed to this place, of whom the Judge will say—"I was sick and in prison, and ye visited me not," what must be the fate of this

man, who locked up his *living* prisoners in the cell of *despair*, and threw the *dying* into a bed of *embers*?

A—— W——.

This young man was of a very feeble constitution, and was frequently a proper subject of medical treatment.—When a prisoner complained of being sick, he was very often permitted very kindly to take his choice of three things; 1, to take an emetic; 2, to go and do his usual task; or 3, to go into the cell and live on bread and water, and sleep on a stone floor. A. W. was taken sick and this choice was given to him; he took the emetic, remarking that he "might as well die one way as another." He was now left in his room, and for three days received no further attention. After this the physician visited him, and immediately ordered him to be moved into the hospital, where he suffered a severe course of fever.

Mr. Woodruff was the keeper who gave him the emetic, and he was much displeased when the physician rescued him from his hands. After the fever left him, and he went to his work, he was so weak that he applied to the physician for relief, and some bark and wine were ordered for him; but Mr. Woodruff thought fit to refuse the wine, and gave him only a small quantity of bark, and that of the poorest kind.

At another time when he was sick, and unable to do his task, I got some bark for him at my own expense, and wove as much over my task as he fell short of his, and caused it to be placed to his credit, to keep him out of punishment. This was done with the master weaver's knowledge, and was the only arrangement I could make to save him. It was nothing in his favor that he was sick; his task was required, and it must be done by himself or some one else.

The cruel man who allowed this youth no peace in his sickness, was very soon after doomed, in his turn, to a sickness which admitted of no comfort for him. His conduct in this instance is only a specimen of what it *generally* was. And when he became the prey to disease, he became sullen, unsocial, and desponding; evidently the victim of his own self-condemning reflections, and of that *retributive justice* which never suffers the wicked to

go unpunished. Let the other tyrants of that little world of cruelty, think of this, and remember that the cry of the oppressed is always heard in heaven.

M—— C——.

The influence of a punishment, almost too great for human nature to bear, had destroyed this man's health, and thrown him into a decline from which his friends had little hope of his recovery. His labor was at shoe-making, an employment very weakening to the breast, where his complaint was seated. Not being able to perform his task, his only alternative was to stay in his room, and live on gruel or bread and crust coffee, which he did whenever his complaint rendered it necessary. This was by no means pleasing to his keepers, and every effort was made to confine him to his shoe bench. The most conspicuous agent in this conspiracy against the peace of a sick man was the Warden. Availing himself of his authority, he called at C's room and desired him to walk out, which he did; then conducting him to the door of one of the solitary cells, he said—"C. you are not sick, and I am going to give you a choice of two things,—take that handkerchief from your head, and go to your work, and live like the other prisoners, or go into this cell and *die*."

In the spirit of a christian, he obeyed the command of his unfeeling tormentor, and repaired to his work. His case created him friends who procured him medicine, and changed his employment, so that he was enabled to comply with all demands, and thus he outlived the tyrant's rage. He is now, if living, in the bosom of his friends, enjoying the sweets of liberty, and possessing the confidence of the church as a faithful minister of the gospel.

BENTON.

This is another victim of neglect and cruelty. He began to decline soon after he entered the prison, but he applied in vain for help. *Work* was the order of the day, and sick or well it must be done. Every eye that saw this youth, the blasted hope of a widowed mother, observed the sure signs of a fixed consumption. His dry hacking cough, his sallow skin, his husky hair,

his hollow cheeks, could not be unobserved, nor their cause mistaken. Still he could get no help. Day after day of anxious suffering rolled heavily over his head, but no sympathy awoke for him in the breasts of his keepers. And it was not until all his strength was gone, and he was coughing up blood every day, that he could make them believe he was sick, and get a place in the hospital.

Removed to that place of death, the doctor called to see him—that doctor on whom he had called in vain for help when help was possible. As soon as he entered, his patient said—"Doctor you have come too late; I threw myself into your hands when you might have saved me, but you would not, and now I must die!" The appeal fell on his conscience, and he acknowledged his fault, but it was too late. He did, it is true, all he could after this to save him, but to no effect, and he died in a few weeks, calm, reconciled and prepared.

After he was confined, his mother came to wait upon him, and watch his closing eyes.—There is no limit to the affections of a mother. Holy nature prompts her to the place where her child is suffering. The iron doors, the massy walls, the dungeon's gloom, are no terrors to her imagination, if her son is there. Danger cannot intimidate; the world's scorn cannot deter; the crime and ingratitude of the child are forgotten. It is her *child*, and this omnipotent argument makes her forget herself to minister to the wants of her offspring. I could fill a volume with what my eyes have seen of a mother's fond, undying affection; and I cannot close this account of human suffering better, than by entreating all who have the power over young persons, to treat them in such a manner that their mothers may not be under the necessity of imputing the death of their children to their unfeeling neglect, and reckless severity.

SANDFORD.

I introduce this case to shew how sick men are often treated, after their keeper consents to give them medicine. He complained of not being very well, and was taken to his room, and ordered to take an emetic. This is a prescription for *every* thing, and is designed as a punishment rather than a remedy. The room was cold, and he was left alone to undergo the medicine.

The emetics are generally given in great and unusual quantities, that the effect may be the more painful, and how many have been killed by such prescriptions, the day of Judgment will publish. Sandford took his dose, and soon the effect convulsed him, and took away his senses. How long he had lain in this state no one knows. When the keeper entered his room he found him on the cold stone floor, and to all appearance dead. He was taken immediately to the hospital, and no one can imagine the acuteness of his sufferings, after he became sensible. He bled most profusely at the mouth, and it was evident that the convulsions into which he was thrown had ruptured some blood vessel in the region of the lungs, and for two years he was not able to leave the hospital, and never did he do another hour's work in the prison. How long he lived after he was released from the prison, I know not, but it is certain that he suffered more than to have died a thousand deaths, and it is not probable he ever enjoyed a well day after he took the fatal emetic.

Here is a proof how little regard is paid to justice or mercy in giving medicine to the sick. No man who has the feelings of his nature about him, would treat a dog half so cruelly as some of the sick are treated in this prison. Here was a man in the perfection of his strength, and in the morning of his days, ruined for life, by the ignorant and reckless prescriptions of a man who knew no more about medicine than a dunce. An excuse may be borrowed for him, because he was *allowed* to do so; but where is the excuse for the one who gave an ignorant and careless blockhead that authority?

A BLACKSMITH.

To say that this man was murdered, would be saying too much; but it will *not* be too much to say, that his death was caused by a spirit of cruelty that would disgrace a Turk. He entered the prison, a picture of health, at the age of about twenty-seven. Being a blacksmith, he was put to that business; but falling sick, he was soon unable to work at it, and tried to be placed at some employment better suited to his feeble health. In this he failed. He then applied to the doctor, and was ordered into the hospital. It was evident to all, that a consumption was hovering over his lungs, and he soon began to exhibit the symptoms of that disease fully settled. He coughed very violently, and raised blood very often, and in large quantities; his flesh

wasted away; his spirits sunk; and his strength departed. In this condition he was driven out to his shop and compelled to work, and not permitted to sleep in the hospital, but in a cell much less suited to his convenience. The excuse for this was, that he was fully able to do his work, and besides he was an ingenious smith, and might make tools to break out, if permitted to stay in the hospital during the night. The tyrant's plea is *necessity*. It is very convenient to have this, when no better can be found; but where is the necessity to torture a man because he is sick, and ingenious? This was the only plea, and on this he was driven out by a mean and unprincipled keeper, till a few days before he died; and when he went from his work the last time, he sunk down on the bed as soon as he reached the hospital, and never rose from it again.

The cry that he was able to work, and was counterfeiting his appearance, had been rung so long, that it triumphed over all the science and practice of the doctor, and led *him* to neglect him under the impression that he was a hypocrite. At last, his suffering, and dying, and persecuted patient said,—"Doctor, I wish you would do something for me."—"I *will* do something for you," was the significant and fatal reply; and he immediately ordered him large and frequent doses of calomel, which every novice in the medical art knew was a very fatal medicine to that complaint in its present confirmed stage. It was not long in doing its work, and the victim was laid in the earth. When the doctor was afterwards asked why he gave the calomel, he replied; "I knew its nature and effects, and I thought I would make short work of it."—I do not suppose that the physician intended to *kill* the man, but I suppose he meant to try an *experiment*. His opinion was, that the effect would soon be apparent, and be *fatal* if the disease were firmly seated; and I blame him for listening to those who had an interest in deceiving him, and not acting from his own *examination*, as he would in other cases.

The keeper who drove this dying man from the place provided for such sufferers, and made him labor when he ought to have been at rest, I knew *well*, and I have always considered him to be one of the most unfeeling, as well as ignorant, and unprincipled of the human race. This is not the only case in which I shall present him to the contempt of the reader, for many are

the dark records against him, and through many years was he an infernal spirit in the prison, a Satan to the sick, and a curse to the well.

A friend of mine watched with this man the night he died. Soon after he went into his room, he made an effort to rise. There was a remarkable expression in his countenance, and he was asked if the bell should be rung to call the keeper? He shook his head. His eyes opened very wide, and looked wishful and anxious. They then rolled back in his head and he lay a few minutes and then recovered. He said—"I thought I was going; if I have another such turn, send for the keeper." This was his last utterance. He lay for some time very still, and when the nurse went to him again he was dead.

In the bloom and strength of manhood, this unhappy man was hurried out of time, by those who should have been his friends and treated him kindly. No inscription is on his tomb. He sleeps in silent peace near the room in which he died; and his spirit is where the prisoners hear not the voice of oppressors.

LEVITT.

This young man had been under the influence of mental derangement a few years before he became a prisoner, and he had not yet so far recovered but that his mind was often very much depressed, and his ideas confused; and this induced an unhealthy and debilitated state of body. During one of these frequent seasons of disease, a phial of *nitric acid* was given him by the doctor, of which he was directed to take a few drops in half a tumbler of water twice a day. This prescription he followed a few days; and then one morning, in a fit of delirium, he took all that remained in an equal quantity of water at once. The effect was immediate; he was senseless, and stiffened with convulsions, and in this condition was conveyed to the hospital, where he endured for several weeks as much bodily pain as human nature can suffer.

For three or four weeks he was perfectly senseless to all appearance; he breathed, but almost imperceptibly; he could neither see nor hear; and the only indications of life were his feeble pulse and his feebler breath. While he lay in this condition, he was so shamefully neglected, that *certain living*

creatures began to inhabit his eyes! His clothes were not changed, his face was not washed, and all that was done for him was to administer the medicine prescribed and pour a little gruel into his mouth. No one supposed it possible for him to live, and he was left, in utter neglect, to die. His rash act was the theme of unfeeling and inhuman sport; and it was said that, as he wanted to die, it was a pity that he should not have his wish.

After a few weeks, however, contrary to all expectations, he began to give evidence of returning life. His head began to move, and it became apparent that he could hear; but he could not speak louder than the lowest whisper, and he could see nothing distinctly. At this time his iron-hearted keeper, in the luxury of his unearthly feelings, would move the candle before his eyes in order to draw his attention, and when he seemed not to notice it, he would thrust it close up to his face until he burned off all his eye brows.

By slow degrees he so far regained his health as to be able to walk about and perform some labor, though his voice was nothing but an audible whisper, and his eye-sight would not, with the best glass, enable him to read.

When he returned to his work, I had an opportunity of conversing with him, and I learned from his own lips the cause of his attempt at suicide, and his bodily feelings under the effect of the medicine he so rashly took. He said that life had lost all its charms to him; he had lost the confidence and respect of mankind, and nothing awaited him but ignominy, and the keen rebuke of a guilty conscience, which he was unable to bear. He dreaded to die, but he dreaded *more* to live. He had thought on the crime of suicide; he had thought also on the crimes of which he had *already* been guilty; and his conclusion was that the door of mercy was closed against him. "A guilty conscience! despair of the mercy of heaven! these," said he, "kept me in awful dread of the pains of eternal death; and convinced that this *dread* of hell was *worse* than the suffering dreaded, I resolved to know the *worst*, and hang no longer on the rack of anticipated destruction."

After taking the acid, he said that he had no distinct recollection of any thing till he began to recover. Then it seemed as if he was awaking from a long and dreadful sleep, and the only impression that he brought up with

him, in respect to his sufferings, was, that his breast had been a sea of fire, rolling to and fro, as if vexed by a tremendous tempest. Under this sea of fire, he was fixed in motionless agony, and it was not until the last flaming billow had rolled over him, that he could move or know whether he was living or dead.

The last time I had an opportunity of conversing with him, he told me that his views in respect to the mercy of God, were changed. "I now believe," said he, "that my Maker will have mercy on me, sinful as I am, and I mean to love him, and serve him, and '*wait* all the days of my appointed time till my change come.'" And I was delighted to hear him speak, in the simplicity of his soul, of that great goodness of which he was the living and speaking monument; and to observe how scrupulously conscientious he was in all his words and actions. What his future life has been I know not, but I well remember his pleasing change of mind, and I could not help believing that it was the *goodness* of God that led him to repentance.

How awfully certain is it that "the way of the transgressor is hard!" *This* poor sufferer found it so; and as no iniquity can go unpunished, there must be a dreadful retribution for the man, who, not only shut up his bowels of compassion from him, in the day of his afflictions, but sported, like a demon, with his dreadful condition. This prostrate sufferer had never injured his keeper, but was entitled to his kindness, and there is no excuse for that neglect and cruel torture, which he received at his hand. The laws of God and man, the laws of humanity, and even the laws of the prison, which demand for every prisoner, kindness, and for the sick, the best and most affectionate attention, were wantonly outraged by such conduct, which must in the estimation of every feeling heart, fix a lasting stain, not only on the guilty author of it, but on his *superiors* who suffered such iniquity to pass in silent approbation.

BURNHAM.

The crime for which this man was sentenced to imprisonment was so base, and so revolting to all the feelings of humanity, that I almost dread to describe his sufferings, lest the sympathies of the reader should lead him to

forget the greatness of the crime, in contemplating the miseries of the criminal. But it is possible for the worst man on earth to be abused, and murder would be murder still, though the victim were deserving of death. My design, then, in publishing this sketch, is, not to whiten the scarlet of crime with the tears of pity, but to hold up to public execration, a series of oppressions which could not be justified, nor their authors shielded from the just contempt of all good men, even if Satan himself had been the one oppressed.

The crime of Burnham ought never to be named; it is of too dreadful a character to be thought upon by any unperverted soul, without the utmost pain. Let it suffice to say, that a *conspiracy* was the means of effecting his infernal purpose; that this conspiracy had two *females* joined with him, to the everlasting infamy of their names; and that *another* female, *young*, *innocent*, and *amiable* was the *victim*. For this crime, he was justly doomed to a long confinement in the State Prison, and a similar doom was soon awarded to one of his female conspirators.

Every heart was glad that such a righteous retribution fell on this man's guilty head. I presume no tears were shed for him by any, except his wife and two children; and he has none to blame but himself, if this universal indignation bore hard upon him. His crime was *outrageous*; and the outraged morals of the land, and the insulted dignity of the laws, are sure to measure out their indignation according to the nature of the outrage. This is natural, and it is right; and if this reaction of a man's sins upon his own pate, should be marked by something extravagant and cruel, he who gave occasion for this extravagance and cruelty, should be the last one to complain. But when the expressions of public execration trample on all the rights of humanity, and violate the laws of nature, of the land, and of God—when the sufferings of a criminal are magnified *beyond* the laws, and rendered intense to a degree surpassing endurance—when, in fact, crime is punished at the expense of every principle of justice, humanity and religion, it is time to speak out, and inquire to what extent public indignation at crime may innocently go.

Every man is entitled to the protection of the laws as long as he obeys them; and every transgressor may be legally punished according to the law

he has violated; and if the law is a *reasonable* one, no fault can be found with any one for duly and fully executing it. But no punishment ought ever to be inflicted on any person, until he has been found guilty of a crime by the proper court; and then it must not exceed the sentence provided in the law. The sentence ought to be strictly legal, and then it is perfectly right that the criminal, in ordinary cases, should suffer it; but to go *beyond* the obvious meaning and spirit of the legal sentence in inflicting suffering for any crime, is alike unjust and cruel. If these views are correct, we can readily apply them in the case under consideration.

The sentence against Burnham was just, and it was the duty of his keepers to inflict it up to the letter. This sentence required him to be confined in the prison at hard labor, and treated according to the laws of the place. These laws require the prisoners to be kept constantly employed by the keeper, due regard being paid to their age, strength and circumstances. When any one is sick, it is the duty of the keeper to call the physician, and if the patient requires medicine, it must be administered to him in the hospital, if he is able to be moved there, as no prescription is to be made in any other apartment, unless the patient is unable to be conveyed to that. No fault can be found with the laws and regulations, authorized by the Legislature, for the government of the prison; and those which provide for the sick are such as *mercy herself* would approve. The only fault, then, which any one can find with them, is, that they are not complied with by the keepers, and the prisoner is not allowed the care and attention which they provide for him.

Burnham was soon taken sick. Bad as he was, he had some *feelings*; and *shame, regret* and *disappointment*, filled his soul with such distress, that his body began to feel the effect of his mental agony, and his strength, flesh, and spirits, began to vanish together. He applied to the physician, but was told that nothing ailed him. He was driven out from his room and compelled to work, when he had scarcely strength to stand. His knees trembled under the weight of his body, and the floor shook when he attempted to walk over it. Still, *he was not sick!* He was *cunning*, it was said, and was feigning his appearance, to avoid work, and get his liberty; and as the *doctor* said this, though every one who saw him knew better, the keepers had some pretext

for neglecting him, and treating him with severity, in which they took a most infernal satisfaction.

One morning he was driven out to the shop, and as he was inquiring of the keeper where he should go to work, that mean and despicable upstart gave him a sudden and violent blow with his hand, which threw him headlong on the brick floor of the shop. It was in vain that he attempted to rise; he had not strength enough to turn over when lying on his back; and the keeper indulged his inhuman feelings by striking him on his legs with his sword, and ordering him to get up. After some time, he obtained help and made out to get on his feet, and go to the place appointed for his labor.

In this way he passed through a few doleful weeks, suffering the greatest pain of body and of mind without sharing in the pity of any human being, but was made the *sport* of those who should have treated him with tenderness and humanity. As he moved through the yard, he appeared like a walking skeleton, a living death; and yet he could not get the smallest degree of the attention due to a sick man, for the voice of the doctor was against him. But the cup of his calamity was beginning to run over; nature was sinking under the mighty load of his afflictions; and aware of his approaching dissolution, he prepared to meet it, and left directions with some of his fellow prisoners to be sent to his son, where he wished to be buried. Thus composed, he waited but a few days, and death released him from earthly suffering.

It was on Sunday evening that he died. He went out to the cook-room, with the other prisoners, to supper, trembling and reeling through the yard like a drunken shadow; and when he returned into the prison after supper, scarcely had the last door been bolted when the cry was heard from his cell—"Burnham is dead!" At this moment the doctor was passing the prison, and hearing the cry, he came in. As he entered the hall, Burnham was brought out of his cell, and laid on the floor before him.—"Is he dead?" said this unworthy son of Galen, "I said yesterday that he was not sick, but it is evident he was." Yes, it is evident he was sick, but doctor, this is not the last of it. The man is *dead*, and the guilt of his death lies on your soul, and if you do not repent of this great wickedness, you will, in your turn, call for mercy, and find despair.

He was laid out in the hospital, where he was kept two days, till his friends came and took his body, and conveyed it to Woodstock for interment. During this time, the blood was almost continually running out of his mouth and nostrils, and a more dreadful picture of death was never seen.

On this case I have but few remarks to make, and in these, perhaps, I have been anticipated by the feeling reader.

One fact is obvious to every one who has read this account with attention—and this is, that Burnham was hastened to the grave, by the injustice and cruelty of the doctor and keepers. Had he been treated according to the spirit and letter of the laws, he might have been living now.

The laws of humanity should lead us to forget the crimes of a sick man in tender and sympathetic care and solicitude for his recovery; and he who can calmly hand over a fellow-being to the tormentors, when he knows that he needs that relief which it is his professed and sworn duty to impart, cannot be far from finished depravity. The truth of this remark is obvious, and while I have such a sense of Burnham's guilt, that I have scarcely a heart to pity him, I cannot help condemning, in the bitterest terms, that infernal process by which he was deliberately hastened to the grave.

[This is the man about whom the anti-masons of Vermont made such a stir. They caused a story to be reported that Burnham was a mason; that he had bribed his keepers, who were also masons; and was still living in the city of New-York. Strange as it may seem, this story was believed, and persons were found who declared that they had *seen* him, and learned from his own lips the fact of the bribery, and how the deathly farce was acted for him to get out of prison. He said, according to report, that he gave a thousand dollars, and that at the time he was supposed to have died, according to a previous plan which was mutually agreed upon, he pretended to die, and was carried into the hall in a blanket, when a corpse about his size was brought to take his place. The doors being open, this corpse was thrown into the blanket, and he was permitted to walk off. Such was the story, and thousands believed it; and into such a ferment was the public mind thrown, that the Legislature took up the business, and sent one of the

Council to New-York to ascertain the fact. He was faithful to his commission, and the story soon died. During the excitement, however, Burnham's body was dug up twice and examined.]

PLUMLEY.

"Man's inhumanity to man, makes countless thousands mourn." This poetic sentiment cannot find a more appropriate application, than in the case which I am going to relate. Plumley was one of that class of human beings, on whom nature had not been profusely lavish of her endowments, and he was, consequently, a fit tool for the master spirits of iniquity to practice upon. Only tell Plumley to do any thing, good or bad, right or wrong, it made no difference, and he would promptly obey, entirely reckless of the consequence; and hence it came to pass, that he had very often to suffer for the guilt of others.

These sufferings which were always severe, and sometimes extremely cruel, began finally to undermine his iron constitution, and open the way for disease. The last complaint he made was of pain and swelling of the left breast, accompanied with inflammation. He applied very frequently to the keeper and to the physician for medicine, and particularly, for a change or suspension of his employment, but to no purpose. Some medicinal drops were given him from time to time, but he could obtain no mercy in respect to his daily task. It was to no effect that he exhibited the *ocular demonstration* of his infirmity; his swollen and inflamed breast and side were considered no evidence of inability, and he was informed that he must either do his task or be *punished*.

Thus doomed to unpitied suffering, he made a virtue of necessity, and bore up under his calamity as well as he could, toiling all day, and writhing in keen distress all night, till death, more merciful than his keepers, kindly removed him from the power of their anger. Up to the last moment of his life, the full amount of labor was demanded of him; and he had been from his own work but a few hours, when the pulse of life stopped, and put an end to his misery.

After death his body was dissected and the most unequivocal indications of disease were discovered, both internally and externally,—but no *remorse* was discovered in his *oppressors*. His life was considered of no more account than that of a dog, and his memory was thrown into the grave with his *mangled* body. No tear of pity was dropped at his funeral—no "heart warmed with the glow of humanity"—but the "dust went to the dust as it was," without the least kindred sympathy in a single bosom, "and the soul to the God who gave it," to meet its tormentors in the great and terrible day of the Lord.

L. NOBLE.

This man could say from his own experience, that the way of the transgressor is hard, his whole life having been an alternation of crime and punishment. When out of prison he was ever in the act of, or in the preparation for, some violation of the law, but when in prison, he was orderly and submissive, and therefore deserved well of his keepers.

As sin had ruined his moral nature, so had intemperance his physical, and when his last sickness came upon him, his pain was as severe as humanity can suffer. His groans and shrieks echoed through the prison like the wailings of a lost spirit, but in vain was it that he begged for medicine; nor could he obtain a place in the hospital till a few hours before he died. The night before his death he mentioned a remedy which he had used in time past with effect, and desired to have it obtained for him, but could not prevail. After much importunity, however, the Warden promised him that he should have it on Monday. "But," said the dying man, "I cannot live till then, unless I obtain relief." This was on Saturday night, I think, and, on the evening after he was a corpse.

After his death, the chaplain was instructed that the death was sudden and unexpected; and he accordingly preached a sermon the following Sabbath, grounded on that information, and wove into his remarks a great deal of mercy which he said the dead man had experienced, in his last hours. I reflect not on the Chaplain, for he was so informed; but may God have mercy on that unfeeling tyrant, who denied medicine to a dying man; and pardon that hypocrisy which led him to cover his cruelty with the disguise

of compassion. I wish him no greater suffering, than the recollection of *Noble* will one day give to his soul.

QUARKENBUSH.

The case of this unhappy man will illustrate the danger and sin of permitting *ignorant* men, who never read a page on the science of medicine, to prescribe for the sick. Quarkenbush was taken very suddenly with a complaint in the region of the stomach and bowels, attended with inflammation and the most excruciating pains. He applied to the keeper who had charge of the sick, and he gave him the very worst medicine he could find for his case, which not only increased its violence, but prevented the proper medicine from taking effect when the physician was called. He lingered through about thirty hours of as much misery as human nature can bear, and died one of the most dreadful deaths recorded in history. Such was the intensity of the inflammation, that his surface was black with mortification before he died, and with the last strength remaining in his system, he threw up the putrid contents of his stomach, black and offensive as imagination can conceive, with a violence and copiousness of which the records of disease can scarcely furnish a parallel. He was opened by a trio of doctors, who paid richly for the information they obtained from such a mass of putrefaction, and immediately buried.

The proper remedy for his disease was physic, which should have been given frequently, till a cure was effected; but the only medicine given *him*, was opium, the effect of which is directly against what the case required. This was given in large quantities till the physician came, when the proper remedy was administered, but as on many other occasions, the doctor came "a day too late," and the death of the patient was, in the estimation of the keepers, the *unimportant* consequence.

Quarkenbush was a young man, and a wife and aged parents, with brothers and sisters, wept over his untimely grave. I was personally and intimately acquainted with him, and I know that his death was caused by an injudicious prescription. He was a victim to the *practical* regulations of the prison; and as there was crime in his death, some one must answer for his blood.

CORLISS.

The work of the prison must be done, life or death; and as some part of this work can be done by only one man, *that* man must never be *sick*. Corliss was the only man that could do correctly the work to which he was assigned, and as there was a call for him every hour in the day, so every hour in the day he *must* work, sick or well. All men are liable to be sick, and there was no more exemption for him than for others; but he *must* do his work whenever called for. The life of a prisoner is estimated in *cents*, and of his *happiness*, no account is made. His labor is all that renders him valuable, and to this he is ever goaded; and when he can do no more, then—"poor old horse, let him die."

Oppressed by constant toil, Corliss began at length to fail, and his countenance began to denote the nature of his disease; but he could gain no release from his work, and frequently was he called out of his cell, when his cough and deathly look should have admonished his keepers to prepare him a winding sheet, and forced to do the labor of a well man.

Finding at last that his working days were over, the keepers recommended him for a pardon, and he was released just in time to die. It is one of the practical regulations of the prison, to keep all the profitable prisoners as long as possible, and to pardon all such as are of no use. Another regulation is, that when the work requires a prisoner to be in a particular place, there he *must be at any rate*. This regulation has borne hard on many beside the subject of this sketch, and when it has crippled them for life, they are generally let out to die. The ghosts of many whom I saw nailed to this cross, are at this moment crossing my mind. I could fill a page with their names, and the pains that dart every hour through my shadowy form, admonish me that *my* escape from the same doom was rather visionary than real.

SAVERY.

The subject of this sketch was a liberally educated, and highly esteemed clergyman of the Baptist denomination. Unhappily for his own peace and that of his family, and for the honor of Christianity, he fell a victim to the

pressure of circumstances, and the force of temptation, and committed three distinct forgeries to a large amount, on one of which he was sentenced to the prison for seven years.

When he entered the prison he was an emblem of perfect health, and seemed to have a constitution that might smile at decay, and survive the ruins of an eternity. For some time no alteration in his appearance was visible, but the change of condition, from the pulpit to a dungeon, from respect to scorn, and from comfort to the want of all things, was more than he could endure, and disease began to admonish him that he was mortal.

He began now to learn a science that had not been taught him in college, and on which his divinity instructor had never lectured. He now for the first time in his life, had a practical demonstration of the solemn and humbling truth, that there is as much difference between the *profession* and the *practice* of piety, as there is between pedantry and real science; and that the priest and the Levite are the same now, as they were in the days of the good Samaritan. Christians left him to suffer without sympathy. Even the ministers of that holy religion which sends its votaries to the *sinner* wherever he may be found—which espouses the cause of the *prisoner*—and which says to the *backsliding*, "Return;" treated him with as much severity as language can convey. One of these, who only a few months before had taken counsel with him, and walked to the house of God, addressed to him from the pulpit the very words I am going to record. "Thou hypocrite!" said he, "dressed in the specious semblance of piety, while thy heart was filled with all abominations, a just and righteous retribution has fallen on thy guilty head!" Awful words these for one poor sinful mortal to use to another. They are the flame of an angry soul, and ill become the servants of him who, even when he was reviled, reviled not again. But if this was the spirit of the *priest*, what might not have been expected of the *people*? Alas! "like *priest* like people," for they too passed him in sullen silence, or with protruded lips.

Is this religion? If it is, away with it from the earth; it is the infamy and curse of the human race. Away with it and its votaries. It is worse than the religion of DAGON. If this is religion, I pray God that infidelity may banish it from the universe, of which it is the fellest scourge.

But this is *not* the religion of the *Bible*, though it is that of too many who are proud to be called christians. Though the prophets of Baal be four hundred, there is, however, an Elijah and a seven thousand who have not knelt at the shrine of an idol; but they are known only to *God* and his *suffering children*. The religion which they practice is compassion for the distressed; alms to the needy; charity for the wandering; and love to all men. Its walk is in stillness—its spirit is gentleness—and its home is the wayside, the hut of the poor, and the cell of the sufferer. This is religion, and none can tell better than the prisoner how much of this is on earth.

Reduced to this condition, Savery found in the conduct of professors so little of the spirit of their profession, that he frequently expressed to me his astonishment, and asked me if, with such specimens of christianity before them, the prisoners had not all become infidels. I know it will be said, that the prisoners are sinners, and they ought not to expect much kindness. True, they *are* sinners, and experience has taught them that they *need not* expect much tenderness; but, Christians, what is *your duty* to them? Look at this, think of your conduct, and be dumb!

Savery's sickness was of a few months duration, and he felt that, in a prison, the sick can find neither proper treatment, nor the least degree of sympathy. Perfectly convinced that the evils incident to a sick bed in that place, would be more than he could endure, he prepared for the worst; and in a short time he gave back his spirit to God, and left this world of woe. By kind treatment from his keepers, and christian conduct on the part of his *christian* acquaintances, his days might have been lengthened out for usefulness, both to the church and his family; but he is gone, and his unhappy fate says to every self-confident professor—"Let him that thinketh he standeth, take heed lest he fall."

OPPOSITION OF THE KEEPERS TO HAVING PREACHING IN THE PRISON.

Nothing can more strikingly demonstrate the opposition of the keepers to the means of grace in the prison, than the fact that twenty years after its foundation, nothing like a Sabbath school or Bible class, had ever been introduced—and that at no time had there been more than one short sermon in a week, and sometimes only one or two in the course of a year. Nor is it any to their credit as professors, that though there had always been men in the prison, who were fully qualified and desired to sing in meeting, not a solitary hymn were they permitted to sing in the chapel, till after the prison had been erected more than twelve years. The spirit of piety at one time reigned long enough to see a neat and very convenient chapel erected for the worship of God, but scarcely had the dust fallen on its seats, before it was converted into a place of daily labor, and the altar of religious worship set up in a cellar!

The captives began now to weep and hang their harps on the willows. No priest stood up to minister in holy things—the waters of life were shut out, and the last dying blaze went out on the altar. The triumph of Satan was now complete, and long did he hold his conquest in undisturbed and sullen peace. Those who have known what it is to sigh in vain for the ordinances of God's house, and pray and wait in vain to behold the face of him who publisheth salvation, can sympathize with the weeping prisoners, during the long "*dark age*" that followed. They bowed in submission to the calamity they could not avoid, but strove by every consistent and available means, to bring the long misery to an end. Like Michael and his angels fighting with the dragon and *his* angels, this conflict between the powers of light and darkness was long and painful, but finally triumphant.

The prisoners, at first, humbly petitioned the officers to let them have the benefit of preaching as they had done in times past. At first the justice of their plea was acknowledged, but the difficulty was, that no preacher could be obtained. The officers said, that they had tried every where within proper distance of the prison, but could not get a single preacher to visit that place, and do the duty of Chaplain.

This it was thought would set the business at rest, but it did not. The government of the state had made provision for preaching, and the officers were respectfully informed, that the prisoners could not be deprived of it, while half a dozen preachers were within a few miles, and three within a few rods; and their petition was always on the table when the authority could be approached. The strong plea of right, and law, and scripture was used, and the important fact kept in view, that if they had the means of grace at all, they must be *brought* to them, as they could not go where they were. All this was granted, but the same plea was eternally thrown over them all—"We can't get any body."

If they actually applied to the ministers, and could not prevail on them to attend, then the blame must fall on their heads. But did they? Rather did they not destroy the chapel to prevent their coming? And were they always admitted when they did come? Answer, you that can.

At length, one of the principal officers, and a very sanguine professor and church member, took a different stand and said in so many words—"PREACHING WILL DO NO GOOD HERE." Confounded to hear such language from such a source, and astonished to see the mask so fully thrown off, the prisoner who heard the expression, argued the officer out of his position, and sent him away penitently exclaiming—"O yes, it will do good, it will do good."

At another time, when this same man had been meeting the pleas of the prisoners for preaching by the old excuse—"I can't get any body"—one of them said to him, if he would permit *him* to make *one* trial, successful or unsuccessful, he would trouble him no more about preaching. Permit me, said he, to write an account of the destitution of the prison in respect to preaching, and the reasons of it, as you have assigned them, and send it to a Missionary Society in Boston, and I will never open my mouth again on

this subject to you. "If that were *necessary*," said the officer, "I could do it *myself*." "Then," replied the prisoner, "I take it for granted, that you do not consider it *necessary* for us to have preaching."

Frustrated in all their efforts to obtain a Chaplain, the prisoners tried another experiment; they applied to the "powers that were" for permission to have some christian man, from without, come in on the Lord's day and *read* a sermon. In this they anticipated success, but met disappointment. It was every way reasonable and pious, and good might have grown out of it; but, alas for the piety of somebody, no good man could be found to go up to the help of the Lord against the mighty. Is it to be supposed that there was not ONE man in the pious village of Windsor, who would have delighted to perform that office of kindness and love to his fellow men? The question must be settled between the men of that village and the officer who brought the charge against them.

Undespairing yet, another course was suggested, and the prisoners petitioned to be allowed to meet in the chapel on the Sabbath, and conduct meeting themselves, by praying and singing, and reading a sermon. To this, as they promised to find all their own books, it was thought there could no objection be made. But the human heart is prodigiously fertile in excuses for what it does not like to perform, and one was easily found to bar this petition. It was this. Christianity, blush for thy votaries.—"IT WILL NOT LOOK WELL TO SEE A PRISONER PRAY IN PUBLIC!!" I hope the Gentleman will remember this when he thinks of death and heaven. Praying was then struck out of the petition, but it was equally improper for a prisoner to *read* or *sing* in public. Invention was now exhausted, and the case was given up. But to cap the climax, one of the keepers said that *he* would read a sermon on the Sabbath, if *another* one would pray.

The keeper who offered to read a sermon, was by no means a pattern of piety. Lucifer and he would be alike *in* or *out* of their places any where. But he took on him the office of priest for once, and assembled the prisoners in the chapel on the Sabbath, and went into the desk, and read *part* of a sermon. There was no *praying*, for the one who had engaged to do that duty had fallen *back*, and *this* one did not know how. The next Sabbath he finished the sermon, and resigned the priesthood.

To suffer such indignity was truly painful. It was enough to be denied every religious favor year after year, without having religion and all that the soul holds dear, thus openly and outrageously profaned and scoffed at; and the petitions which had been so often made, trampled under foot with such a sacrilegious *sneer*. This was the sole design of the officer in reading as he did. He had distanced the patience and invention of those who desired "to behold the beauty of the Lord, and to inquire in his temple;" and now he must insult their disappointed hope. His tongue was the organ of profanity; with him religion was a fable; and with one deliberate act to pollute the altar, and insult the worshippers of God, he took the place of holy men, and drank his licentious draught from a consecrated bowl. Why did not the fingers appear, and trace his doom upon the wall?

One reason for this opposition to the introduction of the means of grace into the prison, probably, was the *hatred* which the keepers had to the holiness and purity of the gospel. I speak this with limitation, for there were always some who delighted in mercy, and who spoke well of religion. But the majority of the head ones were always with the priests of Baal.

Another reason was the *expense*. Every dime weighs something in the scale of their monied calculations, and every cent must be placed in the treasury. This did not *directly* enrich any of the officers, but it did indirectly; it gave them the reputation of managing well for the state, and secured their re-election, with all its advantages. This was enough. "Self-love, the spring of motion, acts the soul." Personal advantage is consulted at the expense of all others.

But the most important reason was, the keepers could not attend to it. Sunday is a day of relaxation, and they wanted to rove at large, and take the air. Confined all the week, they wanted to have their liberty on the Sabbath. And as the meeting could not be attended to unless they were present, they were as much opposed *to* it, as the prisoners were anxious *for* it.

They had now silenced every mouth, and were enjoying their triumph with much satisfaction. But the efforts to obtain for the prisoners what the law allowed them, though unobserved, were not dead nor sleeping. There was a higher authority than that of the prison, and arrangements were making to address a petition to the majesty of the public. To do this was

perilous for the individual who should attempt it, and be found out; but magnanimity in a good cause is no crime. This noble spirit nerved the soul of one of the prisoners, and forgetting himself to serve his fellows, he wrote a piece for publication in one of the papers, and found a friend to convey it to the printer. This piece contained a brief history of the means of grace in the prison, of the ruin of the chapel, and of the fruitless efforts which had been made with the keepers; and concluded with a firm appeal to the people and the authorities in behalf of the prisoners.

This was printed in due time, and the effect was immediately visible in the prison. A Chaplain was found, and meetings were held every Sabbath, and no more occasion for complaint occurred.

This sketch presents the moral discipline of the prison in its true light. Jehovah is not the God of that Institution, but Mammon. The souls of the prisoners are not of so much value in the estimation of the keepers, as one hour of their labor. To the chink of their Idol's box they give most rapacious ears, and love no music half so well. Time and eternity, heaven and hell, peace and affliction, smiles and tears, life and death, are all lost sight of in the arithmetical liturgy of Mammon's worship. In their estimation the most pious prisoner is he who weaves the most cloth, and no organ has half so religious tones as the clack of a loom. The prisoner's *Draft-book* is his only *Bible*, and *he* is the most thorough and pious christian, who can weave the handsomest piece of diaper in the shortest time. I do not mean to treat the subject with lightness; it is too solemn; and I mean to be understood as being in solemn and emphatic earnest. These things are so, and I have witnesses of their truth among the living and the dead. From such a place then, who could hope to see a man go forth reformed, except from bad to worse?

RELIGIOUS OPINIONS OF THE PRISONERS.

It has been very often said, that the convicts in state-prisons are either atheists, deists, or universalists, than which, however, nothing can be farther from the truth. I have known as many as five hundred while they were in confinement, and I have always made it a practice to learn the religious opinions of all with whom I have conversed; and what I am going to write may be depended on as the actual result of my personal inquiries.

Those whom I have known have been educated in the doctrines of the endless punishment school, and but few have departed from these doctrines. I have found only *two* atheists, not one deist, and but *one* universalist. The doctrine of endless punishment is strongly and broadly speaking, the orthodoxy of state prisoners. I am confident of the truth of this statement, and I make it, not by way of *slur*, or *insinuation*, against any sect of christians, but as a fact which *all denominations* may use as they may have occasion. Very many of the convicts have been members of churches, and a few of them have been preachers. This is a subject of painful reflection; it shows how extremely liable the *best* of men are to be overcome by temptation, and says to those who glory in their own strength, "let him that thinketh he standeth, take heed lest he fall." It is no argument against religion, that some of its votaries disgrace it. There are faithful soldiers in an army, from which many desert; and christianity is from *heaven*, though many of her avowed friends appear to have come from *beneath*.

In respect to the religious *feelings* of the prisoners, it is true to say, that each one manifests a very strong attachment to the faith in which he was brought up; and hence there are warm and zealous advocates for almost every creed. It is also proper to remark, that many of them evince a very uncommon acquaintance with the Sacred Scriptures, and a shrewdness and skill in defending their particular systems, which is truly astonishing; and it

is not often that a convert can be made from his long cherished opinions. There is one point in which these disputants are unanimously agreed, and this is, that all the means of grace are confined to this life, and consequently, if a man die in sin, his doom is fixed in misery for ever. I know of only *three* who entered the prison with a contrary opinion, and only *one* who was converted from it afterwards.

I had an opportunity of witnessing a very general time of religious awakening among the prisoners, and of perceiving how firmly every mind clings to long fostered notions, even when it is under the process of genuine and reforming sorrow for sin. Among the *many* converts, those who had been *Baptists* by education, were Baptists *still*; *Methodist* were Methodists *still*; and so of all the rest; but it was truly delightful to see how, notwithstanding these little complexional differences of opinion on some points, they all united in *one* spirit in their religious exercises. Though I was not of the general belief in regard to endless suffering, still they knew no difference of feeling, and the happiest hours of my whole life were those which I spent with them, in the cementing feelings of universal brotherhood, and in mingling my voice with theirs in prayer and praise to the one God and Father of us all.

This delightful state of things, however, was of short duration. After a few months, arrangements were made for sabbath schools, and then the question of *doctrine* came up. Every one was very anxious that nothing but the *truth* should be taught, and much depended, for this, on the faith of the teachers. On looking over this subject with much solicitude, it was determined that no *heretic* should be placed in the chair of instruction; and it was not difficult to draw the line between orthodoxy and heresy in the proper place. Those who were agreed in subscribing to the doctrine of eternal pain, how much soever they might differ in other things, were considered orthodox; and these were all the believers except *one*. This one had some time before espoused the doctrine of the *Restitution of all things*, and for this he was considered a heretic, and judged an unfit person to give religious instruction. This was all the crime that could be found against him; he was exemplary in all his conduct, had instructed many of the youthful convicts in the rudiments of science; was devoted to books, and to the study of the scriptures in particular; and all were fully persuaded that he meant in

all things to keep a conscience void of offence; but he did not believe in endless misery, and this was crime enough. As soon as the opinion of the Chaplain was known to be against committing the care of a Sabbath school to a Restorationist, the whole orthodoxy of the prison was set in the same way, and the poor heretic was allowed no peace in the Temple.

I mention this as a historic fact for the use of christians. It shews that mankind are the same under all circumstances, and exhibit the same deformities of religious character in the dungeon as in the cathedral. Man is a fallen creature, and the fragments of ruined greatness are visible in every developement of his moral history. In that little circle of worshipping prisoners, I saw the same principles at work which have divided christians in every age and country—the same principles of perverted christianity which exalted an ambitious mortal to the throne of spiritual empire, and created the inquisition for the torture of heretics—the spirit of misguided zeal which has drawn the sword of conquest and drenched the earth with blood. In all these we see the consequences of sin, the actions of erring humanity; and I have not yet so perfectly rooted the principles from which they spring, from my own breast, that I can feel safe to bring an accusation against any of those whom I consider wrong. Nor dare I even call on the *Lord* to rebuke them. If I have suffered, I freely pardon my enemies, and I hope that, in coming times, all these phenomena of christian character and conduct will cease, and all men be brethren in feeling and in conduct.

I desire also to inform those who are daily denouncing the doctrine of the *Restoration* as tending to licentiousness and crime, that there are no *grounds* for such denunciation. I was educated in the schools of Calvin and Wesley, and I had been in Windsor many years before I was convinced of my errors, and became a believer in God as the Saviour of all men. And of the five hundred who were, at different times, my companions, I never found over *three* who were not firm believers in endless ruin. I do not say that the doctrine of endless punishment is immoral in its tendency, for I think very different from this; and I know that the *opposite* sentiment is not. Nothing is more out of place, than the mutual charges of immorality which professors throw on each other's creed. The infidel smiles when he hears these mutual criminations; and who can blame him for not espousing a cause which, judging only from its effects on some of its professed votaries,

is calculated to set friend against friend, and break up the harmony of social life? If he has never tasted for himself that the Lord is gracious, can we suppose he will be won over to the love of a principle, which appears from the exhibition before him, to be perfectly hateful? No. And not until the representatives of christianity represent her as she *is*, will the unbeliever condescend to give her claims to inspiration that solemn and respectful notice which they deserve. Let, then, all crimination, and recrimination, among professors be done away. Let no man be denounced on account of his religious creed, but let the test of every man's character be his *actions*, and his *life*; if these are good, the man is good, the anathemas of sectarian zeal to the contrary notwithstanding. "By their *fruits* ye shall know them." The orthodoxy of Calvin can never sanctify his persecution of the martyr Servetus; nor did the ignorance of Cornelius in respect to the true faith prevent his prayers from ascending to God. If the *heart* is right, if the man is *sincere* and *honest*, no error in his creed can corrupt his principles, or stain the moral purity of his soul; and I would much rather do right and serve God by *chance*, than err and sin by *rule*.

To what extent the principles of religion are loved and cherished in the prison, it may not be easy to determine, though it is a truly melancholy fact, that the number of sincere and hopeful christians is very small. It must not, however, be inferred, that the great mass of mind, in that place, is totally depraved; for there are frequently discovered by the candid observer of that field of moral ruin, some bright and pleasing fragments,—some beautiful specimens of what is true, and lovely, and honest, and of good report. Like the beclouded heavens, in which a few cheering stars are still seen, or the mighty and varied desert in which a few green and fertile spots are visible, that waste of ruined virtue is specked over with some pleasing vestiges of what it once was—some green and flowery spots for the mind to repose on, and some stars to guide it, while wandering amidst the thick darkness and cheerless wastes of moral desolation. Indeed I never found there, amidst all those sons of guilt, a single mind in which the pulse of virtuous principles was not still beating, though feebly, and I doubt whether one can be found in the universe.

ATTEMPTS TO ESCAPE, AND SUICIDES.

The prisoners have many inducements to attempt their escape. The eternal gloom that hangs over their minds—the regulations of their unfeeling rulers—the instinctive love of every human soul to liberty—and the deceptive appearance of the surrounding country, are constantly tempting them to some violent or crafty scheme to elude the grasp of their tormentors and be free. These, however, produce but little effect on calculating minds; but they keep the *rash*, the *young*, and the *romantic* in a perpetual ferment; and I wonder that more attempts, of this kind, have not been made. The various insults of the keepers, are sometimes sufficient to inspire a rock with indignation, and call up the dead to resentment. The walls appear a trifling object when the mind is inflamed. What appears a boundless forest, inhabited only by tigers and untrodden by man, comes within a few rods of the prison, and nothing appears easier than to reach it. Why, then, more attempts are not made to escape, is to be accounted for only by presuming that the prisoners have more judgment than rashness. I shall mention a few of the attempts of the prisoners to effect their escape, for the purpose of making some remarks on them.

The first successful attempt of this kind, was made by a man named Palmer. The prison wall was not finished, and he found means of secreting himself, breaking off his fetters, and effecting his escape. He was not absent, however, over a year, when he was apprehended and brought back. He stayed *seven years* after his return, and that completed his sentence.

Another, though unsuccessful attempt, was made by a man named Fitch. He went over the wall, and was fired on by the guard, the ball just missing him. He got but a few rods when he was arrested and returned to the prison. He was severely punished for his temerity.

An entire cell effected their escape one night by removing a large stone; and they kept the freedom which they regained at so much peril. At another time the hospital was broken, and an escape effected by four individuals, in a way which evinced the greatest wisdom of contrivance, and strength of limbs. Three of these got away, and one returned.

Soon after this, a violent rush was made over the wall by five men, who were determined to effect an escape by daylight. The guard fired on them, and wounded one slightly. They enjoyed their liberty only a few minutes, when they were all safely deposited in the solitary cells. They were punished according to the laws of the prison, and I know not that they ever found fault that they were punished too much.

A man named Banks contrived to escape one Sabbath, by climbing over the wall, and he was successful in getting into Canada; but committing a crime there and fleeing back into the state of Vermont, he was apprehended on an advertisement, and remanded to Windsor. After three or four years, he found means to repeat the same experiment, and like the raven from the ark, he returned not again.

Another attempt was made to escape from a cell without success; and another to force a flight over the wall. In this, one of the prisoners fired one of the buildings, and brought down on his head a weight of punishment that might have crushed the constitution of Lucifer. But he survived it, and lives a pleasing evidence of the fact, that the vilest of sinners may reform and become good men.

I know of no instance of attempts to escape, which might not have been prevented by the keepers. If they had done their duty, the chance of success would have been so small, that no mind would have indulged the thought for one moment. The guard can hear the least noise that is made in the cells, and the keepers can see all that is going on in the shops; and not an attempt has ever been made in which the officers have not been more or less criminal. They are not attentive to their duty. The guard often get asleep on the wall, and the keepers in the shops; and on these occasions the prisoners calculate and act, without which they would do neither.

But this is not the extent of the keepers' guilt. They not only nod on their posts, they also permit the plans of the prisoners to ripen into effect, when they know them, that they may shed blood, rivet fetters, and take life. Witness the case of P. Fane. Every incident in the history of that place, which fell under my notice, left an idea on my mind, that a *quorum* of the keepers and guard are always contriving to multiply the miseries of the prisoners; and while I saw them sinning daily with impunity, in the sight of their superiors and of each other, and at the same time tormenting the convicts for the merest nothing, I often exclaimed in the language of Jacob—"O! my soul, come not thou into their secret, unto their assembly, mine honour, be not thou united."

The same process of cruelty often drives the convicts to desperation, and the commission of crimes which could exist under no other circumstances. They are often provoked to the utterance of harsh and angry expressions, for which they are sure to suffer. Sometimes they are driven through despair to the sick bed of a remediless delirium, and to the revolting recklessness of self-destruction. One of these instances I have already given in the case of Levett. The same attempt was made by Plumley, but he was discovered in season to save his life for more suffering, and for death by other hands. Several other attempts of the same kind transpired through the intolerable and incessant oppressions and aggravated inhumanity of the "powers that were." But the two who I am going to mention, effected their dreadful object, and I shall give each of them a brief notice.

Woodbury was a man of feeble mind, but of very acute feelings and volatile spirits. To every nerve of his heart liberty was dear, and he was equally sensitive to his separation from his friends whom he tenderly loved. Scarcely had he entered the prison when his countenance began to indicate disease, and very soon he became a mere skeleton. His complaint assumed no definite character, and he could get no medicine to help him. In this condition he was kept at the most laborious work, and compelled to do his task. Anticipating the result, and dreading the usual passage to the grave amid the neglect, abuse, and insults of the keepers, he resolved on cutting short his sufferings and dying by his own hands. Accordingly he retired to his cell and hung himself—leaving on a slate this direction—"I wish you would open me, doctor Trask." This direction was complied with, but the

doctor reported no indications of disease. That he was, however, sick, every prisoner and keeper knew; and that the fatal act was the consequence of the neglect of his keepers, and the cruelty of the master workman, is no problem with me, nor will it be with others, when every secret thing shall be made manifest.

Ham was a young man, whose prospects had been blighted in their bud, and a gloomy expression had settled on his countenance, which it was difficult to remove, even for a moment. His every look seemed audibly to say—"I am ruined!" He was a close observer of what passed, and when a convict was seen by him going into punishment, he would fall into an absence and reverie; and looking at times towards the walls and the green fields beyond them, the tear would gather in his eyes to tell the burden of his soul. His prison, he often said, looked like a resting place for eternity. Life became a burden to him, and he ended it by suicide.

PRISONERS' CORRESPONDENCE WITH THEIR FRIENDS.

To a certain extent, the prisoners have the privilege of corresponding with their friends. But this privilege, like many others, loses much of its value from the circumstances under which it is enjoyed. No prisoner is allowed to state his real condition, nor intimate that he is not kindly treated. Every letter must be examined before it is sent, and if a single word is too *significant* for the pleasure of the keeper, it is destroyed. The same is true of all letters sent to the prisoners by their friends. I find no fault with the keepers examining all letters sent by or to the prisoners. This is perfectly right. And it would be equally right to suppress all letters not written in a respectful style, or containing information that might afford facilities for an escape from the prison; but to interrupt a prisoner's correspondence with his friends, merely to gratify the capricious disposition of an unfeeling keeper, is unjust, inhuman, and criminal.

In order to ensure a passport for their letters, the unmanly conduct of the keepers has driven the prisoners into a style of writing which must be disgusting to all but those who love to be flattered. They generally devote one paragraph to the praise of the keepers. This paragraph is usually a very fine one; and as it contains some high sounding words of commendation, it tickles the vanity of those who examine it, and finds its way abroad.

When a letter is condemned, the prisoner is sometimes permitted to try again, and sometimes he is left to guess its fate. Should any one write a true account of the place, its laws, and customs, and regulations, it would be as impossible for the letter to get into the Post Office, as it is for a guinea to pass by the fingers of a Jew. And it is a very frequent case that a man is most shamefully abused by his keeper, on account of some lines in his letters, which he penned as innocently as a martyr, but which did not

happen to be worded according to the *grammar of the place*. I write this from experience; for I am the man. But I am not the *only* man. Should any one ask the names of the others, I might answer—"legions," for they "*are many*." And for some offence innocently committed in this way, many have been marked for the arrows of vengeance, which have not lingered long on the string.

Should a letter to any prisoner be deemed inadmissible, he would not know that any had been sent to him. No matter how interesting it might be to him, the keeper destroys it and is silent. Many facts confirm this statement. I have now by me a letter which I recently received from my brother, in which he writes—"I received not one letter from you all the time you were there, though I wrote you many." Not one of *his* letters ever reached me, and I wrote very many to him. This is not a singular case; I know of *many* similar ones.

Another circumstance ought to be mentioned here.—There is no provision made to pay the postage on letters sent to the prisoners, and as they are generally destitute of money, it often happens that their letters are never taken out of the office. When any letter *is* taken out of the Post office, the postage is charged to the prisoner, and he must pay it, whether he gets the letter or not.

All other communications are subject to the same vexatious rules as the letters are. If a prisoner wishes to send a petition to his friends for them to sign in his behalf, and forward to the Governor and Council; or if he wishes to send one to that body with his own signature, it must be worded *just so*, or it cannot be sent. The keeper of the prison takes it upon himself to decide what *is* and what is *not* proper to go before the Executive. He also, as if possessed of omniscience, knows all the *facts* in the case, better than the man that has *experienced* them; and as there is no law binding him but his own will, he acts in such cases, very frequently, as if there were no God to take notice of his conduct, and no judgment for the guilty.

That the conduct of the keepers in respect to the correspondence of the prisoners is highly improper, no one will attempt to deny. That correspondence is sacred, and no unfeeling or capricious regulations ought ever to interrupt it. The tender sympathies of friendship are not destroyed,

though the heart that contains them is chilled by a dungeon's damp and a prison's gloom. A father is a father still. A husband is a husband still. And dear to the heart are the thoughts of his children, and the recollections of his wife. These are as imperishable as his nature, and who that ever had a heart could touch lightly the sacred ark of his happiness? How infernal must be the nature of that man who can wantonly crucify the holy sympathies of a trembling sufferer? But it is not the *sinner* alone who suffers by this conduct of men in power, it is the *innocent* too; and who but a fiend would punish the innocent with the guilty? It would denote a moral and perfect fitness for any place but heaven, to take pleasure in afflicting, unnecessarily, even the vilest sinner; what then must be the moral complexion of that man's soul, who can sport with the unmerited sufferings of the crimeless, and take an unearthly satisfaction in multiplying the tears and agony of the innocent wife and the stainless orphan? But such men there are, and well I know them.

COURTSHIP IN PRISON.

The age of romance has not yet passed away, and an incident that might have originated a Poem in the days of Ovid, or a Novel in the land of Sir Walter, transpired in the beautiful and romantic village of Windsor; and though it may not chime very harmoniously with the other tones of my book, yet as it contains a moral, much needed at this period of the world, I will gratify the reader with an account of it.

S. was one of those very common specimens of our race, on which a graceful and captivating exterior is lavished at the expense of the more valuable and lasting graces of the mind. Every eye that saw him gave evidence that it was contemplating something in which there was no blemish; and this evident satisfaction continued till he spoke—*then*, the contrast between external beauty and mental poverty was so great, that the charm vanished and the angel departed. For some crime or other, he became one of the inhabitants of the prison, where his personal charms fastened on the heart of a female who afterwards became his wife.

This lady belonged to a respectable family and was esteemed by all her acquaintances, and in giving herself to S. she committed the only fault of her life.

A friend of hers was an officer of the prison, and she spent some of her time in his family. In that place, she could see all the prisoners every day, and there she first saw her future husband. Love is said to be blind, and there is some reason for the opinion. Why an esteemed and virtuous young lady, should permit herself to be captivated by a *prisoner*, cannot be accounted for but by supposing that love can steal the march of reason, and that wisdom and prudence are feeble springs against the force of passion.

"Veni, vidi, vici," said the Roman Conqueror, when he had vanquished his foes; but this victim of thoughtless passion had occasion to say in the sequel—"I saw, I loved, and I was ruined."

She found means, after she became a *prisoner* to his charms, to communicate her wishes to the idol of her breast, by proxy at first, and afterwards by personal interviews. The proxy was an old man who used to go into the keeper's room to wash and clean the floor, and his appearance was enough to have frightened love to distraction. But necessity compelled them, and many a bundle of soft sighs did he carry between these romantic lovers.

After some time she found an opportunity of taking his hand in hers, and of telling him all that was in her heart. Willing to be loved, though incapable of that warm emotion himself, he followed as she led, and the sweet promises were made, which were to bind them heart and hand for life.

And now, warm with visionary bliss, she had only to wait a *few years* for his sentence to expire, for the consummation of her desires. *A few years!* Love is impatient, and to look through *years*, when *days* are *months*, before the anticipated joy can be realized, was too much, and, therefore, effort must be used to get him pardoned. It would have been cruel in the extreme, not to have pardoned the charming idol under such circumstances, and as the Executive was composed of feeling hearts, her desire was granted, and she took the object of her adoration to her nuptial arms, the day that his pardon reached him.

I have heard that she suffered much from this rash and imprudent surrender of herself into the arms of a stranger, who had nothing but a pretty face to recommend him, and every thing against him.

If I had any fears that *others* would be ruined in this way, I should dwell longer on this part of my sketches; but it will be sufficient to say in conclusion, that marriages in which nothing but passion and fancy are concerned, never lead to peace, and this instance is a melancholy proof of it. Ladies ought always to act prudently in an engagement of so much importance to their future happiness, and never commit themselves into the

arms of any man whose reputation is stained, or who is not known to be virtuous and good. Particularly, let it be remembered, that the graces of the mind are of priceless value, and for the want of them, no charms of form or countenance can atone.

MR. STRICKLIN.

I have introduced the name of this amiable and lamented young man, to illustrate some other parts of that deformed and dreadful character in which so many of the keepers glory. Having experienced the hardening effect of that awful place on their moral feelings, they take an infamous delight in accelerating the same effect on all who enter into the service of the prison. To accomplish this, they give them to understand that the prisoners are a malicious, bloodthirsty, and hellish pack, whom they must treat with perfect hatred and the most jealous and wakeful suspicion. They are taught to keep their swords always sharp as a scythe, and fastened to their wrists by a strong leather strap. It is impressed on their minds that they are as insecure when with the prisoners, as if they were among a clan of Arabs or a gang of pirates. To make these instructions the more efficacious, the keepers try all schemes which they can think of, to find their pupils off their guard, and to make them believe that the prisoners are on the eve of some dreadful plot. Under such masters, and such a course of education, the new servants enter upon their duty; and who can wonder to find them becoming in a short time as hateful as their teachers.

Mr. Stricklin was engaged as a guard. As soon as he entered on his duty, his ears were made to tingle with the lectures of his new associates. He was a young man of amiable disposition, and having but little acquaintance with mankind, he presumed that what the keepers told him was true. His conduct under such impressions was such as might have been expected. One day as he was in a shop to relieve the keeper, he gave some indications of the study in which he had been engaged, and also of the effect which his lessons had produced on his mind. As he was walking through the shop, he stopped suddenly, and demanded attention. When all was silent, and every ear open to what he might say, he observed that he had been employed as guard, and might stay longer or not so long, just as he might feel disposed; but while

he did stay, he said, if the prisoners would treat him well, he would be kind to them. There was some singularity in this, as also in his manner, which no one failed to notice.

At night he went on guard, and his duty was to see that no prisoner made his escape. This required that he should be attentive to every noise, and be furnished with means of defence. The place for the guard at night is a small apartment in which he is locked up, and must stay till released. This room is in the prison, and adjoining the cells of the prisoners. The means of defence are a gun and a sword. With these arms, and in this place, Mr. Stricklin was posted when the events of which I am now going to write, occurred.

Scarcely had he entered on his post, before some of the keepers placed themselves at a grated window, exactly over his head, and began to make a noise on the grates like the sound of a file. Their object was to make him think that the prisoners were breaking out. He heard the noise, and began to call on the prisoners to be still, supposing they were filing the grates. The noise was kept up, and some chips and an old shoe were thrown down at him, by the keepers at the window. For nearly an hour they continued their cruel and unmanly sport, until he became frantic, and began to exhibit unequivocal evidences of a terrified and shattered intellect. He had before this time ascertained that the keepers were the authors of the noise he had attributed to the prisoners, and the effect of such mean and hypocritical conduct on him was most painfully developed. He became as furious as a hungry lion. He ascended and descended the stairs with a rapidity of step never equalled, and with shrieks that pierced the very heavens. He stamped on the stairs as if a mountain had fallen, and the sound made the iron doors tremble on their hinges. He kept every guard and keeper at bay till his time expired; and at the very minute for him to be relieved, he screamed like a panther that his time was out, and was let out of his room. He went immediately to bed, and by morning became rational. After breakfast the Warden told him he had no more for him to do, and kicked him out headlong on the brick pavement before the door. At least, the undisputed report says so; I did not see it myself. This threw him back again into the most wild and frantic ravings, and he returned home and died in a few weeks. His mind was a perfect ruin, and he left the world a poor distracted youth.

Now, my dear reader, pause and contemplate this melancholy sketch. Who were the criminal cause of this young man's death? I know some of the men who stood at that grated window, and frightened him to madness; and I say to them, if they should ever read this page, that the blood of a promising youth, of good character and amiable connexions, has stained their doings, and it is high time for them to repent. The voice of Mr. Stricklin's death cries to heaven against them, and the voice of *such* a death, can never cry in vain.

But if it be true, as is reported, that the Warden treated him with such cruel and shameful indignity, what shall be said of *him*? He had sons of the same age, but none more likely or promising; and how did he know that it was not through the means of some of *them*, that this youth was ruined? Every body knows that Wardens of prisons are tyrants, and few will question the perfect right of *this* one, to a very liberal share of this character. Certainly, if he abused that ruined young man as it is said he did, he richly merits the title of Nero the Second. At any rate, I know enough of him never to call him a *merciful* man, and I would ask all men, all angels, and all creatures, to look at his conduct just as it is, and decide on his fitness or *unfitness* for the office of Warden of a penitentiary. He never found any fault with those who drove the victim of his anger to distraction; I know not but he applauded them. I know, however, that Mr. Stricklin came to the prison in health; that he was frighted to distraction one night while on duty, by some of the keepers and guard; that he was turned away in the morning; and that he died in a few weeks perfectly deranged.

It is reported that he plead with the Warden to stay, remarking that it would injure his character to be turned out so. He was well reported of by all men, was an officer in the militia, and the pride of his family. No one can reflect on his untimely and unhappy death without the most painful emotions of soul. And in concluding this article I feel it to be a duty which I owe to the young men of our country, to exhort them never to become prison keepers, but to shun those places which have a tendency to blunt the finer feelings of the heart, and stupify their moral sensibilities.

And I would be equally friendly to such as are already engaged in prisons. Let them try to act like merciful beings, and forget not that cruelty

is no part of their office. Let them redeem the character of gaolers, and shew by their conduct that humanity and justice can dwell in their hearts. It is important that they should heed this counsel, for it will be a sad vicissitude after having been *keepers* on earth, to become *prisoners* in eternity.

OVERWORK.

Until 1821, no compensation was allowed the prisoners for what they did over their task. In that year, a regulation was made, granting *one cent* per yard for all that might be done over *ten* yards per day in the summer, and *eight* in the winter, to be paid in goods out of the store, or money, at the option of the Superintendent.

This was thought by many to be a very *unequal* regulation. The average profit to the Institution of every yard of cloth that was woven, could not have been less than *four cents*; and as the prisoners must do their full task before they could derive any benefit from the regulation, it was thought that they should have *all* that they earned over it. The language of the regulation, fairly interpreted, seemed to be this—*Give me four cents in cash, and I will give you an order on the store for one!* It assumed to be a very merciful provision for the prisoners, but it was like the mercies of the wicked—"cruel." Every man of any just principles, who has no interest to warp his judgment, will at once admit, that the prisoners ought to have had all the avails of their overwork. But anyone can see that the interest of the prisoners was not consulted at all in the regulation. The design of it was to get as much work done as possible, and the *one cent* was only a bait.

That I have not erred in stating the design of the Superintendent, in his regulations for overwork, to be his own benefit, and not that of the prisoners, is very evident from his conduct in relation to those who complied with them. He would not pay money except at his own option, but paid out of the stores; and to induce the prisoners to do overwork, and take their pay in trifles, he permitted them to purchase almost any thing they wished, and very many articles which had never been allowed them before. He even went so far as to bring into the weave-shops specimens of very gay handkerchiefs, and carry them along in sight of the prisoners to tempt them

to earn some. This had its desired effect, and handkerchiefs soon became very plenty. But the worst of all was, the extravagant prices demanded for all articles sent to the prison. One of the keepers told me that he could take the money and purchase things for a quarter less than the prisoners gave. After my release I went into different stores in the village, and ascertained that I had been charged a very high price indeed for what I had purchased.

Another expedient to get work out of the prisoners, was the offering of *bounties* to those who should weave the most yards in six months. This created a spirit of emulation, and drew forth miracles of industry. I took one of these prizes, but I shall have to regret till my dying hour that I ever entered that race. I feel the effects of it, at times, in every part of my system.

As soon as the prisoners began, *generally*, to enlist in the overwork, they began to be charged for things that were furnished to them before without pay. If they broke any thing, or did the least damage to their tools, in a way that was deemed *careless*, they had to pay for it. Handkerchiefs which were furnished gratis, before, they had now to pay for. And every expedient that avarice could devise was practiced, to make the prisoners' accounts against the Institution as small as possible.

I consider the regulations for overwork as the spawn of a most miserly disposition. There was no benevolence in it. If the good of the convicts had been the object of it, there would have been no "*one cent a yard paid out of the store*," but the full amount of the extra labor, paid in money; and the entire plan would have endured a close examination in day light. There would have been no mean taxing for accidents and trifles—no paying in gewgaws—no extravagant prices; but all things would have been as indicative of pity and good will to the wretched, as they now are of self-interest and steel hearted avarice. And the benefits of the regulation would have been *equalized*, so that a man who had not so good a *faculty* as another, would not have been deprived of them. Some men had power to do twice as much as some others, and *they* could derive some advantage, while the others could not, though both were equally deserving of favors; so that the Superintendent's regulation was very similar to Calvin's irrespective decrees and partial election.

But faulty as the principles of the *one cent* system were, some good certainly grew out of it. It is a bad system, indeed, that has *nothing* good in it. But the *good* was much more than balanced by the *evil*. It ruined many a constitution; sent more than *one* man prematurely to the grave; and laid up for *all*, the pains of infirmity and old age.

This sketch shows on what principle the prison is conducted. There may be many *minor* principles. Of these the *reformation* of the prisoners may be a fraction. Their punishment may be a *unit*. But the major point of all is, PECUNIARY ADVANTAGE. The interest of the captives is not a *grain* in the calculations of the prison. If they live, they live, and if they die, they die. But living or dead, sick or well, sinning or praying, saved or lost, they are estimated in pounds, shillings, and pence, and one farthing would turn the scale of their destiny to heaven or hell.

How true is the language of the poet—"There is no flesh in man's obdurate heart!—It does not feel for man." And surely the morals of mankind must have reached a dreadful climax, when even ministers of justice deserve heavier blows than they inflict, and the seraph accents of mercy are turned into the war whoop of death.

PARDONS.

The Governor and Council have the power of granting pardons, and once in every year they meet to attend to this and other duties assigned them by the Constitution. The prisoner who hopes to share in their mercy, procures petitions from his friends and former acquaintances in his behalf, and causes them, with his own petition, to be laid before them at their annual meeting. The principal officer of the prison has been generally depended upon to lay the petitions before the Governor and Council; but the conduct of this officer has so far failed to place him in the confidence of the prisoners, that they never trust their cases in his hands, if they can get any one else to attend to them. The common opinion is, that he is never willing to let a prisoner go who is any profit to the Institution; and for this opinion there is as much evidence as there is that a merchant never wishes to lose a good customer, or a doctor to hasten the cure of a rich patient. I was more confirmed in this opinion after my release than I had been before. A friend of mine who had been for several years, and was then, a member of the Legislature, told me that the fall before, he called on the principal officer of the prison to get my petition, and be prepared to lay my case before the pardoning authority, and was told by him that I "*had not petitioned*." When my friend told me this I was thunderstruck. That officer *knew* that I had petitioned, for I conversed with him on the subject, and gave the petition into his hand; and he informed me when he returned, that he laid it before the Governor and Council, and told me some of the observations that were made upon it. What shocked me the most was the *hypocrisy* of the man. He had professed to be my friend—and was a member of a christian church; and yet he was so unwilling to lose my *labour*, that he prevented the interposition of my friend for my release. I have the most unshaken confidence in the veracity of my friend; he could not have been mistaken, and he had no motive to misrepresent. This fact is directly to the point. It

speaks a great deal. And it shews *why* the prisoners are not willing to trust their cases to the officers of the prison.

It is a fact, and I wish to have it known, that it is very difficult for a prisoner who is any profit to the Institution to get a pardon. I will not pretend to *apply* the fault, but I know the fact; and hence some of the convicts, acting on the base principle of opposing craft to craft, and returning evil for evil, render themselves of as little use as possible. It has become a proverb in the prison, that a good weaver is sure to be kept as long as he is able to weave. This proverb is inscribed on the facts that transpire every fall, and it ought to find a humbling and condemning application somewhere.

Deprived thus of all confidence in their keepers, the petitioners, who have the means, generally call to their assistance some of the lawyers in the village. These men are always ready to work for cash; and when they know that their assistance can be of no service, they will take from a prisoner those very dollars which he has ruined his health and destroyed his constitution to earn. Like blood suckers, a few of them gather around the prisoners every pardoning time, and carry off all the money that the poor creatures have been able to scrape together.

Now I find no fault with these lawyers, for such is their trade; but I condemn the authority for permitting them to practice on the credulity of the captives, and trick them out of their hard earned dollars. It is a libel on the principles of the Governor and Council to suppose that *such* lawyers can plead them into the exercise of mercy. They know what some of that profession will do for money, and there is no instance in which they have been of any real service to their clients in the prison, in applications for pardon. The Executive meet to decide from *facts*, and these facts should come to them from the authority of the prison, and from other sources. The authority of the prison ought to do its duty, and secure the confidence of the prisoners; and thus prevent the unprincipled and avaricious interference of these lawyers. I do not mean to reflect *generally*, on the profession of the law. There are in that bright array of learning and talent, as many high, noble, and ethereal spirits as any other profession can boast of—and *some of the meanest souls that ever lived*.

There is but one general rule, according to which all pardons should be granted, and this rule is JUSTICE. It may be just to pardon one man and not another; and if it is right on any account to pardon one man, it is right to pardon *all* who are in the same circumstances—indeed it would be criminal *not* to. Justice holds an even scale. So does *mercy*, which is only that exercise of justice, which relates to the *wretched*. And the reason why one man should be pardoned and another not, is, that, according to all the facts in the two cases, community would be safe in the pardon of *that* man, but not of *this*. The design of all punishment should be the reformation of the sufferer. When this is presumptively effected, the object is attained, and all further suffering for the crime from the hand of the law, would be purely vindictive, and infernally cruel. This is the *only* principle on which *God* punishes; and hence *endless* punishment under his government, and all *capital* punishments by human laws, would be equally unjust and inconsistent. In this respect, men often err, but God never can; and human laws will not be perfect until they abolish capital punishments and chastise only to reform.

If this principle had been acted upon in the Windsor Prison, many years of suffering would have been spared to human hearts, and many a soul would have gone with less guilt to judgment. That prison is called a *Penitentiary*.—As properly might *hell* be called *heaven*. The spirit of the penitentiary system finds there no place to lay its head. Not the *reformation* of the convicts is sought, but their *earnings*; and they are treated just as an intelligent but heartless slave-holder would treat his negroes—made to work as long as they can earn their living, and then cursed with freedom that they may die on their own expense. The keepers lay it down as an axiom in their practice, that it is impossible to reform a prisoner. Perhaps they will admit that God could do it, and I cheerfully agree with them that none but He can reform a sinner after he has fallen into their hands. And it is equally plain to my mind, that nothing *less* than omnipotent power will ever reform *them*.

CIRCUMSTANCES OF THE PRISONERS WHEN RELEASED.

Some of the prisoners have the means of dressing themselves decently when they leave the prison, and of living till they can find employment; but the greater part of them go away from that place in very mean clothing, and with not a dollar in their pockets. In this situation they are turned loose upon the world, often far from their friends, and not a soul to apply to for assistance. They cannot get into work any where, for they carry "the mark of the BEAST," not only "in their foreheads," but "on the borders of their garments," and every body shuns them. They have no money, and consequently they must either *beg*, or *steal*. Nor are they *moral agents* in this case; *necessity* is laid upon them and they *must* do it. The Superintendent said the same to me once when we were conversing on this subject. "If they do not get into employment within three days from their leaving the prison," said he, "which is next to impossible, they must either beg, steal, or die."—Is it not a pity that this man did not do something for the benefit of those who were going out into such a probation as would try the integrity of a saint? especially when the government authorised him to?

One reason why the convicts leave the prison in such a shabby dress, is, that no care is taken with the clothes that are worn thither; all the garments which the prisoners wear to the prison, are thrown together in a garret, and left for the moths to prey upon. By this means the poor garments become worse, and many that were excellent are destroyed; so that when the owners have occasion to wear them again, they are good for nothing. Even new garments which the prisoners purchase while there, are often so much neglected as to be greatly injured, and sometimes nearly spoiled. And some valuable articles, such as boots, hats, and vests, have been lost through the carelessness of the keepers. In these things, however, there has been some reform of late, and I hope it will be carried through.

Another reason why *some* of the prisoners fare no better when they leave the prison, is, that some one of the keepers has a *spite* to gratify, and he takes this opportunity, not only because it is the last, but because it best suits the malignity of his purpose.

I have seen some leave the prison in the winter, with thin summer garments; some without a hat; and many scores who were not fit to be seen with a company of *colliers*. They had served their time out in a *penitentiary*; but their appearance was enough to demonstrate to all that saw them, that they had been under the care of *impenitent* keepers. They went out among human beings, but like him who went down from Jerusalem to Jericho and fell among thieves, both the *priest* and the *Levite* shunned them, and they were not often fortunate enough to be noticed by a SAMARITAN. The truth of the case is, the law in this particular is faulty. No man ought ever to be turned out upon society as these prisoners are. If they deserve to be free, give them a freedom suit, and money to get into business; but if they do not, keep them till they do. Give a man a fair chance to become honest, and not place his principles where Gabriel's would be polluted. If men desire to make sinners better, let them help them to reform, and not place them under a *necessity* to do wrong. Let there be an adherence to principle, and if punishment is to be under the government of mercy, let it be merciful throughout; but if it is not designed to reform, then say so—write your laws in blood—catch every criminal you can, and either hang him or shut him up for life. Let there be consistency between principle and conduct, and if it is the purpose of the law to make its ministers furies, let them not be clothed as angels of light.

This neglect of the prisoner when he is released, is the great cause of so many re-commitments, either to the *same*, or other prisons. The man is unable to get into employment. He reads scorn in every eye. He has no clothes fit to wear. He has no home, nor pillow to lay his head on. He spends his days on the highway, and his nights in the field or in some barn. He has not a crust of bread to satisfy the imperious demands of hunger. He drinks the running brook. His spirits sink down. He is a stranger in his own country, and a hermit in the midst of society. He is starving in the midst of plenty. Uncared for by others, he forgets all care about himself. Worse off he cannot be, he may be better. He has nothing to lose, and any change must

be in his favour. He puts forth exertion and cares not how the experiment results. Look at this man. Is not his situation almost an excuse for any thing he may do? Place yourself there, and conjecture how *you* would act. What *can* he do? What could an *angel* do in his circumstances? Here, you who would trace second offences to their cause, here is the reason why so many return to their former abodes. Where, I ask, is the mercy of a penitentiary, which treats its subjects thus? Don't say that they could get into employment. They could not. Would you employ a man so meanly clothed, that he was not fit to tend your hogs, and whose every appearance told you he had either been released from state prison, or broken out of gaol? You would not. Neither would your neighbours. What then could he do? Let the benevolent think of this, and act accordingly. That is not benevolence which sits by the sufferer only to rivet his chains, and leaves him when it can torment him no more. This penitentiary is like the thieves who fell upon the traveller to Jericho, it strips its victims of their raiment, and leaves them half dead.

**GOD'S VIOLATED RULE OF TREATING PENITENT
CRIMINALS.
AN ESSAY.**

If the wicked restore the pledge, give again that he had robbed, walk in the statutes of life, without committing iniquity; he shall surely live, he shall not die. None of the sins that he hath committed shall be mentioned unto him; he hath done that which is lawful and right; he shall surely live.—EZEKIEL XXXiii. 15, 16.

In this passage of Sacred Scripture, the manner in which God deals with his sinful creatures, when they repent, is very clearly and forcibly asserted; and with equal clearness and force is it laid down as a law of universal and eternal obligation, that when a sinner turns from the evil of his way, and does that which is right, "none of the sins that he hath committed shall be mentioned unto him." The meaning of this is, that the greatest sinners shall find mercy on their reformation, and that the sins of which a man has repented, shall never be thrown in his face, nor be improved in any way to his injury. Such is the rule by which God is governed, and which he enjoins as a law upon his creatures; and I wish to inculcate its benevolent and sacred principle upon you, with reference to those who are coming up from the infamy of crime and the penalty of the law, with a determination to reform their lives and regain the confidence of their fellow men. I wish you to treat them as God does; not as if they had never sinned, but as if they had repented; and shew by your conduct, that you share in the delight of angels, when a lost sheep is found, and a prodigal returns. But before I proceed any farther, I will hear some objections which may arise, and take an impartial view of the ground I am going to occupy.

It will be said that those outcasts whose cause I am espousing, have rendered themselves infamous by crime; that they have disturbed the peace

of society, trampled on the laws of God and man, and have been shut up in prison to keep them from further outrage upon the rights of community. I grant it. If you are a christian, what then?

It will also be said that but little dependence can be placed on the professions of this class of sinners; that having transgressed *once*, they are likely to *repeat* the crime; and that the next thing that is heard from them, they will be back again in their old place.—This is true, and the very conduct which grows out of this objection, is, in ninety-nine cases out of a hundred, the sole cause of it.

Another—I could not believe it if I had not heard it myself—another objector will say—"Know ye not that the unrighteous shall not inherit the kingdom of God? Be not deceived; neither fornicators, nor idolaters, nor adulterers, nor effeminate, nor abusers of themselves with mankind, nor thieves, nor covetors, nor drunkards, nor revilers, nor extortioners, shall inherit the kingdom of God."—Alas! that such crimes should ever find a name among men! But the same divine authority which declared this, affirms also, that "*such were some of you*;" and if "*ye are washed, sanctified, and justified* in the name of the Lord Jesus, and by the Spirit of our God," is there not hope for these also?

Having thus briefly noticed some objections which I had reason to anticipate, I shall proceed with the subject before me; and I propose, in the first place, to state how repentant criminals *are* treated by those who call themselves christians, and even by christian ministers, after they are released from prison.

In the second place, I shall shew how they *ought* to be treated, according to the divine principle of the text.

And lastly, I shall glance at the good that would flow from such treatment not only to *them*, but to the *community*, and to the cause of *religion*.

I. I am to state how repentant criminals *are* treated by those who call themselves *christians*, and even by christian *ministers*, after they are released from prison. In doing this, I shall confine myself to positive *facts*; and of these, I shall select only such as have come under my *own*

knowledge, or which were related to me by those who either *observed* or *experienced* them.

The first individual whom I shall cause to pass before you in connexion with the treatment which he has received from professing christians and christian ministers, is the Rev. J. Robbins, a man of uncommon powers of mind, and of unquestionable piety, and who has more divine seals to his commission, than many of his opposers.

While he was suffering for his sins within the dreary walls of a State prison, he was led to think on his ways and reform his life. At the expiration of his sentence, he was let out into the world, without money, and very thinly and uncomfortably clothed. In this situation, destitute of all things, and far from his friends, he went into the adjoining city of Boston, and went to work with a *hand-cart*. The weather was cold, and he was not able to obtain clothes enough to keep him warm.

In this forlorn and suffering condition, he applied to the Rev. Mr. ****, who had been Chaplain of the prison in which he had been confined, for some relief, or assistance to obtain employment. This Rev. gentleman was personally acquainted with him; knew that he had resolved on leading a christian life; and knew that he was at that time in need of a friend. What did he do for him? Why, he said—"Depart in peace, be ye warmed and filled; notwithstanding he gave him not those things which were needful to the body."

If these things are right, let it be known. If this is the christianity of the Bible, let it be avowed—let the preachers from their desks declare it, and bring the high standard of christian benevolence down to the muddy surface of their *practical* illustrations of it. Let there be harmony between doctrine and conduct. Either give us a *revision* of the Scriptures, to accord with the morality of the church, or let its maxims as they now stand in capitals on all its pages, be copied in the every day and every where conduct of those who profess to be the *salt* of the earth, and the *light* of the world.

Here is a minister of the everlasting gospel; and in the person of one of his followers, he turns away the Saviour himself, "*hungry, naked,*" and from "*prison.*"—Rev. Sir, for just such conduct as you have been guilty of, in the

instance alluded to, the Son of man will one day say to some,—“Depart ye cursed into everlasting fire!”

After some time Mr. Robbins obtained help from his distant friends, and was enabled to make a respectable appearance. But in the interim he learned by hard experience, that shivering and half-clad limbs can, even in the benevolent, philanthropic, and christian city of Boston, pass by the priest and the Levite, and range the streets, impurpled by the wintry blasts, uncompassionated and unrelieved.

As soon as circumstances would permit, he united in christian fellowship with a church, desiring in proper time to become a missionary to state prisons, to declare to the erring and degraded sons of crime the salvation of the gospel. In this view of his duty he appeared singular with some of the rulers of the church, and for this, or some other cause, he transferred his fellowship from the Congregationalists to the Episcopal Methodists.

On making this transfer, he applied to the church for license to exhort, for which he obtained ONE vote only. But as there was no *contra* votes, his license was barely granted. Not a very *cordial* reception this, and more sensitive minds than his, would have felt it; but nothing of this kind ever had an effect to deter him from going forward in the course of his duty; and after the usual time, he was licensed as a preacher.

He began now to think more seriously of turning his immediate attention to prisons. Explaining his views to the church, enough fell in with them to form a society, called “THE PRISON MISSIONARY SOCIETY,” of which he was appointed Agent and Secretary. This Society was formed in Boston, and according to its plan, Mr. Robbins went out to form other similar societies in different places, till his views should be carried into effect by sending all the means of salvation to as many prisons as possible, and by finding employment for prisoners when they are released.

The design of this society was noble, and it ought to have been supported. Not like the “*Prison Discipline Society*,” which tortures the prisoner while it can, and then throws him out, unprotected, unhelped, and friendless, on the scorn of mankind, to pursue from *necessity*, his old course, and be sent back again; *this* society aimed to treat the prisoner as a

human being, and to effect his reformation by the mild means of the gospel, while he is confined; and to go with him when set free, and prevent him from being compelled to sin again, by giving him clothes, money, and employment, and elevating him to the dignity of a citizen, and the respect of mankind. Such an enterprise as this would have done honor to a Howard, and in the hands of Dwight, it would have lived. But in the aristocracy of our religious associations, *enterprises* and *children* are treated alike. The son of a great man is respected, wise or foolish, but the children of the poor must hew wood and draw water, though able to measure minds with Newton and Locke.

How many societies were formed, I know not, nor can I tell why the enterprise was abandoned. The probable cause was, that none but Mr. Robbins felt much interest in it, and not able to do all himself, it fell through for want of adequate support.

In the conduct of this Society, there was an act of injustice to Mr. Robbins which, in my view of it, deserves reprehension. He had formed many societies, had collected some money, and had promised that a minute report of all his doings should be made to the public, so that every contributor might know that the contributions had been applied to the proper object. This report ought to have been made, both to save his veracity and to vindicate his honesty, both of which have suffered, and, in many places, have been completely compromised by the non-fulfilment of his official promise. If, however, *he* is satisfied, *I* shall not complain.

While engaged as the agent of this Society, Mr. Robbins spent one year in Concord, N. H. and officiated as Chaplain to the State prison. Whether his labors were well directed in that sphere of usefulness or not; how much or how little good was effected; whether his conduct was approved or condemned by the authority of the prison, I am not prepared to say. My opinion, however, is decidedly in his favor. I believe from what I learned on the spot—from the prisoners and the public—that he was the very man for that place; and that he labored *indefatigably*, *intelligently*, and *efficiently*, for the spiritual good of his brethren in bondage. I believe, too, that he was unpopular with the keepers, and I regard this as an evidence in his favor, of the highest kind that the case admits of. Had they espoused his cause, and

desired his continuance there as Chaplain, I should have doubted his fitness for that office. For it is not more certain that there are *prisoners* and *keepers*, than that he who seeks the real and lasting good of the *former*, must find opposers and enemies among the *latter*. I make this statement with perfect fearlessness, in view of much personal observation and experience; in accordance with every principle of the philosophy of man; and from the history of prisons in every nation and age of the world.

At the expiration of his engagement in Concord, he visited Windsor, Vermont, and spent about six months as Chaplain of the prison there. In that place his labors were abundantly blessed, and will tell on the happiness of many immortal spirits, in the kingdom of God for ever. I pen this with the most distinct, vivid, and impressive recollections; and in the emotion of my soul, I cannot help inquiring why he was so abruptly discharged from that field of promise? It was his desire to *stay*,—it was the desire of the *prisoners* that he should stay,—the indications of *Providence* said—"stay,"—he offered his services as a *gratuity*,—and his conduct was not by any one impeached.—Why then was he removed? I heard the Superintendent of the prison assure him, that his services as the Chaplain of the prison, had been perfectly satisfactory. What, then, I ask again, nerved that unsympathizing arm, that threw him out of employment and usefulness, at the commencement of winter, to freeze or starve, to live or die? Let the truth be told, and tell it, you that can.

At the opening of the next spring, he thought of returning to Concord, and preaching again to the prisoners. He waited on the Governor with letters of recommendation, and laid a petition before the Legislature to obtain the chaplaincy of the prison for the ensuing year; but he did not succeed. Why he failed, may be inferred from the following facts.—

The Methodists were at that time contemplating a settlement in Concord. The number that had espoused that faith was very limited, and without some help, they could not support a preacher; and the salary allowed to the chaplain of the prison would be a very important item in their calculations. But this could be obtained only by having a minister of their order appointed by the Legislature, which was then in session. But then Mr. R. was a Methodist. True, but he was not the man for that place; and he did not

wish to be, any farther than for the *prison*. Why was he not the man for that place? Was he not a good preacher? had he not learning and talent adequate to the claims of the place? and was he not admitted to be pious? O yes; in all these respects he stood on no mean elevation. Why then was he not the man? Why, he had been a sinner; and though his opposers told the Lord every time they prayed, that they had been the *chief* of sinners themselves, they yet thanked God that they were not like this *publican*, and said to him—"Stand off—we are more holy."

This then is the sole reason why they set their faces against Mr. R.—HE HAD BEEN A BAD MAN. Whom then would they have? and how could they obtain him? In the Methodist Church the preachers are the property of the bishops, and they can dispose of them as they please. Accordingly the bishop was applied to, and a preacher was stationed in Concord for the coming year. This preacher was then recommended to the Legislature, and appointed chaplain of the prison, to the exclusion of the first applicant.

By how mean a motive is human nature capable of being influenced? In its idolatrous devotion to self, how reckless of consequences? By this act of pious selfishness, *fifty dollars* were gained by the Methodist Society in Concord, and a man who was peculiarly fitted for usefulness in a certain sphere, and who was trying to move in that sphere, was thrown out of all employment, and compelled to abandon a benevolent enterprise, which had twined round every fibre of his heart.

Is this a fair specimen of religious conduct? Is this the meaning of that divine command which requires all men, and christians *especially*, to do as they would be done by? Is this "*not* mentioning to the penitent sinner the sins that he hath committed?" Is this *brotherly love*? Is this the spirit of the prayer—"forgive *as WE forgive*?" With such records as these in the books which will be opened in "that day for which all other days were made," who would be willing to go to judgment?

One circumstance more, and I shall have done, for the present, with Mr. R. It is a rule in the Methodist Church that a local preacher shall be ordained deacon, when he has been licensed to preach *four years*; but Mr. R. has been on trial more than six years, and is not, I believe, ordained yet, though he has been recommended for it. He has also applied several times,

with the best of recommendations, to join the annual conference, but has always been rejected. Why? Not that he has *done* any thing amiss, since he has been among them, but they fear he *will*! He is in good standing as a *local preacher*, but he must not ascend to the house of Lords, lest he *should* do something, or through fear that he *has* done something in days of yore, that might overshadow the dignity of their illustrious body. Mary Magdalene could be in the society of Jesus; the thief on the cross could be with his Lord in Paradise; and the disciples could give the right hand of fellowship to Paul; but things have altered vastly since those times. The servant who has been forgiven, takes his fellow servant by the *throat* now-a-days. Should our Father in heaven act as some of his professed children on earth do, universal and eternal damnation would be certain. This annual conference refuses to admit a man into its fellowship, whose life for many years has been that of a christian, and who lives in the confidence of all his numerous friends, for fear that it will be disgraced; and yet a similar body, under the same bishop, voted Rev. E. K. A. as pure as the morning dew-drop, when the public opinion had thrown upon his soul all the guilt of the fallen angels. *Proh pudor!*

So much for the Rev. Mr. R. and his connexion with the sympathies and charities of christians. Against those whose conduct I have condemned, I have no personal animosities to gratify; nor have I any particular feelings of extraordinary friendship for Mr. R., that would lead me to vindicate his conduct against truth and justice. I am his friend to the full extent of honourable and christian principles, but no farther. Were there any thing wrong in his conduct, I could see it as quick as any one, and our mutual rule has ever been, not to cover each other's faults. No one, I think, knows him better than I do, and unless his conduct appears to me very different from what it really is, he is certainly an injured man; and his wounds are the less excuseable, inasmuch as they were received in the house of his *friends*. My sole design is to state *facts*, which I mean to do *faithfully*, without reference to friend or foe. If I should err, it will be unintentional, and I shall be open to correction; if I am correct, I am not answerable for the inferences which may be drawn from my statements.

Another individual who has been *brothered*, and *kissed*, and *smitten in the fifth rib*, by the Joabs of modern christianity, I will introduce to your

acquaintance under the title of THE AUTHOR.

But before I enter upon those events which belong more immediately to my subject, it is due to many pious and very excellent individuals to record of them, that the author ever found in them a spirit becoming the christian, and principles of oral and religious conduct which demonstrate, that, as there were seven thousand in ancient Israel, who had not bowed to the image of Baal, so there are many in *modern* Israel who are true to their profession. These he will delight to remember, and to cherish for them the warmest emotions of gratitude, while life remains. They are of that number who make *actions* the criterion of *character*, and who expect to be *judged* according to their *works*; and who claim not to be esteemed *christians* any farther then they *live* like christians.

As soon as the author was released from his long and dreary confinement, he united with the church with a view to the ministry, and to spending his life in publishing salvation to prisons. To this course he had been urged by many of his particular friends, and prompted by his most sanguine feelings; and to his mind, there was but one objection against it. This objection grew out of the popular interpretation of St. Paul's language, that a minister must have a good report of them that are without; which is generally understood to exclude from the desk all those who have, in any way, rendered themselves infamous, however sincerely they may have repented, and however thoroughly they may have reformed. On this he balanced for some time; but when he reflected that John Bunyan and the American Fuller, had been useful in the ministry, after having a very *bad* report of them who were without, he thought that he might be excused if he followed their steps. It occurred to him, also, that if Christ came into the world to save *sinners*—if the pious king of Israel came into the courts of his God, after washing his hands from the blood of *murder*, and bathing himself from the pollution of an *adulterous bed*—if the sacred orator of MAR'S HILL came to the ministry from off a sea of martyr's blood, which his *wicked hands had spilt*—if the preacher on the day of Pentecost had been the *Satan* whom Jesus ordered to get behind him, and the *profane denier* of his accused Master—if, in fine, he who was with Jesus in Paradise, in the *evening*, had been conducted, in the *morning*, from a *criminal's dungeon* to the cross of an *ignominious death*; no good reason could be assigned why a

man might not leave a prisoner's cell, and take that course to usefulness which providence seemed to point out.

The objection thus obviated, and a sense of duty prompting him, he cheerfully followed in the opening of providence; and in the usual time, after the customary examination, he was admitted into the ministerial fellowship of the Methodist denomination, and licensed to preach the gospel.

He now began to feel as if he was in the bosom of none but true and christian friends. In the deep blue firmament of his future hopes, no cloud was seen; and the earth around him was rich with the fragrance and verdure of promise. But "disappointment smiled at hope's career," and blight beneath, and clouds above, soon taught him that a "brother will utterly supplant, and a neighbor walk with slanders"—that "they will deceive and not speak the truth."

During the first six months after his enlargement, he was frequently in company with some of those preachers who had officiated as chaplains at the prison; and from what he had heard them say in their sermons and prayers, he was expecting them to take some interest in his case, and give him some advice. But in this he expected too much. Not one of them ever inquired what he was doing, nor offered any assistance to get him into business; nor did they ever mention the subject of *religion* in his hearing. These were *negative friends*, for they did him no *good*. They were also *negative enemies*, for they did him no *harm*. And had *all* his enemies been *negative* ones, it would have been a very happy circumstance for him; but alas! most of them have been *positive enemies* to the extent of their power.

The first brother in the ministry who lifted up his heel against him, was Rev. R. L. H***. I would mention this man's name with some respect, knowing that the person he injured, feels that a great debt of gratitude is not cancelled by any efforts which his enemy has made, to divide him from the esteem, respect, and confidence of the church. The claims of gratitude I know are lasting, and it must be painful to find one who has been a benefactor, become an enemy without any cause. But such things *do* happen, and this is an instance of it; and though the heart that bled retains

no resentment, still I have a motive for rescuing this fact from oblivion, and preserving it in this connexion. The fact is as follows.—

The author, after an absence of some months, returned to the vicinity in which Mr. H—— resided, and by the request of a friend, preached from a particular text. In the sermon he dropped some remarks, which were considered as outstripping the theological landmarks of the order, of which it pleased Mr. H. to take a most scrutinizing notice. The sentiment objected to was, that the proportion of the saved over the lost, would be as *ten thousand* to *one*. As this opinion was very harshly and unfairly treated, the author took it up in another discourse, and argued it at full length from the Scriptures. Mr. H. was present, and closed the meeting with a string of remarks as long as the sermon, which he treated with no high degree of christian courtesy. After the service was closed, the disputed sentiment was discussed by the preacher and Mr. H., and the latter gentleman soon found, that he had engaged in a work for which he was perfectly unprepared. Scarcely able to write *legibly*, profoundly ignorant of *all science*, and even of the first principles of his vernacular tongue, he yet had the vanity to contest a point in the high science of theology; and the immense weight of his ignorance, which he had never felt so sensibly before, so wounded him into resentment against his antagonist, that he began to denounce him as a *heretic*, and tried to ruin his christian character in the church and among his friends. As the author left that place immediately to fulfil his engagements, Mr. H. had an excellent opportunity to gratify his unenviable feelings against him, which he did to a far greater extent than will suit his convenience in the world to come.

Another Joab will be found in the person of Rev. E. W. S. This man was a friend to the author while his own interest required him to be, and when *that* interest changed, he became his enemy. The conduct of this man is enough to make humanity redden with shame. The meanness of his soul—the pollution of his heart, and the iniquity of his conduct, exhibit outlines of character, which I hope can find a prototype in no being but himself. Slander was his delightful and busy employment; and with low hints, dirty insinuations, and all the filthy brood of scandal, he was in close fellowship and constant communion. It is enough to say of this Rev. gentleman, that when he desired to take the place of the author, he laboured with all his

might to shake the confidence of the community in him; and though he laboured without success, he rendered the situation of his prophetic victim so unpleasant, that he voluntarily withdrew from a field which his unprovoked enemy had *secretly* planted with *thistles*.

But Mr. S. gained nothing by this; for though the field which he desired to occupy, was left open to him, he found that the community there had no desire for *his* services. This is generally the result of such conduct. There is a re-action in guilt, and Haman generally dies on the gallows which he erected for Mordecai.

About this time the author had occasion to doubt the sincerity of some other clergymen, who made great professions of friendship for him, and were loud in praises of their own piety. He learned here the elements of that knowledge which has been fully taught him since—*that profession is not principle—that self-interest is so general a spring to action in ALL minds, that it will not be safe, in practice, to admit of any exceptions—and that generous confidence in man is often an ignis fatuus that leads to ruin.* SELF is every man's idol, and he loves it with all his heart. I admit that there are exceptions, and humanity is not *really* so bad, as, in practice, we are *prudently* to consider it. There are *exceptions*, but who knows, where to make them? "COMMIT YOURSELF TO NO MAN," is the voice of all experience; and *my* experience has taught *me*, that, in a clash or competition of interests, no man will regard *mine*, and I must *contend* for, or *lose* it.

It pains my heart to be compelled to write such bitter things against that nature which I possess in common with others, and I should not yield to the necessity of doing so, had I not an important duty to perform. There are many individuals coming out of prisons every year, and they are coming out under an impression that they can regain their characters and be respected by their fellow men. I wish to inform them that their expectations are groundless. If they will consent to become the *tools* of a party, and *stepping* stones for others, they will be treated *as* tools and stepping stones; but if they set up for themselves, and contend for their rights, they will be like deers amidst a thousand blood hounds and hunters. Few men whose interest they will not promote to the neglect of their own, will be too good to tell

them of things gone by; and even ministers will treat them worse than Michael treated the Devil.

I have made these remarks with reference to the treatment the author received from Rev. Messrs. J. S——, N. W. W——, A. C—— and M. C——, and, also, to what he suffered during his connexion with the M. P. C. in B——, a faithful though brief account of which, I am now going to submit to the reader.

The author's connexion with this church was formed in the month of July, 1831. He was engaged by the committee in full view of his imprisonment, and with a solemn pledge on their part, that what was past should never be considered any thing against him in their minds, and that they never would desert him on account of it. How well some of them have kept their pledge I need not say. All that related to their pastor was soon communicated in different ways to the members of the church, and they respected him none the less on account of what was past.

The ministers who had officiated previous to this time, were Rev. J. S., President of the Annual Conference of the M. P. Church in Massachusetts, a man whose name is identified with the early history of Methodism in New England, and dear to the hearts of thousands; Rev. T. F. N. Superintendent of the church in Malden; and Rev. J. D. Y. These gentlemen united their labors to promote the interests of the church, and they expressed much satisfaction when the author was appointed to labor in that place. Both in the public prints, and in private conversation, they gave the strongest demonstrations of their good feeling and entire satisfaction in the event. Why they changed their minds, and what cause they had to become enemies to the man whom they had so highly commended, must be inferred from circumstances; and all the circumstances necessary to this inference I shall now lay before the reader.

Soon after the author's connexion with the church, Rev. Mr. Y. proposed to have him ordained *Deacon*, which was accordingly done. The church immediately proposed to have him ordained *Elder*, which was also done. To this some objections were made by the ministers above named, but the vote for it, both in the church and conference, was *unanimous*.

About this time there was an obvious change in the conduct of Rev. Mr. Y. The cause of this change, I should not like to assume the responsibility of giving. Some thought it was on account of the last ordination, and the act of the President in appointing the author superintendent of the church *over* him. If this was the cause it evinces a greater share of vanity in him than ought to belong to a christian minister.

At no distant period from this, Rev. Mr. N. began to give some indications of coldness towards the church and its appointed minister. I have no more data for the cause of *this* change than I have for that in Rev. Mr. Y. This much, however, I know, that Rev. Mr. N. condemned in the most pointed and bitter language, the conduct of the other gentleman, said it was unmanly, unchristian, and cruel.

Last of all Rev. Mr. S. became displeased with the author, and united with the other gentlemen above named to injure him. What this last gentleman gave as the cause of his coldness towards the author was a sentence in one of his published letters, which he considered as a reflection on him. The sentence was the following:—

"Had you sent us an able minister when Dr. French left us, not only would some serious internal difficulties have been prevented, but the cause which then began to bud, would, before this time, have produced a glorious harvest."

This letter was addressed to the Editor of the M. P. Periodical in Baltimore; and as Rev. Mr. S. took charge of the church when Dr. French left it, he said the implication was that *he* was not an "*able minister*."

It was not in Rev. Mr. S's nature to take fire at such trifles, and it is due to him to say, that he was instigated by others, or he never would have acted so inconsistently. The sentence objected to had not the least reference to him, who was highly and deservedly esteemed by the church, but belonged to things well known at the time, in which he shared no blame.

The course pursued by the author amidst these difficulties, was that of self-defence and submission to the proper and only authority of the church. He was what *that* authority made him, and every favor it conferred, came

unsought. He had his opinions of right and wrong, and he always counselled, but never opposed the voice of the church. In this respect he differed from his enemies, who took it on themselves to oppose what the church did, and to deny her right to act independently of them, or against the will of a body of which they were the Alpha and Omega. They used every effort in their power to accomplish their purposes against the church and its minister, but to little effect. At length, growing weary with perpetual war, the author concluded to take up his connexion with his people and go to New-York. To this, some opposition was made by the church, but his purpose had been matured and could not be changed. He accordingly took letters, and united with the Conference in New-York; which also received the church into its fellowship at the same time, and sent Rev. Thomas K. Witsil to superintend it. But this was an unfortunate connexion. The old enemies of the church and of the author, began now to practice on Rev. Mr. Witsil, and in a very few months the church was shaken down and scattered to the winds of the heavens.

I am now going to mention particularly what the Rev. enemies of the author did to injure him, while he was in B., and after he left it.—They tried to shake public confidence in him by mean allusions to his past history, both among the members of the church and congregation. They wrote letters to a distance to prevent his getting into employment. They published the most bitter and unchristian libels against him in the common newspapers of the city. And they resorted to all the means they could to cut off his means of support in the church. I have on record all their acts and doings against him—I have copies of the letters they sent to New-York—the pieces they printed in the papers—and what they said to individuals in the city. One of them may think that he has been cunning enough to escape observation in what he has done, but he is mistaken. His path has been observed, his track has been seen; and there may be a day of retribution.

Now, what just cause had they to array themselves against that individual? What evil had he done, that they should treat him thus? He has means of referring to their own printed letters, in which they speak much in his favor; what has he done since to give just occasion for such attacks?

The author is fully aware of the fact that no man is a proper judge of his own cause, and that in the heat of opposition, both parties are apt to be in the wrong. Of his own fallibility, he has had too many painful evidences to entertain a doubt; and he presumes not to say that in all things he acted as he should were he to be placed in the same circumstances again. How infallible his enemies are, in their own opinion, he is too well informed to inquire. They think that they did right in all they did, I have no doubt of this, for the Holy Bible assures me that God will send to certain individuals strong delusions that they may believe a lie. They no doubt think they were doing God service, when they were trying to ruin a fellow creature. When they were serving their master well, they said; "Come, see our zeal for the Lord." I readily admit that, like Saul, they did these things ignorantly and in unbelief; and for this reason I hope they will find mercy, and be saved in the day of the Lord Jesus, even if it should be "so as by fire." It is then, as has been already intimated, very possible that both parties have something to lament, and something to repent of. On this possibility I have thought much, and while I can find no vindication for his enemies on the principles of honorable conduct in heaven, or earth, or under the earth, I find it equally difficult to vindicate the conduct of the author in some things. It was right for him to submit to the voice of the church, and to promote her interest against all her enemies. It was right for him to defend himself against the wicked attacks of his personal foes. And the only part of his conduct that, after deliberate examination, seems to deserve any animadversion is, that in which he put confidence in strangers, and trusted them contrary to the maxims of prudence and the voice of his own experience. But he trusts that the evils he endured from want of prudence will have a good effect on him for the future; and if they cause him to withhold his confidence from strangers, and trust no man because he is a *professor* or *minister*, till he knows whether he is what he professes to be, he will have no occasion to regret them.

The melancholy fact that the most sanguine professions of friendship are not to be relied upon, draws strong confirmation from the conduct of the Reverend enemies of the author mentioned above. They were warm in their *professions*, and equally warm in their *enmity*. His flatterers and eulogists, and his traducers and persecutors. Making him an angel one day, and a devil the next. One week learned and eloquent, and another ignorant and

stammering. With one breath comparing him to Cicero, and with the next to an Indian. Any thing or nothing—a saint or a sinner—according to the whim of the moment or the expediency of the case. It is impossible to find greater inconsistencies than their conduct presents; and if any man wants occasion to be ashamed of his race, let him look at the actions of these men. They kissed and stabbed; defended and deserted; applauded and condemned, just as their present interest seemed to dictate; though the object of their praise and vituperation was the same being at all times, acting on the same principles, and pursuing the same even and steady way.

But what makes this picture the more saddening to the soul, is, the extent of its application. It presents the very common exhibitions of character which abound in our world. Under similar circumstances, who that has not the lovely principles of the gospel in his soul, would act very differently? This is, however, no apology for them. The frequency of a crime detracts not from its deformity, and sin is sin though an angel should commit it. And the general application of these ugly features of human depravity demonstrates the chilling truth, that he who has fallen can never hope to rise. Interest will have sway, and before its influence, justice and mercy are but dust before a tempest. He that sins and is detected will carry the scar to his grave, and he might as well try to blot out the sun as to hide it.

I have now finished the account which I promised to give of the author's connexion with the M. P. C. in B.; but it may not be out of place to mention here what treatment he met with from some other ministers. Passing along the street in the city, he met, one day, the Rev. E. W. a clergyman of the Episcopal Methodist Church. This man addressed him in a very abrupt, rude, uncivil, ungentlemanly, and unchristian speech, of which the following is a literal extract. "You ought never to have been allowed to preach, and if I had the power you never should, nor any one like you. You may be a good christian and get to heaven, but a man who has fallen under the censure of mankind ought never to be elevated to the ministry." Surely the man who should dare to use such language to a fellow mortal, ought to be very pure himself. I wish the Rev. E. W. to remember this treatment which he gave to his fellow man, and be very careful not to fall under "the censure of mankind." And before he prepares to abuse and insult another man, let him take a little precaution, lest in judging others he should

condemn himself. It is a very common fault of our nature, from which even the Rev. E. W. was not exempted, to magnify specks on the character of others into blots, and consider blots on our own as only specks.

About this time the author had commenced a series of publications in a certain *Religious Periodical*; but his *name* giving offence, he was desired by the Editor to substitute a *fictitious*, for his *real* signature, as his productions could no longer appear in his paper unless he did. This he said was the decision of the Committee of the paper, most of whom were *clergymen*. They had nothing against his writing for the paper, if he would suppress his name, but it would not comport with their views of propriety, to admit him to an equal privilege with themselves. The author from that time, withdrew his contributions from the columns of that periodical.

Now, in view of this treatment endured by the author, I have but few observations to make. His enemies were ministers, and other officers in the Church of Christ. They were under solemn obligations to do as they would be done by; and yet they perseveringly opposed a man who had never injured them, and because they could find nothing else against him, they harped on what had transpired more than ten years before. While they professed to love their neighbour, they wilfully did him an injury. With one hand they took him by the beard to kiss him, while the other was holding a pointed dagger. This shews what sinful beings are found on earth, and proves that many who profess to be the meek and humble followers of the LAMB, have hearts warmed with the blood of the WOLF. It is truly painful to dwell on such uncomely exhibitions of human character, and I should not have been so minute in these details did I not feel impelled by a sense of duty. I have trodden this thorny path myself, and for the benefit of those who may come after me, I wish to leave, at every turn in the road, this salutary maxim—TRUST NOT IN MAN. Many no doubt will consider my accounts of human nature too dark; but no one who has had experience in the school of poverty or dependence, will charge me with being an *Acetic*. I have no enmity against my species to draw me from a fair statement of facts, nor can I be induced to keep back, out of a false respect for mankind, a fair representation of those traits of character which lie hidden from ordinary view, like vipers under a rose bush. Believe my testimony, or doubt it; approve or condemn; call me friend or foe; God knows, and *you*

will one day know, that I have declared nothing but what my ears have heard, my eyes seen, and my hands handled.

One paragraph more will close this part of my subject. One Sabbath as I was seated on my bench in my cell, spending the lonely hours in deep reflection on the miseries of life, and the unsympathizing temperament of the human heart, one of my cell-mates, more intelligent and observing than the others, very suddenly broke out into the following remarks:—

"Our sentences are various, but they should all be alike. Some of us are doomed here only for a series of years, but we ought all to have been sentenced for life. Some of us may live to get our liberty, but we ought all to die here. What interest has any one of us beyond these walls? What hope can we cherish of ever regaining the confidence of our fellow men? We have fallen and how can we rise? I have been taking an imaginary walk among men, carrying along with me the marks of my present condition, so that all might know where I have been. I have visited all classes, and all are alike. I have, all through my journey, laboured to do right, and give evidence that I have reformed. How have I been treated? I have been hissed by the multitude—despised by those who were once my equals—and trampled on by all.—The church has indeed recorded my name, but she placed me behind the door—and the minister always shunned me if he could.—Saints and sinners looked at me askance, and I have returned contented to live and die in prison, rather than go out and wither under the certain scorn of mankind."

II. My second proposition is, to shew how repentant criminals *ought* to be treated, according to the divine principle of the text.

It is recognized as a principle in the divine administration, that a bad man may become a good one. On this principle the whole system of the gospel turns. And when the happy change takes place, it is another principle of the same administration, to forgive the past transgressions, and mention them no more to the injury or confusion of the penitent. When the prodigal returns his rejoicing father thinks no more of his prodigality. This is the manner in which God treats his repenting children; and he makes his example a law for all his creatures. "If the wicked restore the pledge, give again that he had robbed, walk in the statutes of life without committing

iniquity; he shall surely live, he shall not die. None of the sins that he hath committed shall be mentioned unto him; he hath done that which is lawful and right; he shall surely live." This is the law of heaven on this subject, and it ought to be obeyed. Christians pray to be pardoned *as they pardon*, and God assures us that if we do not pardon those who trespass against us, we shall not be pardoned for our sins against him. Hence the manner in which repentant and reforming sinners should be treated is obvious; and it is equally obvious that those who do not treat them according to this rule, are not christians.

III. My last proposition is, to shew the good that would flow from such treatment, not only to the *penitents*, but to the *community*, and the cause of *religion*.

1. The good that would flow to the *penitents*.

By such treatment they would be cheered and helped on in their process of reformation. A contrary course has driven many a man away from his pious resolutions, and caused him to return to the commission of crime. The heart of the penitent man is tender, and this sensibility is in proportion to the greatness of his sins. *Then* it can bear but little, whatever it may do afterwards. *Before* David's repentance, Nathan said to him—"Thou art the man!" but not *afterwards*. This was right; and the sinful monarch reformed. When the soul is torn by the lashes of conscience, it needs no other reprover. Then the heart is bleeding and needs not any other application than oil and wine. Its language is—"Have pity upon me! have pity upon me! O! ye my friends! for the hand of God hath touched me!"

No one knows these feelings better than myself; and I know, too, what it is to have the feelings of a broken and contrite heart, harrowed up by the unsympathizing hand of *sneering*, *reproaching*, and *scornful professors*. Well do I remember those hours of darkness and pain; and a thousand scars on my soul will never suffer the remembrance to die. And that my readers may have some idea of my feelings at that time, I will ask their indulgence to insert for their perusal the following extract of a hymn, composed in one of those seasons of self-condemnation and derided misery.

"Yes, I feel that I'm forgiven,
Mercy cheers my soul at last;
Yet my heart is always riven
When I think upon the past!

O the killing recollection!
How it withers up my soul!
What can blunt the keen reflection,
Or this aching breast console!

If my tears, I'd weep an ocean!
If my blood, I'd rend this heart!
Could I stop this dread emotion,
How with being would I part!

But the *past*—'tis past *for ever*!—
Yet, if suffer'd still to live,
Will the friends of Jesus *never*,
My repented deeds *forgive*?"

Such are the feelings of a contrite soul, when the painful remembrance of its sins is aggravated by the constant and unfeeling indications of a world's scorn.

Now, the treatment which such an individual ought to receive is expressed in the text, and such treatment would soften the flinty path of his return to virtue, and facilitate his progress. Many are now in the highway of a sinful career, whom such treatment would have saved from ruin. I know them well, and could call their names. They commenced a reform; they looked for encouragement; they leaned on the specious but deceptive professions of christian sympathy; but were disappointed in all. From the altar to the grog shop, and from the throne to the dunghill, they found that, though a sinner might find pardon, and his sins be forgotten in heaven, they will be kept in cruel remembrance on earth, and thrown in his face as long as he lives. This is more than feeble humanity can often endure. It is implied, and by an inspired writer too, that no one can bear a "*wounded spirit*." Who then can bear on an already "*wounded spirit*," the mountain of

universal insult and scorn? Who can endure forever an hourly crucifixion on the contempt and derision of the whole world? Until christians become converted to the christianity of Jesus, the friend of sinners; and until all men act on the broad rule of doing as they would be done by, there can be but little hope of the reformation of any who have been considered sinners above all men, "because they have suffered such things."

The conduct of the mass of mankind towards those who have become notorious by their sins, is fitly represented by those animals which always fall on such of their species as are in distress and kill them. Even the warmest votaries of the penitentiary system—the members of the "PRISON DISCIPLINE SOCIETY," as a body, treat the sons of guilt and crime as the inhabitants of the country towns in New-England treat their neighbour's unruly cattle,—thump them, dog them, shut them up in pound, and forever after give them a bad name.

Nothing can be more absurd than such conduct; and no course of treatment could be more pernicious in its effects. It must necessarily frustrate the most benevolent objects. Do all that can be done to reform the guilty while they are in confinement, by *bread and water*, *chains* and *cells*, and all the wonderful discipline of the *lash* and the *lock-step*, with the much better means of *tracts*, *bibles*, *priests* and *sermons*; but if they are left, on their release from prison, unprotected from the insults of mankind, and not helped to get into decent employment, nor surrounded by the kind attention of christians, nothing has been done effectually. The man should not be neglected in prison. That is the place to begin, but not to complete his reformation. Let mercy's angels meet him at the door of his cell as it opens to let him out, and let them be his guardian spirits through life; and then they may take him to heaven. The time of his release is the turning point in his moral history. Like the unclean spirit that went out of the man, if he has to go through dry places seeking rest and finding none, he will, from necessity, return to his house whence he came out; but if he is received as was the returning prodigal by his father, no more will be heard of his wanderings.

Christians! think of this. You who exhaust all science to compute the worth of one soul, and send the emanations of your love for sinners to the

furthest verge of the other hemisphere, take a few thoughts for those of your own country. Look at home. And if all souls are of equal value, and he who converts one sinner from the error of his ways, saves a soul from death and hides a multitude of sins, try at least not to *prevent* the conversion of a sinner, by mentioning to him the sins of which he has repented.

2. The good that would flow to *community*.

It is presumed that a general exemplification of the principle laid down in the text, would not only prevent penitent offenders from relapsing into crime, but would fully confirm them in habits of virtue. In more than nine cases out of ten, this would be the happy result; while the *opposite* course would in full as many cases, lead to an opposite result. God always acts on this principle, and because he is good to all and his tender mercies are over all his work, his saints love him and praise him, and sinners are led to repentance. His kingdom is a kingdom of mercy. Every part of his administration is governed by mercy and love, and these traits of its character are visible every where—in the golden flood of morning, and the dark and howling demons of the midnight storm; in the soft and harmonious tones of the gospel, and the harsh and thundering notes of the gloomy and fiery mount. He is the Lord God, merciful and gracious, slow to anger and of great kindness; keeping mercy for thousands, forgiving iniquity, transgression and sin; but by no means clearing the guilty. He will not contend for ever nor be always wroth. He will not cast off for ever. His anger continues only for a moment, but his mercy is everlasting—it endureth for ever. When desired to display his *glory*, he shows his *goodness*. He loves not only his saints, he also commendeth his love towards *us*, in that while we were yet *sinners* Christ died for us. And we are commanded to love *our* enemies, to bless them that curse us, to do good to them that hate us, and pray for them that despitefully use and persecute us; that we may be the children of our Father who is in heaven, who makes his sun rise on the evil and the good, and sendeth rain on the just and unjust. Such being the principles of the divine administration, and such the certainty that they will result in the reconciliation of all beings to the Father, it is inferentially presumable that the same principles fully acted out by men, would produce the same happy and desirable results.

If these remarks and inferences are just, then the good that would result to community by exemplifying the principle in the text is obvious. It would exchange bad men for good ones. It would throw a wall of security around its institutions, its peace, its prosperity and its virtue, stronger than mountains of brass. Under such a firmament of heavenly principles and conduct,

"All crimes would cease and ancient fraud would fail,
Returning Justice lift aloft her scale;
Peace o'er the earth her olive wand extend,
And white-rob'd Innocence from heaven descend;
The world would smile with boundless bounty bless'd,
And God's pure image glow in ev'ry breast."

Towards this glorious state of society I confidently look, with the strong emotions of a fixed and unwavering faith; but I invariably associate it with the universal prevalence of benevolent principles and beneficent deeds. Good will to all mankind must be the inspiring motive of every action. The shepherd must go into the wilderness after his lost sheep, and rejoice when he returns with it; and the father must go out to meet his returning prodigal.

3. The good that would flow to the cause of *religion* by such conduct, is my last topic.

It would be redeemed from the charge of *inconsistency*. Religion is judged of by the conduct of its professed friends, and condemned or applauded from their exhibitions of it. Every inconsistency in their conduct is written as a mark against their creed, and all their excellences are placed to its credit. The truth of this no one will deny. What verdict then will mankind render against a religion, the professors of which continue in a course of conduct which crosses their principles at every step? How can they call that a good religion, which does not exert sufficient influence over its votaries to make them even *consistent*? But if the friends of religion act according to their principles, and never depart from those maxims of propriety which they inculcate on *others*, they will at least obtain for their religion the credit of *consistency*. Now the text contains *one* of the principles of the Christian religion, and all who profess to be christians acknowledge it to be genuine; but where is their consistency if they depart

from it in practice? Christians, will you be consistent? For God's sake let the blessed Jesus be wounded no longer in the house of his friends!

This course would also stop the triumphs of Infidelity. This monster subsists on the faults of professors, and his triumphal car is stained with the blood of christian wars. Preach to him the excellences of your faith till the day of doom, and by one single reference, he can silence the most eloquent tongue. He unfolds the long catalogue of sainted crimes, and the christian must be dumb. The christian conduct cannot be vindicated on the christian's principles, and the enemy can be put to silence only by the abstract excellence of the faith which he despises. Between christianity and christians there must be a distinctive line drawn, or they will obscure its brightness and beauty by the association. When they come up in their doings to the high, pure, and stainless criterion of their professed principles, then, and not till then, will Infidelity be put to the blush.

It is high time to commence a reform in the conduct of professors; and no where is this reform more needed than in the principle of the text. I will not stop to argue this point, for no one dares deny it. Look abroad, christians, and see the characters specified in the verse read at the commencement of this discourse, roving up and down the earth. How are they treated? How do *you* treat them? Who wipes their tears? who gives them a shelter from the rude storms of winter? who gives them a kind look or a civil word? who leads them into the vineyard in the morning and gives them a penny at night? Rather who does not shun them?—insult them?—spurn them from his door?—force them to die in innocence or live by crime? Who dares confront these charges? You that kneel at the altar of Jesus, and commemorate his dying love, are you innocent? Ministers of the everlasting gospel, are your garments clean? Missionary, Tract, Bible and Prison Discipline Societies, how stands your accounts? Christians of every rank and denomination, when have you fed, clothed, ministered to, and visited your hungry, naked, sick, and imprisoned Jesus in the person of his followers? In the name of Jesus Christ, then, and for the honor of his cause, I pray you, in behalf of repentant criminals, to REFORM.

In concluding this Essay, which has cost me many a painful hour, I cannot help remarking the vast difference that exists between the conduct of

God and of his creatures, in relation to repentant sinners. He not only pardons, he also forgets; but men do neither. My experience on this subject leads me to results very different from those which the sanguine professions of christians led me to anticipate. Such is the gloomy fact, and I must endure it. From man, even the man of the *altar* and the *desk*, I have nothing to hope for. Within the limits of the wide world, and beneath the heavens, my prospects are as dark as the "noon of night;" despair has hung her dreadful curtains round all things, and in its chilling, stiffening shade, the frost of endless blight is fast gathering upon me. I meet at every turn the scorn of every eye, and I have only to bury myself in some distant clime, till my race on earth shall close. "O for a lodge in some vast wilderness!"

But though all earth is dark, and mankind will be my enemies for ever, there is a God who will never desert any that trust in him; and conscious that he loves me, and will defend me, I will endure without a murmur all the evils of life, and wait all the days of my appointed time till my change come; in the humble hope, that, in the grave, I shall not hear the voice of the oppressors, and that the reproaches and scorn of mankind, which is too much for me to bear on earth, will not follow me into the world to come.

Fly swift, ye intervening days,
Lord, send the summons down;
The hand that strikes me to the earth,
Shall raise me to a crown.

THE CONNEXION BETWEEN INTEMPERANCE AND CRIME, AS VISIBLE IN PRISON.

Intemperance is not the cause of *every* crime that is committed, though it is of very many of them. It is *itself* one of the greatest of crimes. It is a violation of not one law only, but of *many*. The drunkard outrages the law of his nature, tramples on the laws of morality, and flings contempt on the law of the Almighty; and it is not at all wonderful that so manifold a sin should meet with a various and adequate retribution. Intemperance unfits its votaries for every thing good, and qualifies them for, and spurs them onward to the commission of every base and sinful work; and it is impossible to estimate the crimes it has committed, or the miseries it has produced. I saw, in the Windsor Prison, many of the criminal votaries of this Moloch of modern idolatry, and my soul was often severely pained in contemplating the certain and lasting misery with which he rewarded his most faithful worshippers. I have not time, in this place, to enter into a full discussion of the connexion of intemperance with the crimes and misery of state prisons; but I will present a few striking illustrations of the subject, which may answer in the place of a volume.

L. N. was a very intemperate drinker. Rum had *marked* him for her own. He had worshipped his idol in gaols and prisons for a thousand miles round; and he was always punctual and regular in his devotions. The consequence was—the loss of public confidence—a straw pillow for his head, and a grated dungeon for his home—the pollution of his soul, and the ruin of his body—a death in shrieks of agony, and a prison-yard for his grave.

C. C. learned while a youth to drink the poisoned glass. He was well educated, and of a respectable family. His habit of intemperate drinking unfitted him for business, and he became the scoff and scorn of the giddy rabble. He fled his country for a crime, and remained at a distance for years,

adding sin to sin. At length he returned home and repeated his former crime, for which he was sent to Windsor.

No one can describe the pain he endured when taken away from the bottle. "*Horrors!—Blue horrors!—Ruffled horrors!*" were the words in which he expressed the agony of his body and soul, under the cravings of an intemperate thirst for rum. After several years he was pardoned, but he returned to his former habit; and in one of his paroxysms of intoxication he inflicted a mortal wound on a fellow-being, and was sent back to prison, where he now is.

B. F. H. was a victim of drunkenness. Few men ever received from the hand of their Creator a richer store of intellectual capacity than this man, and on none were such gems more wastefully lavished. He abandoned a most amiable wife; and after spending many years in different prisons, the last I heard of him he was fitting for another. Over this victim, intemperance might boast, for he was like a star of superior brightness; he was learned, ingenious, and eloquent, qualified for a high station, but self-damned to the lowest.

P. D. illustrated very affectingly the legitimate consequences of intemperance. After he became its victim, it made him the author of a crime for which he was sent to prison for eighteen months. When this term had expired, he enjoyed liberty about three months, during which time he added another crime to the effects of rum, for which he was sent back to prison for three years. When these had expired, he was let out into the fields of liberty again; but in less than *seven hours* he was in gaol for a crime which he had had but just time enough to get drunk and commit, and in less than *seven days* he was back again in prison for six years.

This was entirely the effect of rum. He was not a criminal of *choice*, but when filled with rum, he would always steal. I never knew a man of better or purer moral feelings, when he was sober; and what is by no means common, he had such a sense of the crimes he committed, that he justified his punishment, and always considered it merciful. What a pity that *such* a man should have been ruined by intemperance.

I need not dwell on particular cases.—How great a proportion of the crimes which sent so many prisoners to Windsor, were directly or indirectly caused by the sin of intemperate drinking, I have not sufficient data to ascertain; but I have no hesitation in saying, that one half of the entire number would never have been in that gloomy mansion, if there never had been any intoxicating liquors. The victims of this prevailing sin, which I saw in that dreary house, are passing through the field of memory, and they appear like the armies of Gog and Magog. It would be well for the dealers in this ruinous article to dwell a few minutes every night on the *moral character* of their employment. They are earning their daily bread, and growing rich, on the profits of a poison which sends the *body* of the purchaser through flames of torment to an untimely grave, and prepares his *soul* for the miseries of the second death.—Let rum, and all the family of intoxicating drinks, be banished from the land, and half the rooms in our prisons will be soon found without an inhabitant.

I have known many prisoners who had gone to such excess in drinking, that for a year after they came into prison they endured a trembling of their hands, and a burning thirst for rum, which rendered their existence a real curse. Very many have I heard lamenting their crimes as having been occasioned by rum. Their language was—"If it had not been for liquor, I should not have done so;" and this was no doubt the fact. But though the prisoners so deeply lament their past folly and sin in drinking, it is not easy to cure them of it. After spending years in prison, and after many a "dolorous lament" over the effects of intoxication—after writing and publishing against intemperance, it is no strange thing to hear that they are drunk the day they are released. With one instance of this kind I will close this article. B. F. H. while in prison, wrote several essays on the sin of intemperance, to which he had been given, and delivered an oration on the subject in the prison chapel; and he professed to have been thoroughly reformed. Through the influence of his friends he was pardoned, and the journal of the prison contains the following entry in respect to him;—"Benj. F. Harwood *pardoned*—returned at night—DRUNK."

INFLUENCE OF "FREE MASONRY" ON THE REGULATIONS OF PRISONS, AND THE DECISION OF COURTS.

On this contested point, I am, from ocular demonstration, a perfect sceptic. I have known many Freemasons in prison, and I have known *masonic* keepers treat them with a severity for which there can be no excuse. I have known many instances of this kind. And so thoroughly is it understood that MASONRY is of no use to a man in that prison, that when a masonic prisoner is in punishment, the common remark is,—"This is rather hard treatment to receive from a brother."

I am not a *mason*, and should there be any real necessity for me to take sides in the contest on this subject, I should be an ANTI. I am not then under the influence of any prejudice in favor of the order, and I wish to record it here as a historic fact, that masonry was not of any obvious advantage to a single prisoner in Windsor, during my whole acquaintance with it. I never heard it mentioned as a matter of complaint by the prisoners, that any one had been favored in the least because he was a mason, which was not the case in respect to other things. It was often said of the Master Weaver, that he was partial to the IRISH, and to ROMAN CATHOLICS. The Superintendent was often accused of shewing favor to the BAPTISTS. One of the Visitors was often cursed because he was thought to be a particular friend to professors. But it was never said of Judge Cotton, or Captain Hunter, that they were partial to the masons. Indeed I always thought that they retained a little *wrath* against such prisoners as had belonged to *lodges*, on account of their having disgraced the order. As an instance of the treatment which masons have to endure in Windsor, I will relate the case of H. M.

He was sent to the prison for ten years. He was a man of good habits, was industrious and orderly, and I know not that he did any thing that should

make him an object for particular wrath; and yet he was made to stay nine years out of ten, and was, moreover, treated rather unmercifully all the time. It is said by some that the rule of the masons is to *hide* a brother's faults, while they *can* be hidden, and to withdraw their protection from those whose faults are known.

If this is true, it accounts for the treatment which I have mentioned. But however this may be, I have two facts in relation to masonry which I learned in Windsor, and I shall make this the place to record them. The first relates to a stranger who was apprehended in Burlington and committed to gaol for passing counterfeit money. He was a man of gentlemanly appearance, and there was no doubt of his being guilty of the crime alleged against him. Soon after his commitment a letter from him to some of the principal men of the place, drew a number of them to his room. He was taken out on bail, and permitted to go on his way. He was a mason, and those who visited him were masons; and from a full conversation with him, which was overheard, it is certain that his masonry was the sole cause of his release. There was, however, no bribery of officers, no polluting of the streams of Justice, in this case, as the men who befriended him, did it legally, and they were private individuals.

Another fact is couched in a conversation which I had with a mason while in prison. We were personal friends, and what was proper for him to say, as a mason, he said to me very freely. He remarked that as a prisoner under sentence, he was exiled from the charities and the interference of the Fraternity of Free Masons; but still, he said, masonry was useful under other circumstances. "It would be very convenient," said he, "for a person in distress at midnight, even in a strange place, to be able to call at a house, and by giving a particular sign be secured and protected."

This is all that my observation in prison enables me to say of the influence of masonic principles in that place, or their interference in any way, with the administration of justice.

A great stir was made about Burnham, and much craft and skill were employed to make the public believe that, instead of dying and being buried as was the fact, he was let out of prison by bribery on account of his being a

mason. But this was all a political farce, and evinced only the length to which political factionists will go, to effect their purposes.

One remark more and this article will be finished. It is this. The Superintendent and Warden were both masons of a high rank. It is said that the pure principles of the craft are always developed in holy friendship and brotherly love. The enemies of the Order say that Masons will defend each other, "right or wrong." But so far were these men from acting on the principles ascribed to them, that if they were *friends* to each other, may all creatures and the Creator too, be my *enemies* to all eternity.

THE PRISON DISCIPLINE SOCIETY.

I advert to this society, not to give it my approbation, but to avail myself of some of the facts which it has collected and published in its Reports, as evidence of the truth of several positions which I have taken in the course of these sketches.

This society was formed in Boston, June 30, 1825. Its avowed object is "THE IMPROVEMENT OF PUBLIC PRISONS." This object, with the motives prompting to it, is expressed in THE FIRST REPORT, page 5, in the following pertinent and emphatic language:—

"The object of the Society, in which they were associated with us, is "THE IMPROVEMENT OF PUBLIC PRISONS." This object, we have reason to believe, is approved by the Saviour of the world; for he will say to his disciples on the day of judgment, *'when I was hungry, ye gave me meat; when I was thirsty, ye gave me drink; when I was a stranger, ye took me in; SICK AND IN PRISON, YE VISITED ME.'*" These words we regard as our authority and our encouragement; teaching us to *go forward* in the work in which we are engaged, and to expect, if we do it with penitent and believing hearts, to meet the approbation of him whose favor is life. We learn also, from these words of the Saviour, the guilt of those who neglect or oppose the performance of the duties, in which we are engaged. And, as we proceed, and see from month to month, the disclosure of facts of which we had never heard, or formed a suspicion, we feel that the Saviour knew vastly better than we can ever know, how great the necessity of practical obedience to the duty implied, in the benediction which he has promised to pronounce upon those who, in memory of his sufferings, seek to relieve misery, wherever it shall be found. We earnestly pray, that we may be sustained, *'by looking unto Jesus, the Author and Finisher of our Faith, who, for the joy that was set before him, endured the cross, despising the*

shame, and is set down at the right hand of the throne of God; where he ever liveth to make intercession for us:' for we are sure, that we must visit places and discharge duties, in the prosecution of this work, where there can be no sufficient support, but the presence of the Lord Jesus Christ."

Not to approve of a society whose object is so *benevolent* and whose motives are so *heavenly*, may at first thought, be regarded by many as an evidence of inhumanity and impiety. Such is the opinion of the society, and it denounces as *guilty*, "*those who neglect or oppose the performance of the duties in which it is engaged.*" This is courting patronage in a style rather too arrogant and damnatory. Its simple meaning is this—All mankind must think and act in concert with *us*, in relation to prisons, or be *guilty*.

As one, I am willing to incur the guilt of dissenting from this society; nor shall I fear that this will expose me to the condemnation of "the Saviour of the world," till the object shall be changed from "THE IMPROVEMENT OF PUBLIC PRISONS," to the improvement of PRISONERS. A society for the *moral*, and *spiritual*, and *temporal* improvement of prisoners, that should seek these ends by moral and *merciful* means, and continue its guardian care over them *after* they are released, by furnishing them with *employment*, and treating them with *respect*, I should consider it criminal to neglect or oppose; but such is *not* "THE PRISON DISCIPLINE SOCIETY." The great object of this society is, to introduce solitary confinement into all our prisons during the night season, and hard labour during the day. Another part of the discipline of prisons, recommended by this society, is—STRIPES!—

In respect to both these branches of prison discipline, the reader shall have the language of the society, that he may be sure my representations are correct.

In the FIRST REPORT, pages 25-28, the views of the society in respect to the practice of confining several convicts in one room at night, is expressed as follows:—

"We find great unity of opinion among all well informed and practical men, in regard to the evils of this miserable system,[\[2\]](#) and the importance of solitary confinement, at least by night.

The superintendent of the New Hampshire Penitentiary, MOSES C. PILSBURY, who has been seven years in that institution, says, he has thought much of the benefits, which would result from solitary confinement at night. The plots which have been designed, during his term of service, have been conceived, and promoted, in the night rooms. He has spent much time in listening to the conversation of the convicts at night, and thus has detected plots and learned whole histories of villany.

Judge COTTON, the superintendent of the Vermont Penitentiary, says, I feel satisfied, that great evils might be avoided, could our State Prison be so constructed, that the convicts might lodge separately from each other. Solitary confinement, during the night, would be an effectual bar, and have a great tendency to suppress many evils, which do exist, and ever will exist, so long as prisoners are allowed to associate together in their lodging rooms.

The Directors of the Massachusetts Penitentiary, in their last Report, say, that the erection of an additional building, within the Prison yard, where each convict may be provided with a separate apartment for lodging, has long been a favorite object with the government of this institution.

The Commissioners of the Connecticut Legislature, say, that the great and leading objection to Newgate, is the manner in which the prisoners are confined at night—turned in large numbers into their cells, and allowed an intercourse of the most dangerous and debasing character. It is here, that every right principle is eradicated, and every base one instilled. It is a nursery of crime, where the convict is furnished with the expedients and shifts of guilt, and, with his invention sharpened, he is let loose upon society, in a tenfold degree, a more daring, desperate, and effective villain.

The superintendent of the New York Penitentiary, ARTHUR BURTIS, Esq. speaking of the crowded state of the night rooms, said, how can you expect reformation, under such circumstances? As well might you kindle a fire, with a spark, on the ocean, in a storm. If a man forms a good resolution, or feels a serious impression, it is immediately driven from him in his night room.

The superintendent of the New Jersey Prison, FRANCIS S. LABAW, says, the greatest improvement, that has been made, or can be made, in Prison Discipline, is by solitary confinement. The solitary cells in this Prison, in which one fourth part of the whole number of prisoners are placed under sentence of the Court, have answered all the purposes, which it was ever expected they would, so far as trial of them has been had. No person, who has been once confined in them, has ever returned to the Prison.

The Senate of Pennsylvania say, for want of room, the young associate with the old offenders; the petty thief becomes the pupil of the highway robber; the beardless boy listens with delight to the well told tale of daring exploits, and hair breadth escapes of hoary headed villany, and from the experience of age, derives instruction, which fits him to be a terror and a pest to society. Community of design is excited among them, and, instead of reformation, ruin is the general result.

The superintendent of the Virginia Penitentiary, SAMUEL O. PARSONS, says, I consider separating convicts at night, of all others, the most important feature in the Penitentiary system of punishment, and one, which should every where claim the first consideration in erecting such institutions.

With the opinions thus expressed, of the practical men placed at the head of these institutions, the opinions of the governors of the respective States, of the judges, and legislators, and benevolent men, so far as they have been expressed or known, perfectly coincide.

Governor PLUMER, of New Hampshire, says, effectual measures should be adopted to separate, in the Penitentiaries, old offenders from the young and inexperienced.

Governor LINCOLN, of Massachusetts, in a late message, recommended, that immediate provision be made for the erection, as soon as may be, in the prison yard, of a building, with sufficient cells for the separate confinement of the present, and any future probable number of convicts.

Governor WOLCOTT, of Connecticut, stated to the Legislature, in May, with reference to the improvements at Auburn, that there were few subjects

upon which their deliberations could be bestowed with higher advantage to the best interests of the State.

Governor CLINTON has formerly expressed his opinion of the importance of solitary confinement, and in his late message to the Legislature, he expresses an opinion concerning the institution in New York city, for the reformation of Juvenile Delinquents, which is constructed on the plan of the building at Auburn, that it is probably the best Prison in the world.

Judge WOODBURY, of New Hampshire, says, that 'Prisoners, during the night, should be wholly separated from each other.'

Mr. HOPKINTON, of New Hampshire, says, 'a novice, who, if kept from company worse than himself, might have been reclaimed from his first attempts, is here associated with old, hardened, and skilful offenders; he hears with envy and admiration the stories of their prowess and dexterity; his ambition is roused; his knowledge extended by these recitals; and every idea of repentance is scorned; every emotion of virtue extinguished.'

Judge THACHER, of Boston, says, 'by the confession of those who administer our Penitentiaries, it is found, that most of the evils of this system of punishment flow from the almost free and unrestrained intercourse, which subsists among the convicts.'

THOMAS EDDY, of New York, says, 'if a number of ingenious men were requested to suggest the best possible mode of increasing the number of thieves, robbers, and vagabonds, it could scarcely be in their power, to fix on any plan, so likely to produce this effect, as confining in one collection, a number of persons already convicted of committing crimes of every description.'

Hon. EDWARD LIVINGSTON, says, 'it is a great point to produce the conviction of the important and obvious truth, denied only by a false economy, that Prisons, where there is not a complete separation of their inhabitants, are seminaries of vice, not schools for reformation, nor even places of punishment.'

ROBERTS VAUX, of Philadelphia, lays down five fundamental principles of Prison Discipline, the *first* of which is, 'that convicts should be rigidly confined to solitary life.'

There is no disagreement between the opinion of these distinguished individuals, and the opinions of various commissioners, directors, &c. who have written on this subject.

The Commissioners of the Massachusetts Legislature, in 1817, ask, 'how it is to be reconciled, that in any civilized country, convicts are brought into promiscuous association, to pass years together, all united under the influence of a public opinion, as strong in its support of vice, as that which rules the community, is, in its support of virtue?'

The Commissioners of the Connecticut Legislature, in a very able Report, written by MARTIN WELLS, Esq. say, 'it is in the cells, that every right principle is eradicated, and every base one instilled. They are nurseries of crime, where the convict is furnished with the expedients and shifts of guilt, and, with his invention sharpened, he is let loose upon society, in a tenfold degree a more daring, desperate and effective villain.'

The Commissioners, SAMUEL M. HOPKINS, STEPHEN ALLEN, and GEORGE TIBBETS, of the New York Legislature, say, "we believe that we do but repeat the common sentiment of all well informed men, when we say, that as long as it is necessary to confine several prisoners in the same room, our State Prison at New York can be no other than a college of vice and criminality."

A highly respectable committee of the Society for the Prevention of Pauperism, in the city of New York, in a Report on the Penitentiary System, which is one of the most valuable documents ever published on the subject in this country, have the following language, 'Our Penitentiaries are so many schools of vice, they are so many seminaries to impart lessons and maxims calculated to banish legal restraints, moral considerations, pride of character, and self-regard.' 'They have their watchwords, their technical terms, their peculiar language, and their causes and objects of emulation. Let us ask any sagacious observer of human nature, unacquainted with the internal police of our Penitentiaries, to suggest a school, where the commitment of the most pernicious crimes could be taught with the most

effect; could he select a place more fertile in the most pernicious results, than the indiscriminate society of knaves and villains, of all ages and degrees of guilt?'

This is a frightful picture of human depravity and proneness to sin; and if the system of separate confinement at night should not remove or prevent these evils, the mind *may* be led to seek the source of them, not in the circumstance of few or many being lodged together, but in the cruelty and inhumanity of the keepers.

In the SECOND REPORT, pages 38-43, the Society states its objections to solitary confinement *by day*, and adopts the theory of labour by day and separate confinement by night. The following is its language:—

"Solitary confinement day and night. On this subject, there is great interest excited, at the present time, in America and in Europe. It will be our object to present such facts as are known to us concerning experiments already made in this country.

"In the Maine Prison, which has been in operation about three years, a large number of the convicts have been sentenced to six months solitary confinement day and night, and to a period of time afterwards of solitary confinement at night, and hard labor by day. A considerable number more have been sentenced to solitary confinement day and night, for the whole term of their imprisonment. This Prison is under the management of a gentleman, who has been a member of the Senate, in the State of Maine, and who is, also, a skilful physician. He has, therefore, been entrusted with discretionary power, by the Executive, to remove the men from the cells to the hospital, when their health and life required it. The former Governor of the State informed the Secretary of this Society, that it would not have been thought safe to inflict sentences of so long continuance in solitary confinement, if great confidence had not been placed in the discretion of the superintendent. The judges, however, and the Executive, when the Prison was built, were strongly in favour of solitary confinement day and night, and they wished to make a fair experiment. What, then, is the testimony of the superintendent of this Prison, on this vastly important and interesting subject? And what is the testimony of the Records of the Prison? The following statement is collected from the records and the superintendent. It

exhibits the names of several convicts; the length of time they were sentenced to solitary confinement; the length of time they were able to endure it before they were removed to the hospital; the length of time they remained in the hospital before they returned to the cells; the alternation between the cells and the hospital to fulfil the whole term of solitary confinement; and the suicide of two convicts in the cells. These are the only convicts who have died since the Prison was organized."

<i>Name and Sentence.</i>	<i>In Solitary.</i>	<i>In Hospital.</i>	<i>In Solitary.</i>
Joseph Bubier, 62 days solitary, and one year hard labor.	June 18	July 1	12 days.
	July 3	July 8	5 days.
	July 11	July 23	12 days.
	July 28	Aug. 24	27 days.

In this case it was necessary to remove the man to the hospital four times, to enable him to endure fifty-six days solitary. The Secretary saw him when he was removed from the cell the last time. He shivered like an aspen leaf; his pulse was very feeble; his articulation could scarcely be heard from his bed to the grate of his cell, eight feet; and when he was taken out, he could with difficulty stand alone.

<i>Name and Sentence.</i>	<i>Solitary.</i>	<i>Suicide.</i>	<i>In Solitary.</i>
Simeon Record, 70 days solitary, and four years hard labor.	Dec. 5	Dec. 8	4 days.

At half past seven o'clock, on Wednesday morning, he was found dead, having hung himself to the grate of the cell with a piece of the lashing of his hammock.

<i>Name and Sentence.</i>	<i>Solitary.</i>	<i>At Labor.</i>	<i>In Solitary.</i>
Isaac Martin, 60 days solitary, and 3 months hard labor.	March 27	April 20	24 days.
	July 1	July 26	25 days.

Isaac Martin cut his throat in his cell July 26, when he was removed to the hospital, where he remained nine days, and died.

<i>Name and Sentence.</i>	<i>Solitary.</i>	<i>Hospital.</i>	<i>Solitary.</i>
Elisha Cole,	Nov. 6	Dec. 28	52 days.
100 days solitary.	Jan. 4	Feb. 22	48 days.

<i>Name and Sentence.</i>	<i>Solitary.</i>	<i>Hospital.</i>	<i>Solitary.</i>
	July 4	Sept. 7	66 days.
Socrates Howe,	Sept. 21	Nov. 7	47 days.
6 months solitary.	Dec. 2	Jan. 16	44 days.
	Jan. 19	Feb. 12	23 days.

<i>Name and Sentence.</i>	<i>Solitary.</i>	<i>Hospital.</i>	<i>Solitary.</i>
Nathaniel Parsons,	July 3	Aug. 16	43 days.
6 months solitary.	Aug. 19	Aug. 27	8 days.

This man remained in the hospital, after his discharge from the cell the last time, from September 17 till December 3, when he was pardoned on account of ill health.

<i>Name and Sentence.</i>	<i>Solitary.</i>	<i>Hospital.</i>	<i>Solitary.</i>
Edmund Eastman,	Sept. 9	Jan. 9	4 months.
4 months solitary.			

This man endured the whole period, without leaving the cell.

"Asa Allen was sentenced to six months solitary and two years three months and fourteen days hard labor. He went immediately into solitary, and remained seventy-four days without interruption. At the end of this period, he came out in good health, and performed a good day's labor in the quarry. Dr. ROSE expresses the opinion, that this man would live in solitary confinement about as well and as long as any where else. He has been a *soldier*, and has been accustomed to the hardships of a camp. He has been a wanderer in the world, without a home. It is not material to him where he is. The keeper thinks that six months solitary to this man would not be a greater punishment than fifteen days to a convict who had been accustomed to the comforts of life: also, that he would rather endure six months solitary confinement than ten stripes.

"*John Stevens and John Cain* both entered the Prison at the same time, under sentence of three months solitary, and both endured the whole period without interruption, having received nothing except the usual allowance of bread and water, and a little camphor to rub on their heads.

"*Benjamin Williams*, also, endured three months solitary without interruption.

"But, in general, the superintendent states, that nearly as much time is necessary in the hospital to fulfil long solitary sentences, as in the cells. He also expresses an opinion, in his last report to the Legislature, that long periods of solitary imprisonment inflicted on convicts, is worse than useless as a means of reformation. The character of the superintendent of this Prison is such, that the opinions expressed by him on this subject, as the results of his experience, will be thought worthy of particular consideration. He says, 'the great diversity of character, as it respects habits and temperament of body and mind, renders solitary imprisonment a very unequal punishment. Some persons will endure solitary confinement without appearing to be much debilitated, either in body or mind, while others sink under much less, and, if the punishment was unremittingly continued, would die, or become incurably insane.

'However persons of strong minds, who suffer in what they deem a righteous cause, may be able to endure solitary confinement, and retain their bodily and mental vigor, yet it is not to be expected of criminals, with minds discouraged by conviction and disgrace.

'Those persons who shudder at the cruelty of inflicting stripes as a punishment, but can contemplate the case of a fellow being, suffering a long period of solitary imprisonment, without emotion, must be grossly ignorant of the mental and bodily suffering endured by a long confinement in solitude.

'As far as the experience in our State Prison proves any thing respecting the efficacy of solitary imprisonment in preventing crimes by reforming convicts, it will induce us to believe that it is not more effectual than confinement to hard labor. Seven of the convicts now in the State Prison are committed a second time, for crimes perpetrated after having been

discharged from this Prison; three of these had been punished by solitary imprisonment without labor, and the others by solitary imprisonment and confinement to hard labor.

'The keeper of the Auburn State Prison, in the State of New York, very justly observes, 'that a degree of mental distress and anguish may be necessary to humble and reform an offender; but carry it too far, and he will become a savage in his temper and feelings, or he will sink in despair. There is no doubt, that uninterrupted solitude tends to sour the feelings, destroy the affections, harden the heart, and induce men to cultivate a spirit of revenge, or drive them to despair.'

'I would not wish to be understood to express an opinion, that solitary imprisonment ought not, in any case, to be inflicted. On the contrary, there can be no doubt that it is a proper punishment for prison discipline in many cases; but for that purpose, short periods only will be necessary; seldom, if ever, to exceed ten days. In the cases of juvenile offenders, it may also be very useful and proper, in periods of twenty, or thirty days, but never to exceed sixty days. If repentance and amendment are not effected by thirty days of strict solitary confinement, it can rarely be expected to be obtained by a longer period.'

"The Legislature of Maine, in consideration of the opinions and facts above stated, passed a law, in February, 1827, in the words following: '*Be it enacted*, that all punishments, by imprisonment in the State Prison, shall be by confinement to hard labor, and not by solitary imprisonment: provided, that nothing herein contained shall preclude the use of solitary confinement as a prison discipline for the government and good order of the prisoners.' Thus we have endeavored to exhibit the results of the experience of the State of Maine, in regard to solitary imprisonment day and night.

"In New Hampshire, MOSES C. PILSBURY, Esq. who has been several years the warden of that Prison, the surprising results of whose good management, both in regard to the income and the moral character of the Institution, were exhibited in the last Report, was asked, whether convicts ought not to be sentenced to solitary confinement day and night, for a short time at least. He said it would do much more good to give them hard labor by day, and solitary confinement at night.

"At Auburn, N. Y., the experiment was tried in 1822, by the friends of solitary confinement day and night, on eighty convicts, for a period of ten months. The experiment was conducted with great care, and the observations made appear to have been impartial. As it was done by the friends of the system, it may be supposed that the results were as favorable as they could make them. In the Report of the Commissioners to the Legislature, in January, 1825, these results are stated with philosophical accuracy. Concerning these results, it is sufficient to say, that they were unfavorable to this mode of punishment, and it was accordingly abandoned in that Prison. It was found, in many instances, to injure the health; to impair the reason; to endanger the life; to leave the men enfeebled and unable to work when they left the Prison, and as ignorant of any useful business as when they were committed; and, consequently, more productive of recommitments, and less of reformation, than solitary confinement at night and hard labor by day.

"The experiment in New Jersey has been continued four years, upon an average number of twelve convicts; some of whom have been eighteen months, and some two years, in the cells, without intermission; but in this case, though the men are in separate cells, still the cells are so arranged, that several men can converse as freely as if they were in the same room, and no attempt has been made to prevent it. This, therefore, is to be regarded no farther as an experiment on solitary confinement day and night, than as keeping the men from seeing or coming in contact with each other; but not from evil communication, and corrupt society. In the opinion of the keeper of that Prison, this mode of punishment has been useful in preventing recommitments, and not permanently injurious to health or reason. How far the difference in the results of this experiment from that at Auburn, and the other in Maine, is to be attributed to the difference in the construction of the cells, and the management and diet of the prisoners, it is difficult to determine. In Maine the cells are very gloomy, and communication is difficult, though not impossible. At Auburn the cells are not gloomy, and communication was prevented day and night by a sentinel. In New Jersey the cells are not gloomy, and social intercourse unrestrained. In Maine the diet was very low, i.e. a pound of bread and cold water only. At Auburn, and in New Jersey, it was coarse, but nutritious. In Maine the men might have endured solitary confinement, with a more nutritious diet, a much longer

period. At Auburn they might not have been as much injured in health or reason, if they had been permitted to converse with each other. And in New Jersey they might have been more injured if this kind of communication had been restrained. As the experiments have been conducted, they appear to be decidedly against solitary confinement day and night in Maine and at Auburn, and in favor of it in New Jersey. As this mode of punishment, however, would probably never be adopted, except to prevent effectually all evil communication, the experiment in New Jersey cannot be adduced in favor of entire seclusion: for there was nothing of this character in it.

"There have been other experiments made in this country, in many Prisons, on individuals, in regard to this mode of punishment, sometimes for misdemeanor, and sometimes for experiment merely. One was mentioned in the last Report. 'A man in a narrow cell, which was almost a dungeon, where he had been in heavy chains, on a small allowance of food, three months, was asked whether he had rather remain three months longer, in the same situation, than receive a small number of stripes on his bare back. He said he had rather remain.' It is not known, that this man had had any communication with any one except his keeper, and his diet had been much more nutritious than that used in Maine. In the mode in which he was treated, his spirits appeared perfectly unsubdued, and his health and reason unimpaired, and his disposition ready for mischief whenever he should be released. There was nothing seen in him that looked like contrition.

"There is another man, who has been in a solitary cell much of the time for seventeen years, and *all the time* for more than six of the last years. He is still alive. He does not appear insane. His health is feeble, and he has lost the use of his limbs, so that he uses crutches. His disposition, however, remains the same as when he was committed to the cell, more than six years ago. He had been previously released, and put upon his honor for good behaviour. He almost immediately procured a hatchet, and struck it into the neck of a keeper, in such a manner as to endanger his life. He was again committed to the cell, where he has remained ever since, with a malignant, revengeful spirit; as is evident from the fact, that he attempted to take the life, a few months since, of a keeper, who gave him his food. His cell is gloomy and filthy. His food is coarse but nutritious. His intercourse is in a great degree restrained.

"In regard to the effect of solitary confinement on the individuals last mentioned, as well as on those who were subject to it in Maine, New York, and New Jersey, it is true, that they were left to suffer their punishment, during the whole period, *destitute, in a great degree, of the means of grace*. In the new Prison in Philadelphia, in which it is proposed to adopt this mode of punishment, and prevent evil communication by solitary confinement day and night, it has been said, by one of the Commissioners, that he should rather abandon the system, and adopt that of solitary confinement at night, and hard labor by day, than see the men confined in the cells day and night, without the means of grace. We may hope, therefore, if the experiment is again tried, it will not be done without adequate provision for moral and religious instruction. How far it may be successful with this variation cannot be told until the experiment has been made.

"As the experiments have been conducted, thus far, the results are decidedly opposed to solitary confinement day and night, as the means of preventing evil communication. We are left, therefore, in view of all the facts known to us, with a preference for solitary confinement at night, and hard labor by day, with such regulations to prevent evil communication as the case requires, and as have been already suggested."

Whose heart does not sicken within him on reading such accounts of human suffering and human guilt? I have mentioned several specimens of cruelty which I saw in Windsor Prison; and to show that man is the same being under similar circumstances everywhere, I will avail myself of another quotation from the Reports of this Society, in respect to New Jersey State Prison. It is in the FIFTH REPORT, page 86.

"Solitary confinement on a scanty allowance of bread with cold water is much used. The period of time not unfrequently extends to twenty and thirty days, and this too in the winter season, in cells warmed by no fire. The suffering in these circumstances is intense; the convicts lose their flesh and strength, and frequently their health; they are sometimes so far broken down, as to be unable to work when they are discharged into the yard, and to require nearly as much time in the hospital, to recruit them, as they have had in the cells, to break them down.

"The committee saw a man in the hospital last week, just taken from the cells, where he had been punished for misdemeanor about twenty days. He was prostrate upon the bed, emaciated, and unable to work, and complained of much pain. The physician called the attention of the committee to his pulse, which he remarked was very feeble. The keeper thought it would be some time before he would be able to work.

"Besides punishments in this mode, the records show, that chains are much used; sometimes with a fifty-six attached to them, and sometimes for the purpose of chaining the prisoner to the place where he is at work. A number of the prisoners, at the present time, have chains upon them, and the committee saw one, twelve or fourteen years of age, who had on an iron neck yoke, with arms extending 18 or 20 inches each way from his head, which was said to be, not for punishment, but to prevent his getting through the grates.

"The following list is furnished by the clerk of the Prison, who has been there twenty years. It shows the number of prisoners that is supposed to have died in consequence of being severely punished in the cells, for disobedience;—William Thomas, Thomas Steward, John O. Brian, William Bower, John Brown, Tunis Cole, Aaron Strattain, Thomas Somes, Pomp Cisco, and Peter Marks—10."

Reader, what think you of this? It is said that the laws of America are written with mercy; but are they not often executed in blood? From such mercy as this, gracious Heaven deliver us! "It is a fearful thing to fall into the hands of the living God," but it is better to fall into *his* hands than the hands of man. Are not the tender mercies of the wicked cruel? Look at the State Prisons and see. They are called *merciful*, but their floors are reeking with blood, and their cells are vocal with the groans of death.—Pardon this digression from the subject; I will return to it immediately. Any where, to banish these reflections, which wither up my soul!—

In respect to *stripes*, the Society uses the following language. FIRST REPORT, pages 17-19.

"MODE OF PUNISHMENT.—The punishments used in these institutions now claim our attention. These are stripes, chains, and solitary confinement, with

hunger. In regard to these different modes of punishment, there is a considerable diversity of opinion and practice, in this country. In some extensive establishments, chains and stripes are dispensed with altogether. In others, both are used severely. In others still, stripes alone are used. At Auburn, stripes are almost the only mode of punishment. In Richmond, Baltimore, Philadelphia, New York city, Charlestown, and Concord, solitary confinement mostly, with a small allowance of bread and water. In Connecticut, stripes, chains, solitary confinement, and severe hunger. If the efficacy of these different modes of punishment were to be judged of by the discipline of the respective institutions, punishment by stripes, as at Auburn, would be preferred. The difference, in the order, industry, and subdued feeling, as exhibited by the prisoners, is greatly in favour of the prison at Auburn. This difference, however, is to be attributed, not so much to the mode of punishment, as to the separation of the convicts at night, and several other salutary regulations, which are not adopted elsewhere. At the same time, a part of the difference is supposed by the friends of this system, to arise from the mode of punishment. In favor of this mode, the advocates of it urge the following reasons; it requires less time; the mind of the prisoner does not brood over it, and settle down in deliberate resentment and malignity; it is in some cases more effectual; it is less severe; it can be more easily proportioned to the offence.

That it requires less time, there can be no doubt; and if in other respects, it is as good or better, it is for this reason to be preferred.

That the mind of the prisoner does not brood over it, as over solitary confinement and hunger, there can be no doubt. But then it would be said by the advocates of solitary confinement, that this is an argument against stripes, because the effect is not so permanent. It may be said in reply, that if the effect of punishment is bad, it ought not to be permanent, and men often appear subdued by solitary confinement and hunger, merely for the sake of being relieved, while in their hearts, there is a rankling enmity against the mode of punishment, and the person inflicting it. If this effect is produced, the punishment, so far as the convict is concerned, is injurious. That this is the fact, in many instances, those who have been conversant with prisoners have melancholy evidence.

But while this is admitted, it is also true, that the instances are numerous, in which solitary confinement, with low diet, have not failed to subdue men, who appear to be hardened against every other mode of punishment. The officers of the New Hampshire and Philadelphia Penitentiaries bear testimony to this. And moreover, that the end is often gained, in much less time, than it was supposed would be necessary.

It is objected, however, to solitary confinement, that it is a mode of punishment which operates unequally. If a man has been fond of society; if his mind has been cultivated; if his sensibility is acute; solitary confinement is a terrible punishment. If, on the contrary, the man is a mere animal; if he is stupid, and ignorant, and carnal; if the operations of his mind are dull and sleepy; if, in one word, he is like the torpid animals, (and there are men of this description,) solitary confinement is much less severe than stripes.

Nor is solitary confinement, in the former case, a more severe and effectual mode of punishment, especially if the convict is a proud man; nor is it as much so, as stripes. A man in a narrow cell, which was almost a dungeon, where he had been in heavy chains, on a small allowance of food, three months, was asked whether he had rather remain three months longer, in the same situation, than receive a small number of stripes on his bare back. He said he had rather remain.

It should be stated, however, that his allowance of food had not been so much diminished, as greatly to reduce his body, as is sometimes the case. In those cases, where the allowance of food is six or eight ounces of bread per day, with water only; and in those cells, which in winter are warmed by no fire, solitary confinement produces the most intense and aggravated suffering. In such cases, there is nothing but death, which the most obdurate villain would not endure to be relieved from it, after a confinement generally of less than thirty days. In these cases, it is difficult to tell, whether the cold, the hunger, the pangs of a guilty conscience, the fear of death, the wretchedness of being subjected to revenge and malignity, is the greatest cause of suffering, and whether each of them is not equal to the pain of solitary confinement. Stripes, in comparison with solitary confinement, in such circumstances, are not severe.

It is obvious, from these remarks, that the severity, and effect, and adaptation of punishment to crime, depends more on the manner, than on the kind of punishment.—Stripes may be made, and it is believed in more instances than one in our Penitentiaries, have been made, to result in death. Solitary confinement has brought men to a state of insensibility, and in some cases produced diseases, which have terminated in death. Chains so heavy have been used, and for so long a time, as to mar the flesh, and produce most painful wounds. It is perfectly obvious from these remarks, that punishment, of whatever kind, should be committed to persons of discretion, and that there should be some checks to prevent abuses.

It is, also, obvious, that different modes may be adapted to different individuals and circumstances, and that discretionary power, as to the mode, as well as the manner, ought to be left with the government of the Prison.

It is obvious, too, that the best security, which society can have, that suitable punishments will be inflicted in a suitable manner, MUST arise from the character of the men to whom the government of the Prison is entrusted.—There are men, whom no laws would restrain from indiscretion and cruelty if not barbarity, in punishment. There are others, whose humanity is excessive, and they would never punish at all. To men of either class, the power of punishment, and the management of Penitentiaries should not be entrusted."

Another part of the discipline recommended by the Society, is expressed as follows. SECOND REPORT, pages 37, 38.

"The lock march from the shops to the cells, and from the cells to the shops. This consists in forming all the men, under the care of each keeper, into a solid column, and requiring them to march off, at the same time, with a uniform step, in a solid body. The object is to prevent the prisoners, "when their cells are unlocked, from flocking confusedly into the yard, and at the sound of the bell for meals, from moving like an undisciplined mob to the mess-room." This is generally an evil hour with prisoners; if any conspiracy or rebellion is under consideration, it is then communicated. In the mode proposed, it is a time of as much order and silence as any other during the day. It is, in fact, a peculiarly favorable time to see the order and regularity produced in Prison by salutary discipline; and if any one hour were to be

selected, while the prisoners are awake, in which they do nothing and attempt nothing of an improper character, probably no hour could be found *more* free from guilt than this. Another regulation of considerable importance in preventing evil communication is,

Not letting the convicts face each other when their business will permit them to face the same way. This rule may be adopted in shops, for shoemakers, tailors, and weavers: also, among female convicts, when employed in sewing, knitting, and spinning: and on the Sabbath, when assembled in the chapel. In this way, the language of signs, whether by the hands or features, is prevented; for the signs signify nothing if they are not seen. Now if the king of counterfeiterers, or a prince in any department of wickedness, can be placed in the end of a long shop, and be permitted to sit with his face towards the convicts, and have them all facing him, he will be very happy in the opportunity of communicating ideas by the language of signs; but, turning his back to the convicts, and his face to the wall, he will feel differently. The principle, therefore, of not permitting the convicts to face each other, when their business will permit them to face the same way, is believed to be one of considerable importance."

Such are *some* of the means by which THE PRISON DISCIPLINE SOCIETY contemplates the accomplishment of its object; and I disapprove of them *in toto*. All its views through these means are founded on *theory*, and this theory is opposed by a thousand *facts*. Universal experience attests the fact that nothing but *goodness* will reform a sinner. Unfeeling and despotic inflictions will make the sufferer an enemy to his race, and in some instances, awe his sinful propensities into inaction, but these things will not—*cannot* make him love either his God or his fellow beings. The process on which I have been dwelling, and which the Society would call sacred by asserting that neglect of or opposition to it is *guilt*, would make angels *men*, and men *devils*, and devils *worse*. I *know* that future facts will justify this strong language. I am guided by no theory, but am taught by my own experience.

In the course of these sketches, I have occasionally reflected on the conduct of the officers of prisons; and asserted that fit men to govern a prison in such a manner as to make it a penitentiary, cannot be found on

earth. The labors of this Society have furnished the following corroborative facts.—SECOND REPORT, pages 7-8.

"In the Maine Prison, which has been in operation only three years, Dr. ROSE, the superintendent, stated that three or four cases of malpractice had already occurred among the assistant keepers; such as intemperance, furnishing forbidden articles to convicts, &c., for which they had been discharged.

In the New Hampshire Prison, Mr. PILLSBURY, the former superintendent, mentioned, as one of the greatest difficulties in the Penitentiary system, the insubordination occasioned by the frequent changes among the assistant keepers, and the difficulty of obtaining men of proper character for the compensation allowed them. Escapes have been effected in that Prison, either through the negligence or connivance of assistant keepers, and improper familiarity has been contracted between them and the convicts.

In the Massachusetts Prison, a keeper was detected, three times in succession, by Mr. SOLEY, one of the Directors, in furnishing bills to be altered, and materials to alter them, to a convict. A warrant was issued for him; but he made his escape. Another keeper was discharged soon after, on suspicion of improper conduct; and in a communication, made by the Directors to the Governor, in the autumn of 1825, and by him submitted to the Legislature, several other cases are mentioned of malpractice by contractors and assistant keepers, and discharge for the same.

In Newgate, the Old Prison in Granby, Conn., there has been great complaint on this ground.

THOMAS EDDY, of New York, in a pamphlet on Prison Discipline, mentions a case, in which a number of desperate villains, in one room, within the walls of a Prison, were engaged in the business of counterfeit money, and were enabled to prosecute it by the connivance and assistance of a keeper.

Even in the Prison at Auburn, which is in many respects so worthy of commendation, the Commissioners mention, in a late Report to the Legislature, that "one Terrence Heeney who was never fit for the trust of a

guard, was three times appointed to that place, and three times removed for misconduct." They also say, that "several other cases have been proved of the appointment of incompetent or unfit men; but, in general, they were removed as soon as their unfitness became known."

Mr. LYND, the superintendent of the Prison at Sing Sing, speaks of the character required in this situation as peculiar: viz. equanimity, quick discernment of character, impartiality, resolution, vigilance, promptitude, besides honesty and temperance, and, more than all, a habit of seeing much and saying little. He has not been without his difficulties in getting the right men. He mentions a case, in which an assistant keeper at Auburn was detected in employing convicts to steal for him.

ROBERTS VAUX, of Philadelphia, in a pamphlet entitled 'Original and successive Efforts to improve the Condition of Prisons,' &c., mentions, that, in the Prison in Philadelphia, many years since, 'the keeper had been a long time connected with criminals, under circumstances which caused him to be suspected of a more intimate knowledge of the depredations committed in the city, than comported with that unblemished reputation which ought to belong to such an officer.'

In the Baltimore Penitentiary, an officer was understood to say, that two assistant keepers had been discharged for circulating counterfeit money for convicts."

There is another part of the discipline recommended by this Society, of which I cordially approve; it is that which relates to religious instruction. May God bless all their labours to give this part of their discipline a permanent residence in every prison on earth! I expect the time when prisons will be purified from sin—I expect a time when they will be no longer needed—and I expect this through the universal and perfect diffusion of the principles of the gospel. "When in the wisdom of God the world by wisdom knew not God, it pleased God, by the foolishness of preaching to save them that believe." The means of *grace*, then, are the only means of reformation. The means of *cruelty* can effect no good in any heart. The gospel, *the gospel*; *this* is the power of God unto salvation, and this alone can effect a salutary change in the soul.

I hold to punishment, but it is the punishment of *mercy*. Let the sinner endure the consequences of his crime, but let *goodness* inflict the rod. Let his punishment be *severe*, if necessary, but never capricious; let its object be the good of the sufferer, not vengeance; and when he is penitent, let the punishment cease.

But the reformation of prisoners is only a small fraction in the reformations which are called for. The whole world needs reforming; and the reformation of prisoners will keep pace only with the reformation of those who are free; and as long as these places must be under the control of corrupt and depraved minds, alas for the cause of reform! Some of the iniquity of prison keepers has been discovered by the public eye, but what has been seen by *that* eye, is only a drop to a fountain, compared with the whole.—Enough is known about the guilt of *prisoners*, because the keepers who make the report are *believed*; but the keepers have no observers of *their* conduct but *prisoners*, and these are not *credited* when they tell the truth. It is believed *in general*, that prison keepers are tyrants. The voice of every age and country unites in describing this class of men as coming the nearest of any in moral resemblance to Satan; and yet no prisoner is believed when he complains of abuse. Let some great Howard go through the prisons in the United States, and take his accounts from *prisoners* as well as keepers, and he will give a different Report from the one before me. There is as much need of a society to reform *keepers*, as there ever can be to reform prisoners; and there can be but little ground to hope for success *in prison* till the *keepers* become not merely *honest men* but *pious christians*.

My statements in respect to the destruction of the chapel and the neglect of the means of grace in the Windsor Prison, are confirmed by the Reports of this Society. In the FIRST REPORT, pages 32, 33, the Society say, that, "In the Vermont Penitentiary, one hundred dollars only are appropriated for religious instruction. The chapel has been converted into a weaver's shop. The services on the Sabbath are irregular, and the Scriptures are not daily read to the assembled convicts."—SECOND REPORT, page 56, "The duties of Chaplain are very irregularly discharged. In truth there is no stated Chaplain whose services can be relied on."

One quotation more on this subject is all that I can now make. It is from the SEVENTH REPORT, page 10. "The legislature of Vermont, at the last session, provided by law an additional compensation for a Chaplain; so that the state now pays three hundred dollars per annum for this service, and a chaplain has been appointed to discharge the duties of the office."

Will the Secretary of this Society be so good as to inform the public in his next Report, how much service the Chaplain in the Vermont Penitentiary renders for his salary of three hundred dollars?

My time does not permit me to copy any more from the Reports of this Society. In the remarks that I have made upon its doings, I have had no design to impugn its *motives*. I doubt not that the managers of the Society mean to do good. I impeach not their *views*, but I doubt the wisdom of their *policy*. I know what they never can; and I am only opposing facts and experience to a fair but deceptive theory. The hope of effecting a reformation among prisoners, by stripes and solitary cells, can never be realized. It will be of no use for *me* to reason on this subject, for I am too small to be noticed. Nothing that I can say will tell on the great minds which compose the Society whose doings I condemn. But I must be allowed to give my opinion. "THE PRISON DISCIPLINE SOCIETY" is combining the talent of the country, and the wealth of the country, for a purpose which appears to itself benevolent, but which will, past all doubt, result in sinking our prisons to the lowest point of cruelty, and the darkest region of despair; and from his knowledge of human character and the effect of cruelty on the heart, I should suppose that Lucifer would be its most efficient patron.

A few lines more and I shall have done with this article. I was in Windsor when Rev. LEWIS DWIGHT, the Secretary of the Society, visited that prison. I know from what source he obtained his information, and I know how extremely imperfect was some of the account he obtained, and how much was hidden from him entirely. And taking what relates to this prison, in his Reports, as a specimen of what he has related of other prisons, I am certain that much more light is needed to guide him to the evils of penitentiaries, and to their cure, than he has yet obtained, *Prisoners* ought to have been consulted, as well as *keepers*; an *ex parte* examination contains only part of the truth. Prisoners ought to be treated by christians on terms of *equality*, if

any good is to be effected in the work of reformation; and before any thing can be done to effect their lasting good, they must be treated with kindness and respect. No other means can reform them. You may *snarl* them into sin, and tread them down to *hell*, but you must *love* them into *repentance*, and *support* them up the ascent to *heaven*.

DESIGN OF PENITENTIARIES IN RESPECT TO THE TREATMENT OF CONVICTS, ACCORDING TO THE VIEWS OF THE DIRECTORS OF THE CONNECTICUT STATE PRISON, WITH REMARKS.

"Upon the subject of the general treatment of the convicts, and the discipline of the institution, we would remark that the State Prison is *designed to be*, and *emphatically is*, a place of PUNISHMENT. The feelings of *humanity* and *mistaken mercy* should not be suffered to interpose, to *disarm its punishment of that rigor due to justice and the violated laws of the land*. While a proper regard is had to the health of its inmates, their comfort should not be so far studied as to render it a desirable residence, even to those whose condition in society is attended with the *severest privations*. When this becomes the case, our criminal code becomes a bounty law for crime."—*Sixth Report, page 94.*

This is throwing off the mask completely, and boldly declaring that "*punishment*," SEVERE punishment, a punishment in which there is no tincture of "*humanity*," is the *design*, and *emphatically*, the *discipline*, of that prison. The *comfort* of the prisoner is not to be sought in any way inconsistent with *punishment without humanity*. His *reformation is not to be sought at all*. A more unsound and disgraceful principle of penitentiary discipline, was never avowed by any similar committee in this country before; but it is the *very one* on which all American penitentiaries *are governed*. "That *rigor due to Justice and the violated laws of the land!*" Yes; "Justice and the violated laws," demand "*rigor*." It is not enough to have the sinner *securely confined*—he must be *uncomfortable*. His *health* must be attended to; let him live; but his cup of gall must be full and overflowing. Let him live—not for *comfort*, but to *groan* in the ear of *heaven* the "*rigor*"

of "*Justice*" and of the "*violated laws*." Punishment is God's "*strange work*," his "*strange act*," but it is the *common* work of his creatures.

According to *my* views of a penitentiary, it is not *unqualifiedly*, a place of *punishment*, but a place of *reformation*, to be effected by the *mildest* means, and to be under the constant direction of *humanity*. Cruelty never should enter its walls. Satan was no more out of his place in Eden, than is cruelty in a place of reformation.

As to a criminal code's becoming "a bounty law for crime," when its discipline for prisons is such as to render them a desirable residence, to those who are suffering even the "*severest privations*" in society, that Committee need have no fears. There is no danger of any prisons ever becoming so mild as to be a *desirable* residence for any one. Take the purest apartment in heaven, and confine a seraph there, and the simple fact that he was a prisoner would make his home a hell. The Devil himself would prefer liberty in the world of woe, to imprisonment even in Paradise—freedom with damnation, to salvation with restraint.

THE MEANS OF EFFECTING A REFORMATION AMONG PRISONERS.

On this subject many an enthusiast has speculated, and many a fine and beautiful theory has charmed the benevolent mind. The sacred orator from the desk, inspired by the genius of his faith, and warm amidst the holy fires of the altar, has often brought the miserable tenants of the dungeon within the sympathies of his weeping hearers. Clothed with the robes of state, the philanthropist has often urged the claims of prisoners upon the consideration of councils and legislatures. For eighteen hundred years have the altar and the throne sent abroad, in tones of commiseration, the suffering and neglected condition of prisoners; but what has been the result? Prisons are as numerous as ever, and almost every season sees a new one erected. The annual volume of crimes is as huge and black as ever. The gloom of these earthly hells is undissipated by the charm of operative benevolence. And though it is two thousand years since the foundations of christianity were laid in the earth—that heavenly principle which was to say to the prisoners, "go forth,"—the notes of its rejoicing ascend in faint association with the deep-toned sigh of despair and misery, which is hourly bursting from the grated cell. Alas! for the times. But why have the benevolent and christian spirits of every age laboured in vain, and spent their strength for naught? The answer is obvious.

They have acted on a mistaken theory. They have confided in the integrity and benevolence of those to whose immediate care prisoners are committed, where nothing is more true than that prison keepers are, and ever have been, the cruelest of men. They have gone the whole round of experiment—imprisonment and hard labour, solitary confinement, transportation, stripes, cropping and branding—the whole machinery of torture and death has been put into various motion, in the ignorant hope of reforming a sinner by the sure and only means of making a devil. The

science of architecture has been exhausted in experiments to construct a reformatory prison, as if the form of a cell could regenerate a vicious heart into virtue. Societies have been formed, books have been published, funds have been collected, and a "PRISON DISCIPLINE" has been put into practice, on the infatuated supposition, that a bad man can be made good by writing him a "VILLIAN" on every page that presents him to the public eye, and crushing him under a painful and torturing humiliation which would fire an angel with resentment, and make a John a Judas. Every sermon that is preached, every prayer that is made, every hymn that is sung in prisons, tells the convicts that they are sinners above all men, because they suffer such things; and it is by means like these, by audibly and impliedly thanking God that they are not like these publicans, that the ministers of mercy to prisons are labouring to reform the wicked.

Another great fault in the operations of the benevolent in favour of prisoners, is, they are objects of attention *only* while they are *in prison*. A wise physician will take care to *prevent* disease, and be equally careful to prevent a *relapse*. Not so with *these* physicians. They visit the patient at his sick bed for the first time, and there they remind him very graciously of the *cause* of his sickness, and leave him as soon as he can leave his bed. Intelligent good will embraces its objects the moment they are discovered, and never abandons them. The grand outlines of expansive and understanding benevolence are—the prevention of crime or any other misery—the comfort of the sufferer and the reformation of the criminal—and the prevention of future distress and relapse into crime. Let the pious, and virtuous, and compassionate, keep these outlines constantly in view, and never permit their efforts to relax, but increase and multiply them over every part of the ample field which the above landmarks describe.

It would be unavailing for me to propose any *plan* of operation in this great work. I am by far too microscopic an object in the public eye to hope for the smallest attention to any thing that I can offer. I do not, however, regret this, for I am not much enamoured with *plans*. The best plan would not avail any thing, without a proper spirit in the management of it, and *with* this, the poorest would be better than any which has yet been devised. On the *spirit* of prison discipline, then, I rely for success, and on this, whether they are heeded or not, I shall make a few remarks.

Those who go on errands of mercy to prisons must convince the prisoners that they are their *friends*, or they can do them no good; and this can be done only by *being* their friends. When they shall have accomplished this—when the prisoners feel that they have found *friends*, they will become better. With this lever, the hardest heart can be turned. Goodness finds a worshipper in the wickedest heart, and no sooner is it perceived in the holiness of its nature and the benevolence of its exercise, than the heart instinctively does it reverence and receives its impression.

The first thing then for a minister of reformation to prisons to do, is, to be good and feel a love for the sinner; and the next is, to make this goodness and love apparent by long and steady perseverance in acts of mercy.

The fact that goodness will beget its likeness in all minds that experience and perceive its effects, is taught plainly in the Scriptures. "We love God *because he first loved us*."—"The *goodness* of God leadeth thee to repentance."—"He to whom *much is forgiven*, the same *loveth much*." The song of saints in heaven is grounded on the *personal benefits* they have received from Christ. Christians are exhorted by the *mercies* of *Christ* to live holy and godly lives. And the Psalmist says, that they that *know* the name of the Lord, will put their *trust* in him.

The truth of these principles has been practically demonstrated by those who have been humanely and charitably conversant with the suffering poor. It has not been the *benefaction*, that has bound them to the hearts of the distressed, but the spirit of *mild, heavenly, sympathetic, unassuming, and unaffected condescension*, with which they have *personally* and *perseveringly* ministered to their wants. Not the *value* of the gift, but the *manner* and *spirit* of it, has converted the recipient into gratitude. All experience proves this.

"But beside the degree of purity in which this principle may exist among the most destitute of our species, it is also of importance to remark the degree of strength, in which it actually exists among the most depraved of our species. And, on this subject, do we think that the venerable HOWARD has bequeathed to us a most striking and valuable observation. You know the history of this man's enterprises, how his doings, and his observations, were among the veriest outcasts of humanity,—how he descended into

prison houses, and there made himself familiar with all that could most revolt or terrify, in the exhibition of our fallen nature; how, for this purpose, he made the tour of Europe; but instead of walking in the footsteps of other travellers, he toiled his painful and persevering way through these receptacles of worthlessness;—and sound experimentalist as he was, did he treasure up the phenomena of our nature, throughout all the stages of misfortune, or depravity. We may well conceive the scenes of moral desolation that would often meet his eye; and that, as he looked to the hard and dauntless, and defying aspect of criminality before him, he would sicken in despair of ever finding one remnant of a purer and better principle, by which he might lay hold of these unhappy men, and convert them into the willing and the consenting agents of their own amelioration. And yet such a principle he found, and found it, he tells us, after years of intercourse, as the fruit of his greater experience, and his longer observation; and gives, as the result of it, that convicts, and that, among the most desperate of them all, are not ungovernable, and that there is a way of managing even them, and that the way is, without relaxing in one iota, from the steadiness of a calm and resolute discipline, to treat them with tenderness, and show them that you have humanity; and thus a principle, of itself so beautiful, that to expatiate upon it, gives in the eyes of some, an air of fantastic declamation to our argument, is actually deposed to, by an aged and most sagacious observer. It is the very principle of our text, and it would appear that it keeps a lingering hold of our nature, even in the last and lowest degrees of human wickedness; and that when abandoned by every other principle, this may still be detected,—that even among the most hackneyed and most hardened of malefactors, there is still about them a softer part, which will give way to the demonstrations of tenderness: that this one ingredient of a better character is still found to survive the dissipation of all others;—that, fallen as a brother may be, from the moralities which at one time adorned him, the manifested good-will of his fellow man still carries a charm and an influence along with it; and that, therefore, there lies in this an operation which, as no *poverty* can *vitiate*, so no *depravity* can *extinguish*.

"Now, this is the very principle which is brought into action, in the dealings of God with a whole world of malefactors. It looks as if he confided the whole cause of our recovery to the influence of a

demonstration of good will. It is truly interesting to mark, what, in the devisings of his unsearchable wisdom, is the character which has made to stand most visibly out, in the great scheme and history of our redemption; and surely, if there be one feature of prominence more visible than another, it is the love of kindness. There appears to be no other possible way, by which a responding affection can be deposited in the heart of man. Certain it is, that the law of love cannot be carried to its ascendancy over us by storm. Authority cannot command it. Strength cannot implant it. Terror cannot charm it into existence. The threatenings of vengeance may stifle, or they may repel, but they never can woo this delicate principle of our nature into a warm and confiding attachment. The human heart remains shut, in all its receptacles, against the force of all these applications; and God who knew what was in man, seems to have known, that in his dark and guilty bosom, there was but one solitary hold that he had over him, and that to reach it, he must just put on a look of graciousness; and tell us that he has no pleasure in our death, and manifest towards us the longings of a bereaved parent, and even humble himself to a suppliant in the cause of our return, and send a gospel of peace into the world, and bid his messengers to bear throughout all its habitations, the tidings of his good will to the children of men. This is the topic of his most anxious and repeated demonstrations. This manifested good will of God to his creatures, is the band of love, and the cord of a man, by which he draws them; and this one mighty principle of attraction is brought to bear upon a nature, that might have remained sullen and unmoved under any other application."—THOMAS CHALMERS, D. D.

The principle so eloquently and correctly stated in the above quotations from Dr. Chalmers, is fully demonstrated and exemplified by the philanthropic efforts of Mrs. ELIZABETH FRY in the famous prison of Newgate, in England, an account of which is here presented to the reader. It was written by MADAME ADILE DE THOU, but I have copied it from the LADIES' MAGAZINE.

"MRS. FRY, on being informed of the deplorable state of the female prisoners in Newgate, resolved to relieve them. She applied to the governor for leave of admittance; he replied that she would incur the greatest risk in visiting that abode of iniquity and disorder, which he himself scarcely dared

to enter. He observed, that the language she must hear would inevitably disgust her, and made use of every argument to prevail on her to relinquish her intention.

MRS. FRY said that she was fully aware of the danger to which she exposed herself; and repeated her solicitations for permission to enter the prison. The governor advised her not to carry in with her either her purse or her watch. MRS. FRY replied, "I thank you, I am not afraid: I don't think I shall lose any thing."

She was shown into an apartment of the prison which contained about *one hundred and sixty women*; those who were condemned, and those who had not been tried, were all suffered to associate together. The children who were brought up in this school of vice, and who never spoke without an oath, added to the horror of the picture. The prisoners ate, cooked their food, and slept all in the same room. It might truly be said, that Newgate resembled a den of savages.

MRS. FRY was not discouraged. The grace of God is infinite, the true christian never despairs. In spite of a very delicate state of health, she persevered in her pious design. The women listened to her, and gazed on her with amazement; the pure and tranquil expression of her beautiful countenance speedily softened their ferocity. It has been remarked, that if virtue could be rendered visible, it would be impossible to resist its influence; and thus may be explained the extraordinary ascendancy which MRS. FRY exercises over all whom she approaches. Virtue has indeed become visible, and has assumed the form of this benevolent lady, who is the guide and consolation of her fellow-creatures.

MRS. FRY addressed herself to the prisoners;—"You seem unhappy," said she. "You are in want of clothes; would you not be pleased if some one came to relieve your misery?"

"Certainly," replied they, "but nobody cares for us, and where can we expect to find a friend?"

"I am come with a wish to serve you," resumed ELIZABETH FRY, "and I think if you will second my endeavours, I may be of use to you."

She addressed to them the language of peace, and afforded them a glimmering of hope. She spoke NOT OF THEIR CRIMES; the minister of an all-merciful God, she came there to *comfort* and to *pray*, not to *judge* and *condemn*. When she was about to depart, the women thronged around her as if to detain her. "You will never come again," said they. But she who never broke her word promised to return.

She soon paid a second visit to this loathsome jail, where she intended to pass the whole day; the doors were closed upon her, and she was left alone with the prisoners.

"You cannot suppose," said she, addressing them, "that I have come here without being commissioned. This book—she held the Bible in her hand—which has been the guide of my life, has led me to you. It directed me to visit the prisoners, and take pity on the poor and the afflicted. I am willing to do all that lies in my power: but my efforts will be vain, unless met and aided by you."

She then asked them whether they would not like to hear her read a few passages from that book. They replied they would. MRS. FRY selected the parable of the lord of the vineyard, and when she came to the man who was hired at the *eleventh hour*, she said; "Now the eleventh hour strikes for you; the greater part of your lives is lost, but Christ is come to save sinners!"

Some asked who Christ was; others said he had not come for them; that the time was past, and that they could not be saved. MRS. FRY replied that Christ had suffered, that he had been poor, and that he had come to save the poor and the afflicted in particular.

MRS. FRY obtained permission to assemble the children in a school established in the prison, for the purpose of promoting their religious instruction. The female prisoners, in spite of their profligate and vicious habits, joyfully embraced the opportunity of ameliorating the condition of their children. Much was already effected by restoring these women to the first sentiments of nature; namely, maternal affection.

A woman denominated the *matron*, was entrusted with the control of the prisoners, under the superintendence of the ladies of the Society of Friends,

composing the Newgate Committee.

MRS. FRY having drawn up a set of rules of conduct for the prisoners, a day was fixed on, and the lord Mayor and one of the aldermen being present, she read aloud the articles, and asked the prisoners whether they were willing to adopt them; they were directed to raise their hands as a sign of approval. This constitution was unanimously adopted; so sincere were the sentiments of respect and confidence she had inspired.

Thanks to her perseverance and the years she has devoted to her pious undertaking, a total change has been effected in Newgate prison; the influence of virtue has softened the horrors of vice, and Newgate has become the asylum of repentance.

Strangers are permitted to visit the jail on Thursday, when MRS. FRY reads and explains passages of the Bible to the prisoners. Her voice is extremely fascinating; its pure, clear tones are admirably calculated to plead the cause of virtue and humanity.

The late queen expressed a wish to see MRS. FRY, and in the most flattering terms testified the admiration she felt for her conduct. The thanks of the city of London were voted to her; and, in short, there is not an Englishman who does not bless her name."

How worthy of all admiration is such conduct in a female! But if the principle which DR. CHALMERS has stated with so much beauty and force, and which has been so fully and delightfully exemplified by the seraphic spirits of a HOWARD and a FRY, is correct, how humbling to the christian community are the inferences which follow.

Why are our prisons such scenes of cruelty and such schools of crime? Because christian churches and christian individuals are destitute of the practical good will, and the expansive benevolence of the gospel of Christ. When christians begin to *act* on the principles of their profession, prisons will begin to grow pure; and when all christians fully perform their solemn duties to the erring and the wretched, prison walls and prison vices will be no more. In a purified society they cannot exist; and the degraded condition

of the prisoners in our country, and the rapid increase of their numbers, are sure indications of the want of piety and godliness in the land.

I might spin out remarks to an indefinite length, but it would be to no useful purpose. I can weep over the evils which I am unable to cure. I do not expect any great improvement *in* our prisons, till I see great reformatations *out* of them. From the society of the free all our prisoners are taken, and till that society is purified it will continue to furnish its annual victims to the penitentiary; but when that is done, the fetters and dungeons of the captive will crumble to dust, and the improvement of prisoners will be simultaneous with the reformation of the free. These two classes act and react upon each other, and they must ultimately wear the same moral complexion. If vice is to triumph over virtue, then all will be just fit for a dungeon; but if virtue is to become universal, then will the bond and the free be equal sharers in the bliss. But as the prey *is* to be taken from the mighty, and as all flesh *is* to see the salvation of the Lord, I am sure that "in the dispensation of the fulness of times," the vices and crimes of prisoners will cease, and the voice of the oppressors be heard no more.

REV. JOHN ROBBINS' VISIT TO WINDSOR PRISON.

It was in the spring of 1829 that the Rev. John Robbins visited the State Prison in Windsor, Vermont, in which a number of years before he had been a prisoner. He was recognized by a few of the oldest inhabitants of that gloomy mansion, who had been his fellow-prisoners, and particularly by the writer of this article who had been his cell-mate. He obtained permission of the Superintendent, and preached in the prison chapel the first Sabbath after his arrival in town. As he entered the pulpit a thrill of indescribable but pleasing emotion darted through the bosoms of his old acquaintances, at witnessing the great and happy change of which he had obviously been the subject. A few short years before, he had occupied a seat among the hearers in that doleful place, and no one questioned his right to that distinction; but now he appeared as an accredited minister of the gospel, "to preach deliverance to the captives, and the opening of the prison to them that are bound." Every eye was fastened upon him, and a solemn death-like stillness pervaded the room. After a few minutes he gave out the following appropriate and affecting psalm, which was sung with sympathetic expression by the choir:

"Father, I bless thy gentle hand;
How kind was thy chastising rod,
Which forced my conscience to a stand
And brought my wandering soul to God.

"Foolish and vain, I went astray;
Ere I had felt thy scourges, Lord,
I left my guide, and lost my way;
But now I love and keep thy word.

"'Tis good for me to wear the yoke,
For pride is apt to rise and swell;
'Tis good to bear my Father's stroke,
That I might learn his statutes well."

After this psalm was sung he prayed—but such a prayer had not often been heard in that place. Solemn and awful language, on flame with heaven's own spirit, and big with holy desires, marked this effort of his impassioned soul. That prayer was heard in heaven; for such a prayer can never be made in vain. It produced an unutterable effect on every heart; and the impression it made on mine is, at this moment, among my liveliest and dearest recollections.

His text was,—“Godliness is profitable unto all things, having the promise of the life that now is, and of that which is to come.” I will not attempt to give even a skeleton of the overpowering sermon which followed. I was too much affected for memory to perform its office. Unlike many of the pulpit efforts which I had been accustomed to hear, it was not characterized by polished periods and classical elegance, but by the thunder and lightning of Mount Sinai. It was a storm which shook the soul, and roused up all its powers. The preacher was evidently in awful earnest;—his lifted arm, his swelling voice, his beaming eyes, denoted the man who felt the importance, and believed the truth of what he said. Until now, he sustained himself in firm and perfect self-possession; but when he came to advert to his former situation, and point out the very seat he had occupied among his hearers, his firmness deserted him. His eyes swam in tears—his voice fell down into interrupted and trembling accents—and his mind became perfectly unnerved. Sympathy, inspired his feelings in his congregation—every eye was moistened—sighs echoed to sighs—some wept aloud—and the whole scene was one of mingled, ungovernable emotions.

With this sermon commenced a glorious revival of religion in the Prison. That long and much neglected moral waste began to exhibit the buds of promise; that spiritual desert began to smile with freshness and bloom; and after twenty years of famine, more dreadful than that which devoured the plenty of Egypt, the Lord began to pour down the streams of his grace, and

spread a feast of fat things before the dying souls of His creatures. Angels, whose far-reaching vision embraces a thousand worlds, never saw a spot more spiritually and morally barren, than had been the State Prison at Windsor from the very commencement of its history up to the happy time under consideration. But now the scene began to change; the wilderness and the solitary place began to rejoice, and the desert to blossom as the rose. Mr. Robbins, at the request of the Superintendent, continued there about five months, during which time, I have as much evidence as any such case admits of, that one half of the prisoners became the subjects of serious convictions, and one fourth part were thoroughly converted to God. It is due to the Hon. J. H. Cotton, Superintendent of the Prison, to say, that he cordially co-operated with Mr. R. and granted the prisoners every indulgence which reason could ask. Sabbath Schools were established; Bible Classes were formed; and the Prison became a temple with a worshipper in every cell. The other means used by Mr. R. were private conversation, tracts, and plain, pungent preaching.

While this delightful work was in progress, the following hymn was composed by one of the prisoners and sung by them in their meetings; and as it gives a very impressive and accurate view of the power and character of this display of saving mercy to the doubly lost, I will insert it here for the gratification of the reader:

"Rejoice, O my soul, see the trophies of grace
Submitting to Jesus and shouting his praise;
Like doves to their windows, or clouds through the sky,
From sin's darkest borders for safety they fly.

"This strong bolted dungeon is vocal with prayer,
And joy rolls her orb through the sky of despair;
This strong hold of Satan is trembling to fall,
The power of Jehovah is seen by us all.

"The angel of mercy can visit a cell,
And on the dark bosom of misery dwell.
The sunbeams of heaven can shine from above,
And glow on our midnight a rainbow of love.

"All glorious Eternal! we tremble and fear;
How awful this place is, we know Thou art here!
In thy dreadful presence adoring we fall.
Well pleas'd to be nothing, and Thou all in all!"

I must ask the indulgence of the reader for introducing another hymn, by the same author, which also exhibits the true extent and glory of the work, in contrast with the darkness and misery which preceded it. It is inscribed to Mr. Robbins:

"I was in prison and ye came unto me."

JESUS CHRIST.

"Around our horizon no twilight was streaming,
Nor faint twinkling star shot a ray thro' the gloom;
No taper of life in our dungeons was gleaming,
But darkness and death roll'd dismay thro' our tomb.

"When, clear as the sun, rob'd in beams of the morning,
You rose on our darkness with soul-cheering ray;
To temples of worship our dungeons transforming,
And pouring around us the noon-blaze of day.

"In every hall now an altar is burning,
And incense of praise rolls from many a heart;
The ransom'd of Christ are to Zion returning,
With firm resolution no more to depart.

"How sweet is the sound! holy anthems are ringing,
And cell back to cell echoes triumph and praise!
And while to the theme of salvation I'm singing,
The glory of God bursts around in a blaze!

"My soul, bless the Lord! be his mercy forever
The theme of my song and the flame of my heart!
And from his commands may I wander no never!
Nor from his dear service one moment depart!

"Go on, sent of God! See! all ripe for the sickle
The harvest is waving, and bright in your view,
Confide not in man, all inconstant and fickle,
But trust in the Lord ever faithful and true."

In the course of about five months, this shower of divine mercy passed completely by and went off, after watering richly that sterile region, and causing it to brighten with the fairest promises of a glorious harvest. Never was there a work of grace more pleasing in its developement, more thorough in its searchings into the heart, or that will in my firm opinion, be more lasting in its joyful effects. There were no enthusiastic ravings—none of the mysticism of fanatics; but every part of the work was characteristic of the deep and reforming energies of the Spirit of God on the soul. That there were some who banished their serious convictions from their minds, there can be no doubt; and that some who entered the race, run well only for a season, and then turned back, is equally probable. These are dark spots from which no bright display of saving mercy is ever perfectly free. But I am, on the other hand, just as firmly persuaded, that as many as thirty of those who were then outcasts from society, became free citizens of the Redeemer's kingdom, and will "walk with him in white" in the world of glory.

From the preceding rapid sketch of a work of grace in a State Prison, the following affecting truths force themselves inferentially upon the mind.

1. The most abandoned among the sons of men, are fully within the saving influences of Gospel truth, when it is judiciously applied to the conscience and heart.

2. State Prisons are too much neglected in the benevolent and pious enterprises of this missionary and philanthropic age. Ministers of Jesus have gone out, and others are going out, to the extremities of the globe, to evangelize the heathen, while they too obviously disregard the injunction of the blessed Jesus so plainly and energetically implied in these words,—"I was in prison and ye visited me not."

3. Any humble self-denying servant of Him who came to say to prisoners, Go forth—to pardon a dying thief—and point out to repentant crime the path of righteousness, who will, in the spirit of his Master, devote

himself to the great work of preaching the everlasting Gospel in State Prisons, will joyfully witness the gloom departing from those fields of spiritual desolation, and find his sacred, untiring labors amply repaid, by the success with which, sooner or later, they will be graciously crowned.

In conclusion, permit me to call the attention of all benevolent and pious minds, to the deplorable condition of those whose crimes have justly cut them off from the sweets of liberty and the endearments of social life, and consigned them to a living death within the gloomy walls of a State Prison. With an emphasis that might pierce the soul, they say to you,—“Have pity upon us! have pity upon us, O ye our friends! for the hand of God hath touched us!” But this plaintive cry is heard only to be forgotten. If any class of darkened, perverted, and ruined humanity, has any claim on the sympathies of Christians, this is that class. This Howard felt, and, by his efforts to meliorate their condition, he became the acknowledged prince of philanthropists, and earned an immortal and sacred fame. Our State Prisons, it is true, are not the dark subterranean hells of Europe; but they are, in the fullest American sense of that term,—State Prisons. And why will not some American Howard, some baptized and heavenly spirit, take a thorough and christian survey of these places, and become a christian Howard by causing all the means of grace, like so many rivers from the throne of God, to roll their pure, and comforting, and saving waters, through all their gloomy abodes.

THE AUTHOR'S FAREWELL TO LIBERTY AND HIS FRIENDS.

Published after he had been confined *nine years*, and a few months before
he received his pardon.

"*We hung our harps upon the willows.*"—CAPTIVE ISRAEL.

Farewell, enchanting goddess,
Whose smile all nature cheers,
And pours the light of heaven
Around sublunar years.

Adieu, thou seraph beauty;
With blushing roses crown'd,
Thy breath no more inspires me,
Thy flowers no more surround,

No more, with thee conversing,
I spend the joyous day,
While hours of laughing pleasure,
Unheeded dance away.

Thy fields, by spring enamell'd,
These feet no more can tread,
Nor in poetic rambles,
To whisp'ring rills be led.

Long on the leafless willow,
My tuneless harp has hung,
The themes are all forgotten,
On which its numbers rung.

Ye groves, with music sounding,
Ye vales, in smiling bloom,
Ye deep and waving forests,
The seats of pleasing gloom;

Ye lov'd and honor'd circles,
Where peace and friendship dwell—
To all these scenes of pleasure,
How can I say—FAREWELL?

How can I, honour'd Mother,
Whose mem'ry I adore,
Endure the thought, so painful,
Of seeing you no more?

You form'd my heart to virtue,
My infant mind to truth,
And led me, pure and blameless,
Amid the snares of youth.

From you the dear idea
Of God I first receiv'd,
And charm'd by your example,
I in his name believ'd.

To that adored Being
You taught these lips to pray,
And bless'd my painful childhood
With views of heavenly day.

Yet O! farewell, dear mother!—
Be God Himself your Friend,
Your Comforter in trouble,
Your Saviour in the end!

Farewell, beloved brothers;
My frailties O! forgive!

And while I breathe, repenting,
May you respected live.

Endear'd, adored sisters—
But O! my heart, forbear!
How, from thy clasping fibres,
Can I these idols tear!

We've lov'd and wept together,
And till my latest breath,
This heart shall bear their features,
And cling to them in death!

Each fond association,
How round my heart it plays!
And wakes the recollection
Of dear departed days!

These fled—afflictions follow'd;
They, too, will soon be o'er—
Soon we shall meet in heaven,
To separate no more.

How oft have these dear kindreds
Bedew'd my path with tears,
And follow'd me, lamenting,
Thro' many gloomy years.

But now they weep no longer—
The last sad tears they shed,
Fell on that mournful evening
When they pronounced me DEAD!

They've buri'd me, tho' living,
And worn their sable weeds,
And down to blank oblivion
My memory recedes!

Dead!—would to God I were so!

Why should I wish to live?

A wretched, joyless creature,

And only spar'd to grieve!

The gloom of death surrounds me,

And chills me to the soul;

My tears by sorrow frozen,

Have long refus'd to roll.

In vain the pleasing changes

Of darkness and of day,

Of bloom and desolation,

Around my dungeon play.

There is no day in prison,

But ever-during night;

No pleasing moral verdure,

But everlasting blight.

The sun of joy has sunken

Behind affliction's cloud,

And wrapp'd the earth and heavens

Deep in an endless shroud.

Nine summers have roll'd o'er me,

As many springs have smil'd,

Nine autumns pour'd their treasure,

Nine winters whistled wild,

Since on me clos'd and bolted

Those ever-frowning gates,

And all my views of freedom

Have been thro' iron grates.

Yet here I breathe, unhappy,

No hope of freedom see—

O! when, enchanting goddess,
Shall I return to thee?

Thron'd on thy native mountain,
Beneath the ample sky,
Thou heedest not my anguish,
Nor hear'st my frequent sigh.

Against embattled legions
Thy panoply I bore,
And from the brow of victors,
The wreath of vict'ry tore.

But thou hast me deserted,
And left to weep in vain,
In this all-gloomy dungeon
To clank my galling chain!

But cease my guilty murmurs,
My punishment is right;
I forc'd my way to ruin,
Against the clearest light.

An angel, sent from heaven,
Inform'd my op'ning mind,
And to the side of virtue,
My shooting thoughts inclin'd.

Religion—always lovely—
Appear'd more lovely still,
While with its heavenly spirit,
She strove my heart to fill.

Of vice the awful features
Her faithful pencil drew,
And from the horrid image
My frightened eyes withdrew.

O! had I wisely cherish'd
These seeds, so timely sown,
The tears of vain repentance
These eyes had never known.

In all the charms of virtue,
Unfallen I had stood,
By keen remorse unwither'd,
Respected by the good.

O! false, alluring phantoms,
Which led my feet astray,
In paths to ruin leading,
From wisdom's peaceful way.

Yet is maternal culture
Most salutary still;
The frost of vice may wither
The germ it cannot kill.

The tide of sinful pleasure
Its poisonous wave may roll,
And long the blighting tempest
May chill the youthful soul;

It cannot kill—no, *never*—
(Then, mothers, don't despair!)
The seeds of moral virtue,
So early planted there.

Some heaven-directed sun-beams
Will shine around, and then,
Warm'd by its genial influence,
They'll vegetate again.

My subject, how it brightens!
Be fired, my soul, anew,

In numbers sweet as heaven,
The ope'ning theme pursue.

Farewell, my sinful murmurs.
Farewell, my sighs and tears;
Farewell, thou night of horror,
The morn of joy appears!

The beams of heavenly goodness,
How bright they shine around,
A sea of living pleasure,
Where all my griefs are drown'd!

From this glad hour, for ever,
Be gratitude my song;
My moments, fraught with transport,
Shall joyful dance along.

The mercy of my Saviour,
What angel tongue can tell,
It blazes thro' creation,
And cheers the night of hell!

Around his throne in glory
It wakes immortal song,
And rolls its boundless ocean
Eternity along.

In all my wand'rings from Him,
This mercy held me up,
And in my hours of sorrow
Pour'd nectar in my cup.

And when that stingless pleasure
Which satisfies the mind,
Thro' devious paths *forbidden*,
I'd rov'd in vain to find;

His Spirit linger'd round me,
And prompted my return,
And with a sense of pardon
Inspir'd my heart to burn.

O! love, all thought transcending!
Love, boundless as the sea!
Encircling every creature,
Throughout eternity!

On this I'll dwell for ever,
Nor sigh for freedom more—
My heart, my tongue—all nature,
This boundless love adore!

My heart shall be a temple
Of never ceasing praise,
And ev'ry morn and evening
Repeat the gladsome lays.

O! thou great Source of being,
In whom alone I live,
Accept my heart; tho' sinful,
'Tis all a wretch can give.

Forgive the plaintive numbers,
Which held my harp so long,
And bless the *resignation*
Which crowns my gloomy song.

DESCRIPTION OF HEAVEN BY AN INHABITANT OF A DUNGEON.

On gloomy themes let others dwell,
And sing the miseries of hell;
My cheerful muse prefers to paint
The future glories of the saint.
High on a mount of purest light,
To which the clearest noon is night,
Whose top no angel wing can soar,
Nor keen-eyed seraph glance explore.—

Above the reach of rolling spheres,
Which mark our little circling years,
In awful grandeur, reigns our God,
And rules creation with his rod.
Twelve legion angels, throned around,
His lofty praise, in thunder sound,
And stooping from their jewelled seat,
Cast down their honors at his feet.

These, ever ready to fulfil
The dictates of his sovereign will,
Are winged for flight, and, at his voice,
To execute his word, rejoice.
In dignity above the rest,
With diamond mail and flaming crest,
The Angel of his presence stands,
To execute his high commands.

Round, farther than from central light
To where the comets end their flight,
In ever blooming beauty lies,
The glorious Eden of the skies.
There swell huge Alps, uncapped with snow;
Through fertile realms broad Danubes flow;
And cheerful brook meandering twines
Around celestial Apennines.

There hills of emerald are seen,
And damask vales, that smile between,
And all the beauties of the sky
In elegant assemblage lie.
There too the chrystal mirror lake,
By zephyrs kissed, in every wake,
Presents to pleased angelic eyes
Reflected scenes of earth and skies.

There, on a towering height, sublime,
The Lebanon of heavenly clime,
Where pleasure lives, where rapture glows,
The cedar spreads its princely boughs.
There fragrant Carmel's flowery grove,
Where seraphs tune their harps of love,
On playful breeze diffuses round,
Its spicy breath and tuneful sound.

There Sharon's rose, without a thorn,
Serenely bright with gems of morn,
On verdant tree majestic towers,
And smiling reigns, the queen of flowers.
Down by a sweetly-flowing rill,
Where pure celestial dews distil,
The lilies, clothed with beauty, rise,
And bloom beneath cerulean skies.

There, raining nectar from its boughs,
The tree of life immortal grows;

And streams of bliss, 'mid holy song,
Roll their mellifluent waves along.
No winter's frost or winter's snow—
No blight these scenes of beauty know;
No change revolving seasons bring,
For all is one eternal spring.

O! how unlike this world below,
Where all is blight, and death, and wo!
Where night, *dark night*, eternal reigns,
And grief in every house complains!
There, far above created height,
Reigns the dear Son of God's delight;
A man of sorrows once—but now
A God to whom archangels bow.

A shoreless sea of heavenly beams
Around his sacred person gleams;
By merit raised, by virtue tried,
Exalted at his Father's side.
An emerald bow his head adorns,
That blessed head once crowned with thorns!
His feet like burning gold; his face
A sun of glory and of grace.

Robes whiter than unfallen snow
Down to his feet divinely flow,
Unstained with blood.—Before him now
No murderous priests reviling bow.
Around his waist a golden zone
Proclaims his title to the throne;
And in his hands, with sceptre graced,
The keys of death and hell are placed.

There dwell creation's elder sons,
Those high, those blessed, those holy ones,
Who, when this earth from chaos rolled,
Exulting struck their harps of gold.

In their exalted spheres, divine,
Like suns they move, like suns they shine;
And other lights, though glorious, seem
Lost in the radiance of their beam.

Nearest the sacred throne they sing,
And strike the sweetest, loudest string;
Thus eminent above the rest,
They lead the concert of the blessed.
There dwell the ransomed of the Lord,
Who loved to keep his holy word;
Washed in his blood from every stain,
With him eternally they reign.

They loved him here, and all his ways,
They loved to speak his name in praise,
They loved to do his righteous will,
And all his purposes fulfil.
And now, supremely blest above,
Encircled in his arms of love,
He wipes the tear from every face,
And crowns the children of his grace.

All grief is past, they sigh no more,
But live to worship and adore;
Around that blissful world they rove,
Amid the smiles of deathless love.
Roll on, Eternity, thy years,
Around the vast celestial spheres!
Thou bringst no change but new delight,
And scenes of joy forever bright.

AN APPEAL TO CHRISTIANS IN BEHALF OF STATE PRISONERS.

(Extract from a Sermon.)

"COME OVER INTO MACEDONIA AND HELP US."

Acts xvi. 9.

"Glorious displays of heavenly mercy to lost and perishing mankind, and a missionary spirit, warm and pure as the altar from which it descended, and circumscribed in its holy purposes only by the broad limits of creation, are the great and delightful landmarks of the present age. The apocalyptic angel that was seen flying through the midst of heaven, having the Everlasting Gospel to preach to every nation, and kindred, and tongue, and people, is still spreading his golden wings, and proclaiming with a loud voice, "Fear God and give glory to Him, and worship Him who made heaven and earth." The sacred era of the apostles has again dawned upon the earth, and the servants of Christ are beginning to feel the broad import of their commission to "go into all the world and preach the gospel to every creature." Impelled by its sacred influence, they have gone out by hundreds—they are wafted by every wind of heaven; they are borne on the waves of every sea, ocean, and river; and their foot-prints are visible in the dust and snow drifts of every clime. A light that gladdens the earth and shines to heaven, denotes the windings of their pilgrimage, and the freshness and beauty of Paradise in the midst of the desert, point out the places of their abode. Every where is verified to them the promise of their ascended Lord, "Lo I am with you always even unto the end of the world;" and even "devils are subject to them through his name." O! in what felicitous times are we permitted to live! Surely an undevout reader of missionary annals must be mad indeed. How truly may what Nicodemus said to Christ be applied to

the whole noiseless army of missionary champions; "No man can do these" wonders, "which" they do, "except God be with him." And by what an irresistible inference does the success of modern missionaries associate both their *cause* and their *labours* with the approbation of heaven. From the midst of that golden cloud which embosoms the sacred throne, and softens the brightness of the Eternal to created vision, I hear a voice to these faithful friends of the Almighty, saying—"Servants of God! well done!" What a strong inducement is this to the friends of missions, to persevere in this celestial enterprise with redoubled efforts and increasing expectations: and how certain is it, that in due season they will reap, if they faint not.

The field of missionary labour is the world, and every part of it must be cultivated. In many places, harvests, broad and rich, are seen by those myriads of seraphs, who, in ministering to the heirs of salvation, are constantly passing and repassing from heaven to earth. But by far the greater part of this field is still barren and untouched by any culturing hand, and its famishing and dying inhabitants are constantly sending out to christian communities the Macedonian cry of—"Come and help us;" and this cry, like an angel's voice, has sunken deep into many hearts, and inspired them with a sympathetic interest which cannot die till its object is accomplished. I congratulate the world that such an interest has been excited. It promises much; it awakens the most delightful hopes; and it is not to *divide*, but to *enlarge* it, that I appear before this respected assembly, as a messenger from the most dark and hopeless part of this field of blight and desolation, to say to you, in behalf of my brethren; "Come and help us also." The place from which I have come is a *prison*, and *prisoners* are my brethren, whose cause I am going to plead.

In calling your attention to these all-gloomy places, and to these neglected sinners, may I not be permitted to say, that *prisons* and *prisoners* are inseparably interwoven with the history and doctrines of the gospel. The Captain of our salvation, though Lord of all, was once a *prisoner* at Pilate's bar; and though all-innocent, was condemned by Herod as a *criminal*, and expired on a *cross*. Of this same Being it is declared that he despiseth none of his *prisoners*, but looseth them, and by the blood of the covenant, sendeth them out of the pit wherein is no water. By his spirit he preached through Zechariah to those *captives*, who hung their harps on the willows

and wept at the recollection of Zion, this affecting but cheering sermon—"Turn ye, turn ye to the strong hold, ye *prisoners* of hope." In the same spirit he also went and "preached to the spirits in *prison*, which sometime were disobedient." In fine, benevolence to the lost is the spirit of Jesus, and good-will to mankind irrespectively, is the genius of his gospel. Moved then by the inspiration of Christ and his doctrines, I cheerfully and confidently anticipate the interested attention of all christians, while I paint the moral and spiritual dearth of our State Prisons, and plead with you to send thither the fertilizing streams of eternal life; nor will I fear, for a moment, that there is in this congregation, either a *Sanballat* or a *Tobiah*, to be exceedingly grieved that a man is come, to seek the *welfare of captives*.

I bring this subject, my Christian Friends, before *you*, and I urge it upon your attention, because it is by a community of which you form a valuable part, that the work must be done, if done at all. I bring it before christians, *exclusively*, before the *church of Christ* which he purchased with his own blood; it is before *you* that I roll the claims of your perishing fellow mortals; and, identifying myself with them, I say to you on their behalf, "Come and help us." Where else under heaven can we look but to *you*? Who will pity us, if *you* will not? Who will bring us the messages of salvation, if *you* refuse? We ask not for *liberty* nor *earthly comforts*; we are contented with our *homely meals* and our *beds of straw*; with these *glooms*, these *dungeons*, and these *fetters*; but we want that freedom with which *Christ* makes free; we want to feel the warming beams of the Sun of Righteousness, and eat the bread and drink the water of eternal life. Such is the voice which is this moment falling on your ears from the deep and gloomy recesses of the prison-house, and permit me to urge your immediate attention to it from the following considerations:

1. Should your pious labors be blessed to the reformation of any part of these offenders, *not only will they become happy in the enjoyment of virtue and religion, but a very great service will also be rendered to society.*

Let it never be forgotten a moment, that though community is in no *immediate* danger from them *now*, however vicious, the time is coming when it *may* be. They are not always to remain within those walls which prevent their annoying mankind by their crimes; their sentences are to

expire, and then, virtuous or vicious, society must admit them again within its circle. Does not, then, the future peace and safety of society require their reformation?—Should they be sent abroad with hearts unsubdued and rankling with iniquity, what society, family, or individual would be secure? Like fiery serpents, they would scatter dismay where they fly and death where they repose. And from the very nature of vice, whose grasp is to accumulation, if they are not brought to reform by the means and principles of the gospel, they will be more hardened and desperate than ever. I say "unless brought to reform by the *means* and *principles* of the *gospel*." A mere *moral* reform in such subjects is not to be hoped for. They have already demonstrated the insufficiency of mere *moral restraints* to keep them from the commission of crime.—Nothing but the solemn motives which enforce the duties of *religion*, can restrain them now. Their consciences have "swung from their moorings;" and they must be brought back and chained to the throne of God, before they who have been so long accustomed to do evil, will learn to do well. *Religion*, the holy religion of *Jesus Christ*, then, with the *tremendous sanctions* which it draws from the *world to come*, is the only means left by which these prodigals may be reclaimed. And should you be the means of planting this religion in their hearts, you will not only save *their* souls from death, but you will cause a wave of joy to roll more extensively wide than you have conceived. O! how many weeping parents and brothers, and wives and children, would feel the happy effect of your pious labors, and rise up and call you blessed. And these sons of crime themselves, renovated in their moral natures, by those redeeming principles which you will have instrumentally brought home to their breasts, will, when released from their dungeons, go out among christians and unbelievers, rejoicing the former by declaring what God has done for their souls, and inspiring with solemn and heavenly contemplations the latter, by testifying to the faithfulness of the saying, that Christ Jesus came into the world to save the chief of sinners. Instead of scattering dread and poisoning the healthful streams of society, they will move along in the pleasing round of christian duties, living witnesses of the power of divine grace, and examples of the excellency and loveliness of the Christian Religion. Their houses will be houses of prayer; their evenings will be spent in reading and meditation, and their days in honest industry; and their places in the Temple of God will never be vacant. O! what a combination of powerful motives are here presented before you, to draw out

the pious efforts of christians in behalf of prisoners; the motives of humanity, patriotism, and religion—a threefold cord; and may God forbid that it should ever be broken, or unfastened from your minds, until you follow the example of Howard, and bless with all the ordinances of the gospel, the neglected and perishing inhabitants of our State Prisons.

2. I would also urge you to listen to the cry of the captives from the consideration, that *they are human beings, and equally susceptible with others of all the improvements and pleasures of virtue and piety, on the one hand, and of all the degradation and misery of vice, on the other.*

No matter how far they may have wandered in the mazes of crime; no matter how deep they may have sunken into the horrible pit and miry clay of moral pollution; no matter how closely round them they may have drawn the sable pall of spiritual death; they are still within the compass of that holy and saving influence, which can *reclaim, elevate, and quicken*, the most hopeless of the human race. It is a blasphemous libel upon the grace of God to exclude, either *speculatively* or *practically*, from its redeeming power, *any part of mankind* on account of their *superior sinfulness*; for the faithful saying, which is worthy of all acceptance, is, that Christ Jesus came into the world to save the very *chief* of sinners. Did he not confer the boon of pardon and salvation on a dying *thief*? Was not one of his most faithful friends, while he abode on earth, she out of whom he had cast *seven devils*? And among the bright stars of heaven which rose from earthly climes, does not the eye of faith dwell with inexpressible delight on *Menasseh, Bunyan, Gardener, and Rochester*? Who then dares to point to any individuals, or to any class of fallen man and say—*There is no hope in their case*? Remember that he who came to seek and to save that which was lost, was also commissioned to say to the *prisoners*, "*Go forth*," and to them that *sit in darkness*, "*Show yourselves*"; to preach "*deliverance to the captives*," and the "*opening of the prison to them that are bound*;" to lead "*captivity captive*," and receive gifts *even for "the rebellious."*

In the broad commission which every minister of Jesus Christ receives, there is no limitation, no part of mankind are excluded; within the whole world and the whole creation, there is not a rational being to whom the Lord Jesus has not, with sovereign authority, and in the most plain and energetic

terms commanded his gospel to be preached. And are not *State Prisons* within the whole world? and are not their *neglected* and *despised inmates* included in the whole creation? From the burning equator to the frozen poles, and from the rising to the going down of the sun, the heralds of salvation are moving in every direction. Burning Africa and icy Greenland, the east and the west, "the void waste and the city full," have all heard the proclamation of mercy, and the isles of the sea have received the law. The blinded Jew and the bigoted Mahommedan, have alike, through the instrumentality of missionaries, seen the light of truth, and upon them the glory of the Lord has risen. And this same light which has shone through and dispelled the gloom of heathenism, which has played around the islands of the ocean, and thrown a ray of promise across the Mahommedan and Papal apostasies, has also found its way through prisons, and left a cheering brightness on the grates of a cell. Unchecked in its progress, and unbounded in its ample range, selecting no particular field as more hopeful, nor avoiding any as more forbidding than another, the grace of God, like a mighty angel, flies across the chaos of this world in the means appointed by heaven, and finds mankind every where, and under every variety of circumstance and condition, equally and perfectly under its control. Differing indeed in their mental and moral habits and associations, some possessing more lovely traits of character than others, and some distancing the rest in the race of crime; some deep read in all the mysteries of human science, and some so near the level of the brute as to render their humanity a question; mankind are, notwithstanding these complexional varieties, alike susceptible of the degrading and painful influences of vice, on the one hand, and, on the other, of the ennobling and heaven-imparting power of virtue and truth. I care not whether the individual treads the scorching sands of Arabia, or shivers amid the drifting snow and icebound streams of Lapland; whether he sends up the Indian cry to the Great Spirit from the solitude of our western wilds, or kneels an enthusiastic worshipper at the car of Juggernaut; whether his mind is as rude as the uncultivated desert, or so enlarged by education that all the luminaries of literature and philosophy are revolving there, like the sun, moon and stars, in the firmament of heaven; whether his garments are rags, or purple and fine linen; whether his companions are dogs, or princes; whether his home is a dungeon, or a palace; he is still *a man*, possessing the *same sensibilities*, the *same instinctive dread of misery* and *desires for happiness*, the *same longings*

after immortality and delight in truth, which belong alike to the degenerate family of fallen Adam.

This proposition is abundantly proved by the results of that sublime and stupendous enterprise, which the spirit of missions has so gloriously struck out, and is so successfully carrying forward, and which looks with such a firmly founded and well built confidence to the conversion of the whole world. I rejoice in all that has been done under the influence of this benevolent spirit, and I sympathize with the friends of missions in those brighter hopes and more inspiring anticipations, which contemplate a redeemed universe around the throne of heaven. My soul dwells, with expanding joy, on the lovely Edens, which the servants of the Most High have caused to bloom and smile amidst the blight and barrenness of heathen lands. I hear the songs of salvation sounding in the desert, and I bless the equal Lord of all his creatures for the means by which such praises have been called forth. I am glad that I see so much accomplished, and it is *this pleasure* that inspires me with such impatient anxiety to see the glorious work advancing. It is because I have seen the effect of the word of God on heathen minds, that I want to have it preached in our prisons. It is because I have seen streams gush out in the desert, that I desire to see the waters of life carried into the cells of captives. It is because these wonders of mercy have been accomplished by appointed means, that I wish to see these means operating in our prisons. It is because these means have never been used in vain, that I confidently associate with them the salvation of these servants of sin. And may I not add, that as God works *only* by means, and in this department of His operation, only by such means as are specified in his word, I despair of seeing any great or lasting good effected in our prisons, till I see these means in employment.

3. Another consideration by which I would urge you to attend to the call of the captives, is, *that they are as perfectly alive to the influence of religious motives as any other part of unregenerate mankind, and to one class of these motives, much more so.*

I am well aware that to the eye of unsanctified calculation, these giants of crime, these startling monuments of pre-eminent depravity and divine forbearance, present obstacles to the universal conquest of truth, and

sometimes even faith itself becomes infidel. But remember that the work is God's, and is any thing too hard for an almighty arm to accomplish? With equal ease He guides the zephyr, and the lightning's furious bolt; sustains a sparrow and upholds the sun. If He wills, who or what can hinder? He sends forth His Spirit, and the boldest and most determined opposition prostrates like the reed before the tempest, or a bramble before an avalanche, and the tiger becomes a lamb in the converted apostle of the gentiles. If my chief dependence for the reformation of these far-gone offenders was turning on the pivot of mere human agency, my brightest hopes would darken midnight, and the combined force of every possible motive to action, would relax before the hopelessness of the enterprise; but when an omnipotent hand is at work, would not fear or doubt be equally blasphemous and absurd? There must, indeed, be Pauls to plant, and Apolloses to water, but God alone can give the increase; and as under his gracious providence, the rock becomes a pool, and barrenness is turned into fertility, I most confidently anticipate the perfect and glorious accomplishment of His revealed purpose, to give to the Son 'the heathen for his inheritance, and the uttermost parts of the earth for his possession;' to 'deliver the lawful captives and take the prey from the mighty.' The assertion, therefore, which has been so frequently made, that 'the minds of prisoners are hardened beyond the power of religious susceptibilities,' I am fully prepared to deny; and not merely from the force of this reasoning, but from my own personal knowledge and experience. This wide world presents no where more solemn and attentive listeners to the preaching of the gospel, than are always found in our State Prisons. For the truth of this assertion, I appeal to every servant of God who has had the pleasure of addressing that libelled and neglected part of erring mankind. Indeed it would be very strange were it otherwise, for the very circumstances under which they are addressed, irresistibly dispose their minds to attend, with serious and affecting interest, to the enunciations of religious truth. Their souls are bleeding with the painfulness of a separation from their *nearest and dearest friends*—their parents, their brothers and sisters, their wives and children—and from the sunshine and all the concomitant blessings of liberty. Their own sad experience teaches them, better than a thousand arguments, the truth of that Book which declares, that the wicked shall not go unpunished, and that the way of transgressors is hard. Having witnessed *one* judgment day, and feeling the awful and death-like consequences of being condemned *there*,

they think, with trembling, of *the great Judgment day of all mankind*, and of the *more awful consequences* of condemnation *then*. And where in the universe can they behold a more true and dreadful representation of the 'house of wo and pain,' than is constantly before their eyes? To *one* class of religious motives, then, they must be peculiarly sensitive—*the terrors of the Lord must make them afraid*. They *cannot resist them*. Feeling as they *must*, and surrounded as they *are*, the truths of God come home to their consciences, *emphasized by their own experience*, and they might as well change their dungeon into a palace, and exchange their misery for the bliss of cherubs, as to resist these *sacred thunders* of the Eternal, *thus awfully sounded in their ears*. With me this is neither idle declamation nor uncertain theory, for I speak from observation and experience, declaring only what I have seen and felt; and could you associate my observation and experience with your own, you would believe my testimony. But you need not depend either on my declarations or reasonings on this subject; I am willing to throw the question into the scale of acknowledged facts. Facts cannot lie, and we will view our subject in the light of those connected with the ministry of Christ and his apostles. As he went about doing good, who followed most cheerfully in his train? *Publicans and sinners*. Who were the most remarkable subjects of his saving power? *Mary Magdalene*, whom he had dispossessed of *seven devils*, and a *hardened criminal expiring on a gibbet*. Why was he styled the friend of sinners? why did he declare the object of his mission to be to call sinners to repentance? and why did he rebuke the grumblers at his associating with those who were reputed the lowest and vilest of the human race, by saying, 'The whole need not a physician but they that are sick?' Because *sinners*, as they *most need*, so they *most feel their need* of, and *most cordially embrace the salvation of the gospel*. And who were the first to espouse the cause of Christ, after his resurrection? They whose hearts had festered with *malice*, whose hands were red with *innocent blood*—those very men who had been the *betrayers* and *murderers* of the Just and Holy One. One fact more and I shall have done with this topic. Who is that furious and determined individual, commissioned by the chief priests, and, Jehu like, speeding his way to Damascus? The same *dark and wicked spirit* who had *assisted in the murder of Stephen*, who had *thirsted for the blood of the saints*, and had *dragged many of them to prison*. The same *spirit*, too, who became a *chosen vessel of the Lord* to bear his name to the gentiles, and *build up the faith*

which he had labored to demolish, and who, in the most affecting and solemn terms declared himself to have been the *chief of sinners*.

But after all my reasoning and all my appeals on this subject, there is one cold and sullen fact, which rises like a winter-cloud over my mind, and blasts all my hopes of success while it remains. It is this. THE HAPLESS AND WRETCHED COMMUNITY FOR WHICH I AM PLEADING, IS COMPLETELY EXILED FROM THE SYMPATHIES OF MANKIND.—They are *thought* of indeed, but it is only to be *despised*, and they are *spoken* of only to be *cursed*. How truly may they say; 'No one cares for our souls.' This is a fact which cannot be successfully contradicted; but whether it is right or not, judge ye. How much of christianity it evinces let every one's conscience determine. One thing is certain, it is not the spirit of *God*, for He commended His love towards sinners by giving His Son to be our Saviour. Neither is it the spirit of *Christ*, for when we were without strength, in due time he died for the ungodly. Equally distinct is it from the spirit of *angels*, for they rejoice in the presence of God when one sinner repents. Nor has it any fellowship with the spirit of *christians*, for they are glad when they see the grace of God magnified in the reformation of even the most abandoned. It is also spurned away by the spirit of *philanthropy*, for the prince of philanthropists identified his glorious fame with the *prisons* of Europe. Harken then ye whose sympathies pass by the cells of merited suffering, like the priest and the Levite, on the other side, the misery which you *disdain to heed* and the sufferers whom you associate only with *infamy*, draw around them the *liveliest sympathies*, and the *deepest interest* of the whole universe of *sanctified spirits*, from the mere *lover of his species*, up through *christians* and *angels*, to the *merciful Redeemer* and *compassionate Father of all*. O! then be entreated to bring your cold and limited sympathies to the fountain of Jesus' blood, and learn to pity the sinner while you hate his sins. Let the sighing of the prisoners come into the secret abode of your hearts, and compassionate those whose hope is despair. If you continue to resist that voice which might pierce the *tomb*, and rouse the *dead* into benevolent actions for the recovery of the lost, you will evince that you have wandered as far from the sympathies of unperverted humanity, as have the objects of your contempt from righteousness; and my only hope of *their reformation* will depend on *your previous return to that holy sanctuary of purified feeling, from which you have so woefully departed*. Then, warmed with the

pure and sacred glow of heaven's own altar, you will be moved by the groaning of the captives, and either *carry* or *send* them the balm which is in *Gilead*, and direct them to the Physician who is there."

CONCLUSION.

My work is done, and I am happy. The task which I have now finished is of that unpleasant kind which few human beings have ever voluntarily undertaken. It has led me through wide fields of blight, in which scarcely a green thing has been left to smile. My path has been amidst fragments of moral ruin, where serpents of corruption have lurked and hissed. My canopy has been the beclouded past in which the sun, moon, or stars are seldom seen. I have heard the voice of man, but it has been in expressions of angry authority, or of uncompassionated distress. I have seen "the human face divine," but it was either transformed into cruelty, and sullen with a spirit of revenge, or distorted with agony and fixed in despair. I have shivered under the frost of death, and contemplated a thousand awful epitaphs on the grave stones of the soul.

Of the volume which I am now bringing to a close, I can say in the presence of my Creator, that I designed it as a sacrifice to benevolence; and I have labored to render it an acceptable one. I have plead the cause of the suffering sinner. I have opened to view his dungeon; pointed to his fetters—his bleeding back—his neglected sickness—his unheeded death. I have recorded facts; have argued from the principles of humanity and religion; have plead, entreated, exhorted, and prayed with christians to think of the captive, and cheer his gloomy cell with the light of the gospel. What more can I do? Nothing; and whatever may be the future sufferings of my brethren in prison, I am innocent.

In the course of the volume I have advanced the following opinions.—*In the present state of society, Penitentiaries cannot be very useful as means of reformation.—Cruel discipline will harden the sufferer, and nothing but goodness can ever win back a sinner to the love and practice of virtue.—Prisoners are criminally neglected by christians.—The loss of character is*

a calamity, from which the universal sentiment of mankind admits of no redemption.—The conduct of christians towards prisoners and repentant sinners, is directly opposed to the law of God and the principles of their profession. These and other truths, equally plain and important, are to be found scattered through the book, and I submit them to the religious consideration of all concerned.

In speaking of the "*Prison Discipline Society*," I have used pointed language. Convinced that it is an *un-benevolent* society, laboring, *conscientiously*, no doubt, to effect the good of community, but in a way that will certainly multiply the evils it is aiming to cure, I could not use any other than emphatic terms to express my disapprobation of its measures. Already has it plunged the subjects of its discipline into the gulf of a most horrid despotism, and should it go successfully onward, its measures will spread over and carry through all our penitentiaries, the unbroken gloom and unregarded misery of the worst prisons in Europe.

In relation to christians and ministers, I have used language that is capable of being perverted. I revere the christian who acts on the pure principles of his profession, and such is an exception from the remarks, which I wish to have applied to mere professors. I have found many real christians during my intercourse with society, who have cheered me in the house of my pilgrimage, and to them my gratitude is bound by the strongest ties. And in the ministry there are many whom I respect and love, and had all been such, the remarks which I have applied to some of that profession would have been quite superfluous and unmerited.

A remark which I have made in relation to Rev. E. K. A. may, if not explained, be misunderstood. I meant not to vote with public opinion against that suffering individual, but simply to state the fact, that community had decided against him, with a view to illustrate an inconsistency in the conduct of the persons under consideration. Mr. A. has had a fair trial, and the jury of the country has cleared him. With that verdict I am satisfied; and I consider that he is injured, and the dignity of the laws insulted, by the attitude of the public, and the conduct of many journals of the day. If the decision of a high court is not final, where is the security of any man who happens to be accused? Christianity is wounded by the

conduct of Mr. A's opposers, and they would feel the full force of their actions were they in his place. Whether Mr. A. is guilty or not, I am silent. God knows.

Notes

1: A prisoner that was shot.

2: That of confining several prisoners in one cell at night.

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